



File No.: PS/00209/2022

IMI Reference: A56 78728 - Case Register 89995

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: The data protection authority of Italy (Garante per la Protezione dei Dati Personali) conducted an investigation into the company Foodinho SRL, in which it was discovered that the activities involved in the delivery of food or other items by the couriers ("riders") with the help of a specific technical platform (used by Foodinho SRL and owned by GLOVOAPP23, S.L.) entailed the processing of a wide range of personal data: geographical location (in real time); monitoring of each step of the delivery through a mobile application downloaded on the courier's mobile; systematic retention of data on communications exchanged with the platform operator via emails, chats, and phone calls; delivery time (both estimated and actual); routes followed; compliance with orders; ratings of the couriers by customers or vendors; reputation scores.

Additionally, during the aforementioned investigation, there were indications that the data of the couriers making deliveries in Italy could be viewed by operators located in other countries outside of Italy.

SECOND: Through the "Internal Market Information System" (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), which aims to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, a notification was sent to this Agency on September 19, 2019, in order to identify the main supervisory authority to investigate the processing activities carried out on the couriers ("riders") of the Italian company Foodinho SRL, which is engaged in the transport and delivery of food and other goods through a computer platform owned by the company based in Spain GLOVOAPP23, S.A., with Tax Identification Number A66362906, previously GLOVOAPP23, S.L., with Tax Identification Number B66362906 (hereinafter, GLOVOAPP), which is the parent company of the business group of which Foodinho SRL and other companies based in other states within and outside the European Economic Area are subsidiaries.

For the reasons stated, this Agency was requested to conduct an investigation regarding the data processing of the couriers carried out by GLOVOAPP23, S.L. and its subsidiaries to verify compliance with Article 5.1.a) (lawfulness, fairness, and transparency) in relation to Article 13 (information to be provided to the data subject) and Article 88 (processing in the employment context); Article 5.1.c), 5.1.e), and 5.2 (data minimization, limitation of storage period, and proactive responsibility, respectively); and Article 22 (automated individual decision-making);

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of Article 32 (security of processing); of Article 25 (data protection by design and by default); of Article 30 (record of processing activities); of Article 35 (data protection impact assessment); of Article 37.7 (communication to the supervisory authority of the data protection officer) and of Article 44 and subsequent articles (transfers to third countries) of the GDPR.

The referral of this matter to the AEPD is carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/2016, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that GLOVOAPP has its registered office and main establishment in Spain.

The data processing carried out affects data subjects in several Member States. According to the

information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, it acts as an "interested supervisory authority," in addition to the data protection authority of Italy, the supervisory authority of Poland, pursuant to Article 4.22 of the GDPR, since the data subjects residing in the territory of this supervisory authority are substantially affected or are likely to be substantially affected by the processing subject to this procedure.

THIRD: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On February 12 and March 4, 2020, an on-site inspection was conducted at the headquarters of GLOVOAPP23 S.L. (hereinafter, GLOVOAPP), located at C/Pallars, 190-08005 Barcelona (Barcelona), during which the following information was obtained, among others, as derived from the preliminary investigation report dated 14/01/2021:

1. Indication that "Glovo" is a trademark owned by GLOVOAPP and that within its corporate purpose is the management and exploitation of the technological platform, which is a channel of supply involving three parties: end customers, delivery personnel (referred to as "riders"), and local stores.

2. Indication that, at the time of the inspection, the Glovo group of companies was composed of three main limited companies located in Spain, which are as follows:

- GlovoApp Latam: to cover subsidiaries in Latin America.

- GlovoApp Infrastructures: to cover companies that operate as local stores.

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- GlovoApp EMEA: to provide coverage for subsidiaries in Europe, the Middle East, and Africa.

3. The Glovo group also includes the companies established in each of the countries where Glovo operates, totaling 9 subsidiaries in GlovoApp Latam and 13 subsidiaries in GlovoApp EMEA.

Regarding transparency and information to stakeholders (arts. 12, 13, and 14 of the GDPR)

4. Indication that GLOVOAPP is the company that establishes the group policies, which are outlined in a document called "Legal Memo," used as a foundational document for the establishment of subsidiaries with modifications to adapt the document to the legality of each State. Thus, there exists a master contract with couriers, which can be modified to comply with the legislation of each country.

5. Indication that couriers sign the contract directly with the subsidiary company of the State in which the courier provides their services, except in Poland, where couriers are hired by each local store without the involvement of the Glovo group in that hiring.

6. Copy of the master contract with couriers and copies of contracts with couriers from Spain, with signing dates of February 2, 2018, December 2, 2019, and February 3, 2020, and from Italy, with signing dates of July 9, 2018, July 5, 2019, and February 12, 2020. In the Italian contracts, the parties to the contract are the courier (referred to as "collaboratore autonomo" or "collaboratore") and Foodinho SRL, as a subsidiary of GLOVOAPP. In the Spanish contracts, the parties to the contract are the courier (referred to as "Profesional Independiente" or "TRADE") and GLOVOAPP.

In the Italian contracts from 2018 and 2019, there are two clauses regarding the protection of personal data: in the first, it is only indicated that compliance with Italian Legislative Decree No. 196/2003 and the GDPR is ensured; and in the 2019 contract, it is added that the data may be processed by GLOVOAPP23 S.L., through Foodinho SRL, and it indicates the email address to exercise their data protection rights as toktok@glovoapp.com.

In the Italian contract of 2020, there is an entire section with information about the processing of personal data, which informs about:

- a. that the data controller is Foodinho SRL,

- b. the data collected and the nature of the processing,

- c. geolocation,
- d. the purpose and legal basis of the processing, based on the execution of the contract and legitimate interest,
- e. the manner in which the data will be processed,
- f. the communication of the data, which includes controlled, affiliated, or controlling companies of the data controller,
- g. the non-disclosure of the data,
- h. the retention and anonymization period of the data, which includes the legal obligations to retain data until the statute of limitations for possible offenses (10 years) or tax documents (5 years). After 10 years, they will be...

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anonymized. The data related to geolocation will be anonymized after 30 days, except for the pickup and delivery points, which will be anonymized after 10 years,

- i. description of data protection rights and contact information to exercise them through the email address glovers@glovoapp.com.

In the Spanish contracts, there is a clause "Thirteenth.- Data Protection Policy." In this clause, in the 2018 contract, it is stated that compliance with data protection legislation is ensured (the Organic Law 15/1999 on the Protection of Personal Data is mentioned), that the data controller is GLOVOAPP23, S.L., and that the data will not be transferred to third parties without the consent of the data subject, except for third parties subcontracted for the provision of services, whose access is expressly authorized by the parties.

In the data protection clause of the Spanish contract of 2019, it is added regarding the 2018 contract that the delivery person agrees to be rated by the users of the platform; it is also added that the data of the delivery persons may be transferred to companies of the GLOVO group in the country where they provide the service and to companies that provide services on behalf of GLOVOAPP; the email address glovers@glovoapp.com is also included as a channel to exercise data protection rights; and the transfer of delivery persons' data to platform users is included so that they can contact them during the service.

In the Spanish contract of 2020, information appears in a format similar to that of the Italian contract of 2020, with the following information:

- a. the data controller, which is GLOVOAPP23, S.L.,
- b. the data processed, indicating that they are the data necessary for the execution of the contract, which may contain data related to accidents for the purpose of communicating them to insurance companies,
- c. geolocation,
- d. the purposes and legal basis of the processing, which are the management of GLOVOAPP's activity, compliance with economic and tax obligations, conducting statistics with aggregated data, and sending questionnaires, surveys, and communications that are of interest to the delivery person.
- e. the mandatory nature of providing the data to carry out the delivery person's activity,
- f. the modality of processing, where it is indicated that the data will be processed by GLOVOAPP and its collaborators as data processors,
- g. international transfers, in the case that GLOVOAPP chooses service providers in countries outside the European Economic Area that comply with the security standards established by the European Commission,
- h. recipients, which may include data processors for advice and consultancy in accounting, tax, insurance, legal, and technical activities, and which will also include platform users and companies of the GLOVO group and IT service providers, which may be located outside the European Union while respecting the data protection regulations,

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i. retention period of the data, which will be the legally established period for legal formulation or defense. Data related to geolocation will be anonymized after 30 days, except for the point of collection and deliveries, which will be anonymized after 12 months,

j. description of data protection rights and contact information to exercise them through the email address legal@glovoapp.com.

7. Indication that the couriers access the technological platform by installing an app, which is installed on a mobile device; the device is provided by the courier themselves, and the installation of the app is mandatory to access the orders.

8. Indication that, during the execution of a delivery service, Glovo's technological platform obtains information about the location of the courier's mobile device through the installed app for two purposes: billing the courier and allowing the customer to locate their order only from the moment the courier picks up the order until it is delivered.

9. Indication that, since September 2019, information about the geolocation of couriers during the service of orders must be retained for a period of 10 years because it is the statute of limitations for crimes related to accidents, money laundering, tax offenses, drug trafficking... for which tax and fiscal authorities may require information. This is the general rule, which may be adapted for each country.

10. Screenshot of the authentication of the GLOVO web application for couriers, which contains a link to the privacy policy. During the inspection, this link is clicked, and a 7-page document titled "PRIVACY POLICY FOR MANDATARIES" appears, containing information such as the data controller or the data processed. During the inspection, a copy of this "PRIVACY POLICY FOR MANDATARIES" in Spanish (for GLOVOAPP23), "INFORMATIVA PRIVACY COLLABORATORI" in Italian (for Foodinho SRL), and "POLITYKA PRYWATNOSCI" in Polish (for Pizza Portal Restaurant) is also collected. The document "PRIVACY POLICY FOR MANDATARIES" contains an expanded version of the clause "Thirteenth.- Data protection policy" that appeared in the contract with a Spanish courier signed in 2020, which is expanded by specifying the data collected and the retention periods for each type of data based on the legal norm that mandates that retention period. The documents in Italian and Polish appear to be a similar specification of the data protection policy without the annex that specifies the retention periods of the data based on the legal norm that mandates that retention.

11. Copy of the Addendum to the data processing contract signed on May 20, 2018, between FOODINHO SRL (a subsidiary of the Glovo group in Italy), referenced as the data controller, and GLOVOAPP23, S.L., referenced as the data processor. The purpose of this addendum is to adapt the contract in Italy to the requirements of Article 28 of the GDPR, and it indicates that the processor is responsible for maintaining the necessary measures to ensure that the data obtained is not exposed to third parties by the controller and for complying with the specific requirements of the

data protection; while the data controller will be responsible for maintaining the necessary technical and organizational measures to ensure the security of the data of the contracting parties. This contract also states that the data processor must publish the contact details of its data protection officer on its website and inform the relevant supervisory authority. Similarly, the contract includes the need for the data processor to assist the data controller in fulfilling its responsibilities under Articles 12 to 23 and 32 to 36 of the GDPR.

12. On July 17, 2020, a document was submitted to the AEPD on behalf of GLOVOAPP23, S.L. with, among other things, the following observations regarding the minutes of the on-site inspection: The model used in Poland at the time of purchase is that the couriers are the local store employees. The proposal from GLOVOAPP23, S.L. and its subsidiary in Poland for the year 2020 is to also offer

users the service of mediation in delivery.

13. In the diligence captured on December 4, 2020, from the website <https://web.archive.org>, the following information is obtained:

Capture of the historical content of the website <https://glovoapp.com/es/glovers>, which is the page where couriers authenticate themselves, as of March 27, 2019, where there is a link to the “Terms and Privacy Policy.”

Regarding automated individualized decisions, including profiling (Art. 22 of the GDPR)

14. Document describing the excellence score system, which states that, in the score received by couriers known as “excellence score,” the following data, among others, are involved:

- a. the number of orders made during peak demand time slots in the last 28 days,
- b. feedback from stores on the last 50 orders, which can be positive, negative, or not rated,
- c. feedback from users on the last 50 orders, which can be positive, negative, or not rated,
- d. rejected or reassigned orders in the last 50 orders, although, in Spain, reassignment does not penalize,
- e. order history since the beginning of the collaboration.

15. Indication that the values used to calculate the excellence score can be manually modified, which will only be done if a courier files a complaint, usually through billing. During the inspection, it was verified that an operator accesses the database and, using a graphical SQL client, is able to modify the values in the table used to calculate the excellence score.

16. Indication that the excellence score is used exclusively in cases where, during a time slot, more couriers have signed up than are needed.

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They need to favor the delivery personnel with a better excellence score. However, GLOVOAPP representatives indicate during the inspection that, in practice, the excellence score limited the possibility of accessing a specific one-hour time slot, but not the rest of the hours of that day; although, currently, it does not limit de facto. During the inspection, the occupancy history of the time slots in Spain is obtained, and it is noted that the time slots are one hour long and that the average occupancy in 2018 was 87% and in 2019 was 83%, with the last time slot that was completely filled dating back to August 21, 2018.

17. Indication that the excellence score is not used to select which delivery person is assigned an order from those who are signed up for the time slot in which the order is requested; to select which delivery person is assigned the order, a module called “Jarvis” is used, which selects which delivery person is assigned an order taking into account metrics such as the type of vehicle, geolocation, the weight of the order, and the distance from the pickup point to the delivery point. It is also indicated that “Jarvis” is a proprietary development of GLOVOAPP23, S.L., which makes decisions regarding its development.

18. Verification during the on-site inspection that, when accessing the platform with the profile of Global LiveOps Project Manager (global manager of customer service), the time slots in which a delivery person will accept orders can be manually modified. It is also verified that a user with the profile of Account Manager cannot modify those time slots.

Regarding the record of processing activities (art. 30 of the GDPR)

19. Copy of the record of processing activities of GLOVOAPP23, S.L. as the controller for 2019-2020 in English, which includes data from 10 activities related to users and 13 activities related to delivery personnel. Each of these activities includes the following data: responsible entity, request for processing, purposes of processing, categories of data, categories of subjects, recipients of the data, international transfers, data retention period, and description of security measures.

Regarding the need for a data protection impact assessment (art. 35 of the GDPR)

20. Indication that the technological platform, in which the data of the delivery personnel is used, is utilized by all subsidiaries of GLOVOAPP, and it has been the same platform since GLOVOAPP began

its activity in 2015, although it has undergone several evolutions since its inception.

21. Copy of a preliminary analysis report prior to the privacy impact assessment, dated November 2019, in which it is examined, first, whether there is a high risk to rights and freedoms and, then, whether the processing aligns with any of those listed as types of processing operations that require a data protection impact assessment published by the AEPD. In this report, it is concluded that the data processing of the delivery personnel does not require a data protection impact assessment because it uses professional information related to objective data.

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service and because the data processing does not align with any of the types of processing operations that require a data protection impact assessment published by the AEPD.

Regarding the designation and notification of the data protection officer (Art. 37 of the GDPR)

This infringement was already resolved within the sanctioning procedure PS/00417/2019, in which the following proven facts are considered:

22. GLOVOAPP did not have a designated Data Protection Officer.

23. GLOVOAPP claimed that its activity of processing personal data was exempt from the obligations established in Articles 37 of the GDPR and 34 of the LOPGDD, but nevertheless, it had a Data Protection Committee that carried out the functions of a Data Protection Officer as described in Article 39 of the GDPR.

24. It was noted that GLOVOAPP, after the initiation of the aforementioned sanctioning procedure on January 13, 2020, communicated on January 31, 2020, to the Spanish Agency for Data Protection, the appointment of its Data Protection Officer. In this procedure PS/00417/2019, on April 1, 2020, the director of the AEPD resolved to impose a fine of €25,000 on GLOVOAPP23, S.L. for an infringement of Article 37 of the GDPR.

Regarding data protection by design and by default (Art. 25 of the GDPR), regarding the security of processing (Art. 32 of the GDPR), and regarding transfers of personal data to third countries or international organizations (Chapter V of the GDPR)

25. Indication that the application and data servers used by GLOVO's technological platform are contracted with ***COMPANY.1.

26. Contract with ***COMPANY.1. dated December 14, 2016, indicating that the data will be processed on servers located in ***LOCATION.1, ***LOCATION.2, or ***LOCATION.3.

27. Document with the Backup strategy, in which it is noted that it is carried out within the service provided by ***COMPANY.1., with its main installation and backups in ***COUNTRY.1 and copies in ***LOCATION.2, which may be transferred to external cloud storage.

28. Copy of the contract between GLOVOAPP23, S.L., and a delivery person in Spain dated February 2, 2018, indicating that the data may be transferred to service providers of GLOVOAPP23, S.L. without specifying the geographical location.

29. Copy of the "PRIVACY POLICY FOR MANDATARIOS," accessible from the page where delivery persons authenticate, which in its section "8. International data transfers" indicates the possibility of transferring the data.

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of the delivery person in the event that GLOVOAPP23, S.L. chooses service providers outside the European Economic Area (examples include the United States and Peru), provided that they comply with the standard contractual clauses and standards set by the European Commission and process the data according to the instructions of GLOVOAPP23, S.L.

30. Indication that GLOVOAPP23, S.L. has customer service contracts (contact center) with eleven

companies that serve different geographical areas, including a company located in Peru that provides services to citizens in Spanish territory.

31. Copy of the data processing contract between GLOVOAPP23, S.L. and a service provider that was indicated during the inspection to be located in Peru. This contract states the clauses regarding how the data from the main contract must be processed, and specifies, among others, clauses that indicate that the data may not be transferred to third countries or third parties without the authorization of GLOVO, that the processed data are contact data, and includes a table with the technical and organizational security measures that must be applied.

32. Training schedule, indicated during the inspection to be for a customer service company located in Bosnia-Herzegovina, which includes three weeks of training. A copy of the text provided to the contact center for receiving calls is also included, which is in English, Spanish, Italian, and Polish; the text in Spanish is as follows: "Hello, thank you for contacting Glovo. We inform you that, for security reasons and to improve the quality of our services, this call may be recorded. You can obtain all the information about the processing of your data and your rights by consulting our Privacy Policy at triple w dot glovoapp dot com."

33. Copy of the access control map showing that there are several user profiles with differentiated permissions. These user profiles depend on the department, sub-department, and whether or not they are located in the European Union.

34. Indication that the customer service uses systems from other providers: ***APP.1 and ***APP.2, which provide the service to GLOVOAPP through web applications; the ***APP.1 application allows agents to access communications with customers (chats, emails, and calls); calls are made through the ***APP.2 application, which is integrated within ***APP.1; from ***APP.1, it is also possible to access the technological platform of GLOVO via links, provided that the operator is authenticated on the technological platform of GLOVO.

35. Verification during the inspection that, by accessing the ***APP.2 application with a "manager" profile user, it is only possible to access information on calls made in the last 92 days. In this verification, the information that can be observed for each call is as follows: service handling the call, agent, contact number, province, date, time, duration, status, and recording of the call.

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36. Indication that customer service agents have access to change order data on the Glovo technological platform in order to address customer requests and complaints.

37. Verification during the on-site inspection that, with a user who had previously authenticated to the Glovo technological platform, upon accessing the application ***APP.1 with an agent profile from Spain, it is possible to access interactions held with customers from Spain; one of the interactions is accessed and it is verified that, from a link, access to the platform is available to make changes to the order.

38. Indication that, for all users of the Glovo technological platform, including customer service agents, a profile is defined that allows them to access either data from countries in the European Union or from countries outside the European Union; this depends on whether they have the "EU User Access" permission activated.

39. Verification during the on-site inspection, with a user who had previously accessed the Glovo technological platform with a customer service teleoperator profile from outside the European Union, that accesses the application ***APP.1 and, from it, accesses the data of an order on the Glovo technological platform; accesses the list of couriers in the Italian city of Bari and a list appears with the following data: courier identifier, city, type of transport, number of orders for today, and time that has passed since the last order; clicks on the identifier of one of the couriers to access their data and the following error message appears: "This Courier is based in the EU so additional data privacy protections apply."

40. Verification during the on-site inspection that users of the technological platform that two users

from Italy and Poland have the "EU User Access" permission checked, and that two users from Argentina and Peru do not have that permission checked.

41. Statement by representatives of GLOVOAPP that a modification of the platform is under development to establish access profiles by defining geographic regions by countries called "city group permissions."

42. Verification that, within the screen used to manage permissions, there is a section called "City Groups."

43. Indication that the profile LiveOps Project Manager Global has access to information from all countries. And it is verified during the on-site inspection that they can access the data of a courier from Spain.

44. Verification during the on-site inspection of the following: The "EU User Access" permissions are removed from a user with the LiveOps Project Manager Global profile. Then, the user accesses the technological platform again and it is verified that they see order information that includes the city of Milan (Italy), but when they click on the identifier of a courier from an order in Milan, the message appears "This Courier is based in the EU so additional data privacy protections apply" without showing any data of the courier. When they click on the identifier of a user,

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there is little information (account creation date, devices used, preferred city, and indication of whether it is staff).

45. Verification during the on-site inspection that, when accessing the technological platform with a "Marketing" user profile in Spain, it only has access to options related to promotions, and that no menu options are presented from which information about the delivery personnel can be accessed.

46. Verification during the on-site inspection that a user with the Global LiveOps Project Manager profile can modify the time slots assigned to a delivery person, while a user with the Account Manager profile cannot modify them.

47. Verification during the on-site inspection that a user with the Account Manager profile in Spain can access data of a delivery person from Spain and another delivery person from Italy. Representatives of GLOVOAPP state that an account manager can handle accounts of several companies in various countries.

48. Indication that GLOVOAPP23, S.L. does not have any security certification, but that they have had to conduct audits that include security due to being financed through funding rounds. A copy of a letter dated April 30, 2019, is provided, containing the results of an audit that includes points for improvement related to privacy and data protection.

49. On March 30, 2020, an email was received at the AEPD on behalf of GLOVOAPP23, S.L. providing the following documentation: Video recordings submitted showing the functionality operating on the Glovo technological platform that allows managing access profiles by geographical regions by countries and/or cities, called "city group permissions."

50. On May 18, 2020, an email was received at the AEPD providing, among other things, the following information: Statement that the access criteria to information from various countries by a user has been refined since the implementation of the system called "city group permissions," strictly limiting that access by country; allowing access solely and exclusively by country and by functions when such access is required for the performance of specific work tasks and depending on the position, thus rendering the previously mentioned "EU User Access" system ineffective and replaced by country-by-country access, and not EU - non-EU.

Finally, it was verified by the services of the Subdirector General for Data Inspection that in the Spanish document "Privacy Policy for Mandatarios," it is established in clause 4 "Purpose and legal basis for processing," that "The Data will be processed exclusively to comply with the contractual relationship established through this Contract and, in particular: (...)

- During the period in which the MANDATARIO provides its services through the Glovo Platform, it

agrees to be evaluated by users and
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establishments that interact with the Platform in relation to the provision of their services. These evaluations will be collected by Glovo for the purpose of developing metrics on the evaluations of the MANDATARIO by users and establishments that interact with the Platform.

(...)

Furthermore, in clause 5 “Nature of the Provision of Data” of this document, it is stipulated that: “The Data requested by GLOVO is mandatory and necessary to carry out the activity. The refusal of the MANDATARIO, either total or partial, to provide the requested data will result in the impossibility for GLOVO to establish the contractual relationship for which the Data is collected.”

On its part, clause 7 “Metrics” of the aforementioned Policy states that: “Service metrics are developed to control quality. These metrics do not take into account aspects of the private sphere of the person, but rather objective data related to the execution of the contract. It is also informed that:

a) In relation to profiles and evaluations:

- No profiles are created nor evaluations of individuals are made.
- Both the user and Glovo evaluate the quality of the service.
- All metrics obtained by Glovo refer to the service.

b) In relation to automated decision-making with legal effects:

- No automated decisions are made.
- All parameters to be considered have been generated manually.
- All parameters and metrics refer to the service and the execution of the contract.
- No profiles are created.
- Attributes of personality or the non-professional sphere of the MANDATARIO are not taken into account.
- The results depend on prior and voluntary actions of the MANDATARIO.
- The results are manually modifiable.
- The results can be corrected in case there has been an error.
- The MANDATARIO is not prevented from exercising a right.
- The MANDATARIO is not prevented from accessing a good or a service.
- The MANDATARIO is not prevented from being part of a contract. (...)

In similar terms, the Privacy Policy for Mandatarios is expressed in Italian, which also includes a reference that the data controller is Foodinho SRL.

FOURTH: On January 29, 2021, the Director of the AEPD adopted a draft decision to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on January 30, 2021, this draft decision was transmitted through the IMI system and the interested authorities were informed that they had four weeks from that moment to raise pertinent and justified objections. Within the deadline for this purpose, the control authorities of

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Italy and Poland presented their relevant and substantiated objections regarding the provisions of Article 60 of the GDPR.

This draft decision was notified to GLOVOAPP in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) on February 10, 2021, as evidenced by the acknowledgment of receipt in the file.

FIFTH: On June 3, 2021, the Director of the AEPD adopted a revised draft decision to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on June 4,

2021, this revised draft decision was transmitted through the IMI system, and the interested authorities were informed that they had two weeks from that moment to submit relevant and substantiated objections. Within the deadline for this purpose, the interested supervisory authorities did not present relevant and substantiated objections regarding this, so it was considered that all authorities agreed with this revised draft decision and were bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR.

SIXTH: On June 24, 2021, the Director of the Spanish Data Protection Agency issued an agreement to initiate sanctioning proceedings against GLOVOAPP, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of the GDPR; for the alleged infringement of Article 35 of the GDPR, classified in Article 83.4 of the GDPR; for the alleged infringement of Articles 25 and 32 of the GDPR, classified in Article 83.4 of the GDPR; and for the alleged infringement of Article 5.1.e) of the GDPR, classified in Article 83.5 of the GDPR.

The initiation agreement was notified in accordance with the rules established in the LPACAP on July 5, 2021, as evidenced by the acknowledgment of receipt in the file.

SEVENTH: On July 7, 2021, GLOVOAPP submitted a document requesting an extension of the deadline to present allegations.

EIGHTH: On July 9, 2021, the instructing body agreed to extend the requested deadline by up to five days, in accordance with the provisions of Article 32.1 of the LPACAP.

The extension agreement was notified to GLOVOAPP on July 9, 2021, as evidenced by the acknowledgment of receipt in the file.

NINTH: On July 24, 2021, this Agency received, in due time and form, a document from GLOVOAPP in which it presented allegations against the initiation agreement and, after stating what was appropriate to its rights, concluded by requesting that the sanctioning proceedings initiated against GLOVOAPP be archived.

In summary, GLOVOAPP claimed that it provided all the information established by the regulations to the interested parties, that in no case did GLOVOAPP make automated decisions with the information obtained from the couriers in the context of the treatments related to order management, nor did it exclude human intervention in its procedures, nor did it produce legal effects for the rights and freedoms of the couriers. It also stated that it had well-implemented organizational and technical measures to ensure an adequate level of security relative to the risk and that it had implemented strict access controls to the data of couriers in Spain.

The allegations were accompanied by the following documents:

- DOCUMENT 01: Information on the operation of Glovo that the courier accesses in the pre-contractual phase.
- DOCUMENT 02: Application form for registration as a courier.
- DOCUMENT 03: Terms and conditions accepted by the candidate courier in the pre-contractual phase.
- DOCUMENT 04.1: Presentation used in the in-person information session on the use of the APP that was given to courier candidates until mid-2019.
- DOCUMENT 04.2: Screenshot of the message received by the candidate to be a courier since mid-2019.
- DOCUMENT 05: Screenshot of the mandatory tutorial to be completed in the pre-contractual phase explaining how to reserve hours.
- DOCUMENT 06: Screenshot of the mandatory tutorial to be completed in the pre-contractual phase explaining how an order works.
- DOCUMENT 07: Message that appears at the end of the tutorial by the candidate courier.
- DOCUMENT 08.1: Registration message in the online tutorial providing information to courier candidates.
- DOCUMENT 08.2: Invoice from ***COMPANY.2, the company that manages the online tutorial for courier candidates.
- DOCUMENT 09: Frame from the tutorial video whose latest version has been available on YouTube

since August 28, 2019 (<https://youtu.be/HZBqOezoeew>) showing a screen of the application where the courier is geolocated.

- DOCUMENT 10: Frame from another tutorial video whose latest version has been available on YouTube since August 28, 2019 (https://youtu.be/_Z2LlaVRWVA) also showing a screen of the application where the courier is geolocated.

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- DOCUMENT 11 - Frame from another tutorial video whose first version is prior to September 2019 and whose latest version has been available on YouTube since September 29, 2020

(https://youtu.be/hIAHkN7Kh_Q) in which the operation of hour reservations is explained.

- DOCUMENT 12 - Frame from the same tutorial video dedicated to hour reservations, indicating that services performed during peak hours contribute to increasing the excellence score.

- DOCUMENT 13 - Frame from the same video indicating the process of canceling a reserved hour, which must be done manually within the time slot reservation system, in addition to the reservation itself.

- DOCUMENT 14 - Frame from the video that describes the order assignment system based on geolocation. This video also explains the different types of orders. <https://youtu.be/fHVJVJ4GXNyo>

- DOCUMENT 15.1 - Transcript of the tutorial video explaining the operation of hour reservations and the excellence score.

- DOCUMENT 15.2 - Transcript of the tutorial video explaining the operation of orders.

- DOCUMENT 16.1 - Information about the excellence score accessed from the tutorial that couriers must complete as a requirement before registering as couriers for GLOVOAPP. This information is available in the Help Center:

<https://delivery.glovoapp.com/es/gloveando/que-es-el-sistema-de-excelencia/> and in the FAQs:

<https://delivery.glovoapp.com/es/faq/el-sistema-de-excelencia>

- DOCUMENT 16.2 - Information on how to make hour reservations.

- DOCUMENT 16.3 - Additional information on hour reservations.

- DOCUMENT 16.4 - Information on peak hours and how they influence the excellence score.

- DOCUMENT 16.5 - Information on the areas with the most orders in each city so that couriers can obtain more orders and a higher excellence score.

- DOCUMENT 17 - Additional information on the truth or falsehood of the myths arising in relation to the excellence score. Includes a link to the video about myths of the excellence score Part 1 available at https://youtu.be/qRXyZ0S1c_g.

- DOCUMENT 18 - Second part of Additional information on the truth or falsehood of the myths arising in relation to the excellence score.

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- DOCUMENT 19 - Detailed information on the operation of the Jarvis module, used in order assignment.

- DOCUMENT 20 - Screenshots from the GLOVOAPP application and the courier's mobile operating system demonstrating that the application informs of the need to access geolocation data and requests authorization. It also provides instructions for the courier to configure the application and access geolocation data.

- DOCUMENT 21 - Application help. This document contains screenshots of the help pages of the GLOVOAPP application where the information provided about the excellence score can be seen. It also provides information on how to obtain more orders.

- DOCUMENT 22 - Main page of the courier help center on the GLOVOAPP website.
- DOCUMENT 23 - Screenshots from the application, showing warnings and informational texts throughout its different screens and functions.
- DOCUMENT 24 - Model of a contractual resolution document informing of the details of the data processing that will take place once the contractual relationship has ended.
- DOCUMENT 25 - Sectoral agreement on good practices with the main courier associations.
- DOCUMENT 26 - News about the adoption of the sectoral agreement on good practices with the main courier associations.
- DOCUMENT 26.1 - Audit report of processes, by A.A.A., analyzing the internal procedures of GLOVOAPP, with management methods for both orders and suppliers.
- DOCUMENT 27 - Blog article from Glovo warning about the risks arising from the reassignment of orders.
- DOCUMENT 28 - Explanation of the order reassignment process.
- DOCUMENT 29 - Certificate signed by B.B.B., ***POSITION.1 of GLOVOAPP, showing the relationship between the excellence score and the number of orders and hours worked by a courier.
- DOCUMENT 30 - Checklist used by GLOVOAPP to analyze the need for a impact assessment.
- DOCUMENT 31 - Simple copy of the information registered in the Commercial Registry of Barcelona regarding GLOVOAPP.

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- DOCUMENT 32 - List of resolutions of the AEPD
- DOCUMENT 33 - Security document from 2015, updated in 2016 and 2017, regulating access control to the data of the couriers
- DOCUMENT 34 - Diagram of the data lifecycle of the courier
- DOCUMENT 35 - Article signed by C.C.C. regarding the need to renew the GDPR

TENTH: On October 11, 2021, the instructing body of the procedure agreed to open a period for the practice of evidence, which was notified to GLOVOAPP on October 21, 2021, in the following terms:

“1. The documentation from the IMI that has led to the preliminary investigation proceedings, the documents obtained and generated by the Inspection Services before GLOVOAPP23, S.L., the Report of preliminary Inspection proceedings that are part of the file E/10077/2019, and the documentation from the IMI regarding the draft decision and the revised draft decision are considered reproduced for evidentiary purposes.

2. Likewise, the allegations to the initiation agreement PS/00020/2021 presented by GLOVOAPP23, S.L. on July 24, 2021, and the accompanying documentation are considered reproduced for evidentiary purposes.”

ELEVENTH: On October 27, 2021, the instructing body of the procedure formulated a resolution proposal, in which it proposed that the Director of the AEPD issue a warning to GLOVOAPP23, S.L., with NIF B66362906, for the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of the GDPR; that GLOVOAPP23, S.L. be ordered to include in the privacy policy for representatives, as well as in all documentation directed to the couriers, that automated individual decisions were being made; that GLOVOAPP23, S.L. be ordered to carry out a data protection impact assessment regarding the processing of the couriers' data within a period of 60 days; and that GLOVOAPP23, S.L. be sanctioned for the alleged infringement of Articles 32 and 25 of the GDPR, classified in Article 83.4 of the GDPR with an administrative fine of FIVE HUNDRED FIFTY THOUSAND EUROS (€550,000). On November 5, 2021, the aforementioned resolution proposal was notified, as recorded in the acknowledgment of receipt in the file.

TWELFTH: On November 8, 2021, GLOVOAPP submitted a written request for an extension of the deadline to present allegations to the resolution proposal.

THIRTEENTH: On November 17, 2021, the instructing body agreed to extend the requested deadline by up to five days, in accordance with the provisions of Article 32.1 of the LPACAP.

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The extension agreement was notified to GLOVOAPP on November 17, 2021, as evidenced by the acknowledgment of receipt in the file.

FOURTEENTH: On November 26, 2021, a written submission from GLOVOAPP was received by this Agency, in due time and form, in which it presented allegations against the proposed resolution and, after stating what was deemed appropriate, concluded by requesting the archiving of the sanctioning procedure initiated against GLOVOAPP.

In summary, GLOVOAPP claimed that it did not make automated decisions (therefore it was not obligated to inform the couriers about them), that it had not been proven that there was indiscriminate access to the personal data of the couriers (therefore the measures adopted by the company were appropriate), that there had been no deceit or fault on the part of GLOVOAPP (thus eliminating the possibility of attributing an infringement to the company), and that there was also insufficient evidence of infringement to attribute it to GLOVOAPP.

It was also indicated that the allegations referred to the hour reservation system that was in effect at the time of the inspection. However, following the entry into force of the so-called Rider Law (by means of Royal Decree-Law 9/2021, of May 11, which modifies the consolidated text of the Workers' Statute, approved by Royal Legislative Decree 2/2015, of October 23, to guarantee the labor rights of individuals engaged in delivery in the context of digital platforms), the hour reservation system (excellence score) has been replaced by another system based on the order of arrival of the courier and that applies the principle of "first come, first served."

Along with the allegations, the following was attached:

- DOCUMENT 1 - Expert report prepared by expert D.D.D., registration number XXX of the Official College of Computer Engineering of Catalonia, regarding the percentage of manual interventions that GLOVOAPP had made in the "excellence score" hour reservation system in the period prior to its withdrawal.

FIFTEENTH: On December 3, 2021, the Director of the AEPD adopted a draft decision to resolve the sanctioning procedure. Following the process established in Article 60 of the GDPR, on the same day it was uploaded to the IMI system, and the interested supervisory authorities were informed that they had four weeks from that moment to submit relevant and justified objections. Within the deadline for this purpose, the supervisory authority of Poland submitted its relevant and justified objections for the purposes provided in Article 60 of the GDPR.

SIXTEENTH: On January 5, 2022, the Director of the AEPD adopted a revised draft decision to resolve the sanctioning procedure. Following the process established in Article 60 of the GDPR, on the same day it was uploaded to the IMI system, and the interested supervisory authorities were informed that they had two weeks from that moment to submit relevant and justified objections. Within the deadline for this purpose, the supervisory authority of Poland submitted its objections.

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relevant and reasoned objections for the purposes provided for in Article 60 of the GDPR.

SEVENTEENTH: On April 26, 2022, the Director of the AEPD issued a resolution declaring the expiration of the sanctioning procedure number PS/00020/2021.

EIGHTEENTH: On May 18, 2022, the Director of the AEPD adopted a draft decision to initiate a sanctioning procedure. Following the process established in Article 60 of the GDPR, on May 25, 2022, this draft decision was transmitted through the IMI system, and the interested authorities were

informed that they had four weeks from that moment to submit relevant and reasoned objections. The processing period of the present sanctioning procedure was automatically suspended during these four weeks, in accordance with the provisions of Article 64.4 of the LOPDGDD.

Within the deadline for this purpose, the interested control authorities did not present relevant and reasoned objections in this regard, so it was considered that all authorities agreed with this draft decision and were bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR. This draft decision was notified to GLOVOAPP in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) on May 27, 2022, as evidenced by the acknowledgment of receipt in the file.

NINETEENTH: On June 16, 2022, GLOVOAPP submitted a document requesting a copy of the file.

TWENTIETH: On June 22, 2022, the instructing body of the procedure agreed to send GLOVOAPP a copy of the file. The aforementioned agreement was notified to GLOVOAPP on June 22, 2022, as evidenced by the acknowledgment of receipt in the file.

TWENTY-FIRST: On October 10, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate a sanctioning procedure against GLOVOAPP, in accordance with the provisions of Articles 63 and 64 of the LPACAP, in order to issue a warning for the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of the GDPR, and to impose a fine of 550,000 euros for the alleged infringement of Articles 25 and 32 of the GDPR, classified in Article 83.4 of the GDPR, in which it was indicated that GLOVOAPP had a period of ten days to submit allegations. This initiation agreement, which was notified to GLOVOAPP in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was acknowledged on October 21, 2022, as evidenced by the acknowledgment of receipt in the file.

TWENTY-SECOND: On October 21, 2022, GLOVOAPP submitted a document requesting an extension of the deadline to present allegations.

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TWENTY-THIRD: On October 25, 2022, the instructing body of the procedure agreed to extend the deadline requested for a maximum of five days, in accordance with the provisions of Article 32.1 of the LPACAP.

The aforementioned agreement was notified to GLOVOAPP on October 26, 2022, as evidenced by the acknowledgment of receipt in the file.

TWENTY-FOURTH: On November 14, 2022, this Agency received, in a timely manner, a document from GLOVOAPP in which it presented allegations against the initiation agreement, in which, in summary, it stated that the infringement for violation of Article 13 of the GDPR and the infringement for violation of Articles 25 and 32 of the GDPR were time-barred; that GLOVOAPP did not make automated individual decisions that should be informed to the couriers, therefore there was no infringement of Article 13 of the GDPR; that there was no indiscriminate access to the couriers' data, therefore there was no infringement of Articles 25 and 32 of the GDPR; that the subjective element of the administrative infringement of Articles 25 and 32 of the GDPR did not exist; that it perceived an abuse of rights by this Agency and that GLOVOAPP reserves the right to claim patrimonial liability from the Administration; that the administrative act is null because there are no subjective elements of the infringement nor is there evidence that undermines the presumption of innocence of GLOVOAPP, nor are the principles of legality or presumption of innocence fulfilled; and it accompanies the allegations with a series of subsidiary commitments from GLOVOAPP in case the previous allegations were not upheld.

For its part, it has also been stated in the allegations to the initiation agreement of the present sanctioning procedure that Glovoapp23, S.L. transformed its corporate form to a public limited company, according to the deed granted before the Notary of Barcelona, Mr. Rafael de Cordoba Benedicto, on December 21, 2021, no. 3,993 of his protocol.

TWENTY-FIFTH: On December 20, 2022, the instructing body of the sanctioning procedure formulated a proposal for resolution, in which it proposed that the Director of the AEPD issue a warning to GLOVOAPP23, S.L., with NIF B66362906, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, and that it be sanctioned with a fine of €550,000 (five hundred fifty thousand euros) for the infringement of Articles 25 and 32 of the GDPR, classified under Article 83.4 of the GDPR. It was indicated that GLOVOAPP had a period of ten days to present allegations. This proposal for resolution, which was notified to GLOVOAPP in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on December 30, 2022, as evidenced by the acknowledgment of receipt in the file.

TWENTY-SIXTH: On December 30, 2022, GLOVOAPP submitted a document through which it requested an extension of the deadline to present allegations.

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TWENTY-SEVENTH: On January 9, 2023, the instructing body of the procedure agreed to the extension of the deadline requested for a maximum of five days, in accordance with the provisions of Article 32.1 of the LPACAP.

The aforementioned agreement was notified to GLOVOAPP on the same day, as evidenced by the acknowledgment of receipt in the file.

TWENTY-EIGHTH: On January 23, 2023, a written submission from GLOVOAPP was received by this Agency, in due time and form, in which it presented allegations against the proposed resolution, stating that, in summary, the infringement of Articles 25 and 32 of the GDPR was time-barred; that GLOVOAPP did not make automated decisions that it should inform the couriers about, thus there was no infringement of Article 13 of the GDPR; that GLOVOAPP did not infringe Articles 25 and 32 of the GDPR nor have such infringements been sufficiently evidenced; that the sanction for the infringement of Articles 25 and 32 of the GDPR is disproportionate; and it accompanies the allegations with a series of subsidiary commitments from GLOVOAPP in case the previous allegations were not upheld.

The previous allegations were accompanied by the following documents:

- DOCUMENT 1: Extract from the independent audit report prepared by the auditor DELOITTE, S.L., titled "Annual Accounts for the year ended December 31, 2021, and Management Report, along with the Independent Audit Report."
- DOCUMENT 2: Financial statements of Glovo closed as of December 31, 2022
- DOCUMENT 3: Minutes of the conclusion of the consultation period and agreement in the file for the temporary suspension of contracts and reduction of working hours of the company GLOVOAPP, S.L.

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: During the on-site inspection at GLOVOAPP's headquarters, it was indicated that "Glovo" is a trademark owned by GLOVOAPP and that within its corporate purpose is the management and operation of the technological platform, which is a supply channel involving three parties: end customers, couriers (referred to as "riders"), and local stores.

SECOND: GLOVOAPP is responsible for the data processing of couriers located in Spain since, according to the definition in Article 4.7 of the GDPR, it is the entity that determines the purposes and means of the processing carried out, as stated in its "Privacy Policy for couriers"

(<https://glovoapp.com/es/legal/privacy-couriers/>): "The data controller is Glovoapp23, S.L., located at Carrer Pallars 190, 08005 Barcelona, with CIF B66362906, a company that offers services to users and collaborators through its website (www.glovoapp.com) and/or mobile application."

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Regarding the data of the couriers located in Italy, Foodinho S.r.l. (a subsidiary of the Glovo group in Italy) and GLOVOAPP have signed an Addendum to the data processing contract, dated 25/05/2018, which states that Foodinho S.r.l. is the data controller and GLOVOAPP is referenced as the data processor.

THIRD: In the copy of the contract with a courier in Spain, dated February 2, 2018, provided during the aforementioned on-site inspection, in the clause "Thirteenth.- Data protection policy," it is stated that: "13.2. In accordance with Article 5 of Organic Law 15/1999, of December 13, on the Protection of Personal Data, the Independent Professional is informed that the personal data provided for the purpose of entering into and executing this TRADE Contract will be subject to automated processing and will become part of the files owned by Glovo, with GLOVOAPP23, S.L. being the responsible party for the file, duly registered in the General Registry of the Spanish Agency for Data Protection, for the purposes inherent to the management of the service offered through the online platform (that is, to provide couriers with any information they request and to manage the sending of commercial and promotional communications that may be of interest to them)." It is also indicated that the data will not be transferred to third parties without the consent of the interested party, except for third parties subcontracted for the provision of services, whose access is expressly authorized by the parties. No further information is provided regarding the processing of the personal data of the couriers.

FOURTH: In the copy of the contract with a courier in Spain, dated December 2, 2019, provided during the aforementioned on-site inspection, in addition to the information mentioned in the proven fact third, in the clause "Thirteenth.- Data protection policy," it is stated that: "13.1. (...) Likewise, the TRADE expressly accepts that it may be rated by other users of the Platform, that is, by users of the same as well as by the businesses that use the Platform. Since users and establishments are the main beneficiaries of the services provided by the TRADE through the Platform." It is also added that the data of the couriers may be transferred to companies of the GLOVO group in the country where they provide the service and to companies that provide services on behalf of GLOVOAPP; it also includes the email address glovers@glovoapp.com as a channel to exercise data protection rights; and it includes the transfer of the couriers' data to the platform users so that they can contact them during the service. No further information is provided regarding the processing of the personal data of the couriers.

FIFTH: In the copy of the contract with a courier in Spain, dated February 3, 2020, provided during the aforementioned on-site inspection, in the clause "Thirteenth.- Data protection policy," it is stated that: "The parties declare that they are aware of and undertake to comply with the applicable Spanish and European legislation at all times throughout the contractual relationship.

Regarding the data of the TRADE processed by GLOVO:

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1. Data controller

The data controller is Glovoapp23, S.L., located at Carrer Pallars 190, 08005 Barcelona, with CIF B66362906, a company that offers services to users and collaborators through its website (www.glovoapp.com) and/or mobile application.

2. Data processed

The data of the TRADE collected through this contract and the computer tools that GLOVO provides to the TRADE prior to its subscription are limited to the data necessary to execute the contractual relationship between the Parties and are necessary for its proper development, hereinafter referred to as the Data.

In the processing of the TRADE's data, there may be sensitive data, such as those related to accidents suffered during the activity, to be communicated to the insurance companies that GLOVO may have contracted.

3. Geolocation

By using the application provided by GLOVO for the execution of the contractual relationship and, therefore, to develop the activity, GLOVO may receive the geolocation data of the TRADE in the event that the TRADE has activated this function directly from their mobile phone.

GLOVO will use the Data obtained solely to execute the contractual relationship and to share it with the user whose order the TRADE has accepted to carry out, so that the user can contact the TRADE in case there is any incident with it.

4. Purpose and legal basis for processing

The Data will be processed exclusively to fulfill the contractual relationship established through this Contract and, in particular:

- Manage the activity of GLOVO
- Comply with remuneration, accounting, tax, and economic obligations, as well as to fulfill the other obligations inherent to the relationship between the Parties
- Carry out statistical and economic calculations based on aggregated and non-identifiable data
- Sending questionnaires, anonymous and voluntary, as well as surveys, contests, and communications of interest to the TRADE, aimed at assessing the quality of the relationship and the opinions that the TRADE may have

5. Nature of the provision of the Data

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The data requested by GLOVO is mandatory and necessary to carry out the activity. The total or partial refusal of the TRADE to provide the requested data will result in GLOVO being unable to establish the contractual relationship for which the data is collected.

6. Processing modalities

The data will be processed by GLOVO and its external collaborators, as data processors, for the execution of activities related to the administration and management of information systems, as well as by the administrator of GLOVO's systems and database.

(...)

10. Rights of the data subjects

THE TRADE may:

- 1) Obtain confirmation regarding the existence or non-existence of their data in GLOVO's systems
- 2) Know the purposes of the processing and its modalities, the recipients, and the retention period
- 3) Obtain the rectification or deletion of the data and, where applicable, the limitation of processing
- 4) Object to the processing
- 5) Where applicable, receive the data in a structured and readable format on an automatic device and transmit it to another data controller
- 6) File a complaint directly with the relevant supervisory authority

The aforementioned rights may be exercised by sending an email to the address legal@glovoapp.com.

In relation to the personal data that the TRADE may receive from GLOVO, as the data controller, in the development of the established contractual relationship, the TRADE, as the data processor, agrees to:

- Not process the data for any purpose other than fulfilling the obligations acquired under this Contract (i.e., contacting the user for order delivery, contacting GLOVO staff for incident management, ...)
- Respect, at all times, the confidentiality of the data to which it has access, without revealing it to third parties or using it for purposes not provided for in this Contract without the prior written authorization of GLOVO
- Apply appropriate security measures to the data processed and to the systems used for its

processing and storage (i.e., password protection, access controls to the systems according to the need for processing, ...)

- Not engage subprocessors without the prior written authorization of GLOVO, having previously demonstrated that the subprocessors comply with applicable regulations and showing that there is a contract between the parties that protects the data to be processed by the subprocessor in an equal or better manner

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- Cooperate with GLOVO in the event that it receives requests from users of the responsible party for the exercise of the rights of the affected individuals recognized in the applicable regulations at any given time. To this end, the TRADE will communicate, within a maximum period of 12 hours, any request it receives from users that affects GLOVO.
- Cooperate with GLOVO for the purpose of demonstrating compliance with necessary security measures, facilitating GLOVO's conduct of audits on the systems used by the TRADE upon GLOVO's first request or collaborating in the event that the control authority conducts actions on GLOVO's systems.
- Communicate in writing, within a maximum period of 12 hours, the existence of a security breach in the systems used by the TRADE.
- Delete and/or return, as requested by GLOVO, all data provided by GLOVO at the moment the contractual relationship between the Parties ends.

SIXTH: During the on-site inspection conducted by this Agency, GLOVOAPP indicated that the couriers access the technological platform by installing an app, which is installed on a mobile device; the device is provided by the courier themselves, and the installation of the app is mandatory to access the orders.

SEVENTH: During the on-site inspection conducted by this Agency, GLOVOAPP indicated that, during the execution of a service for an order, the Glovo technological platform obtains information about the location of the courier's mobile device from the app installed on it for two purposes: billing of the courier and allowing the customer to locate their order only from the moment the courier picks up the order until it is delivered.

EIGHTH: During the on-site inspection conducted by this Agency, GLOVOAPP indicated that, since September 2019, information about the geolocation of couriers during the service of orders must be retained for a period of 10 years because it is the statute of limitations for crimes related to accidents, money laundering, tax crimes, drug trafficking... for which tax and fiscal authorities may request information.

NINTH: During the on-site inspection conducted by this Agency, it was verified that upon opening the GLOVOAPP courier web application, there was a link to the privacy policy, which displayed a 7-page document titled "PRIVACY POLICY FOR AGENTS." In this document, in addition to the data included in the aforementioned contract with a courier from Spain, dated February 3, 2020, among other information, it is added that:

"7. Metrics

Service metrics are developed to monitor quality. These metrics do not take into account aspects of the private sphere of the individual, but rather objective data related to the execution of the contract. It is also stated that:

a) Regarding profiles and evaluations:

- No profiles are created nor evaluations of individuals are conducted.
- Both the user and Glovo evaluate the quality of the service.
- All metrics obtained by Glovo refer to the service.
- No data related to the private life, personality, or habits of the AGENT is collected.

b) Regarding automated decision-making with legal effects:

- No automated decisions are made.
- All parameters to be considered have been generated manually.
- All parameters and metrics refer to the service and the execution of the contract.
- No profiles are created.
- Attributes of personality or the non-professional sphere of the AGENT are not taken into account.
- The results depend on prior and voluntary actions of the AGENT.
- The results are manually modifiable.
- The results can be corrected in case of an error.
- The AGENT is not prevented from exercising a right.
- The AGENT is not prevented from accessing a good or service.
- The AGENT is not prevented from being part of a contract.

c) Regarding the observation, monitoring, supervision, geolocation, or control of the interested party in a systematic and exhaustive manner:

- Geolocation is temporary.
- It is directly associated with the service.
- The purpose is not to control the AGENT, but to inform the customer about the progress of the delivery.
- Geolocation is not exhaustive, but is limited to a short route, between two mandatory points that the AGENT cannot choose and is temporary.

d) Regarding the processing of special categories of data:

- This processing is limited to data related to accidents of the AGENTS. Communication to insurers will be made using a specific form or directly by the AGENT, unless the only way to communicate is through the Company due to processing health data derived from the accident.”

TENTH: On December 4, 2020, upon accessing the website <https://web.archive.org>, it could be verified that on the website <https://glovoapp.com/es/glovers>, the page where couriers authenticate, as of March 27, 2019, there was a link to the “Terms and Privacy Policy.”

ELEVENTH: In the document describing the excellence score system, provided during the on-site inspection conducted by this Agency, it is described that, in the score received by couriers called “excellence score,” among other data, the following is included:

- a. the number of orders made during high-demand time slots in the last 28 days, 27/135
- b. the feedback from the stores on the last 50 orders, which can be positive, negative, or not rated,
- c. the feedback from users on the last 50 orders, which can be positive, negative, or not rated,
- d. rejected or reassigned orders in the last 50 orders, although, in Spain, reassignment does not incur a penalty,
- e. order history since the beginning of the collaboration.

TWELFTH: During the on-site inspection conducted by this Agency, it was indicated that the values used to calculate the excellence score can be manually modified, which will only be done in the event that a delivery person files a complaint, usually through billing. During the aforementioned inspection, it was verified that an operator accesses the database and, using a graphical SQL client, is able to modify the values of the table used to calculate the excellence score.

THIRTEENTH: During the on-site inspection conducted by this Agency, it was indicated that the excellence score is used exclusively in cases where, within a time slot, more delivery persons have signed up than are needed, to favor the delivery persons with a better excellence score. However, representatives of GLOVOAPP indicated during the inspection that, in practice, the excellence score limited the possibility of accessing a specific one-hour time slot, but not the rest of the hours of that day; although, currently, in fact, it does not limit. During the inspection, the occupancy history of the time slots in Spain was obtained, and it was noted that the time slots are one hour long and that the average occupancy in 2018 was 87% and in 2019 was 83%, and that the last time slot that was completely filled dates back to August 21, 2018. In the document of allegations presented by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, it is indicated that

there was only one day in the years 2018 and 2019 when occupancy reached 100%.

FOURTEENTH: During the on-site inspection conducted by this Agency, it was indicated that the excellence score is not used to select which delivery person is assigned an order from those who are signed up in the time slot in which the order is requested; to select which delivery person is assigned the order, a module called "Jarvis" is used, which selects which delivery person is assigned an order taking into account metrics such as the type of vehicle, geolocation, weight of the order, and distance from the pickup point to the delivery point. It was also indicated that "Jarvis" is a proprietary development of GLOVOAPP23, S.L., which makes decisions regarding its development.

FIFTEENTH: During the on-site inspection, it was verified that, when accessing the platform with the profile of Global LiveOps Project Manager (global manager of customer service), the time slots in which a delivery person will accept orders could be manually modified. It was also verified that a user with an Account Manager profile could not modify those time slots.

SIXTEENTH: In the "DOCUMENT 01 - Information on the operation of Glovo accessed by the delivery person in the pre-contractual phase," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the procedure.

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In the sanctioning procedure PS/00020/2021, a screenshot from "Glovo Blog" is observed, which features an article titled "How does Glovo work? The answer to all your questions." This article provides information aimed at end customers, explaining that the application offers not only a food delivery service but also "an exclusive home delivery service for anything you can think of." It also provides information about the possibility of using "Express Deliveries" within the same city and explains how to use the application to place orders. Finally, it informs how to contact Glovo.

SEVENTEENTH: In the "DOCUMENT 02 - Application form for registration as a delivery person," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, a screenshot of the Glovo website is observed with a form titled "Register and start collaborating as a delivery person in less than 24 hours," which collects name and surname, email, city, and phone number. Below the form, there is a "Continue" button, under which the following message reads: "By clicking the button, you accept our Terms and Conditions and Privacy Policy."

EIGHTEENTH: In the "DOCUMENT 03 - Terms and conditions accepted by the delivery candidate in the pre-contractual phase," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, the "Terms and Conditions for the use of the Glovo platform for independent delivery persons" are attached, updated as of July 12, 2021. The header of the document states: "By accepting these terms and conditions, you acknowledge that you have read and expressly accepted our Privacy Policies, which are part of these terms and conditions. Furthermore, we inform you that we may update our Privacy and Cookie Policies in due course directly on our website, and you agree that the most updated versions will apply to you at all times."

In clause 9 "Data Protection Policy" of the aforementioned document, in point 9.3 "Geolocation," it is stated:

"By using the application provided by GLOVO for the execution of the contractual relationship and, therefore, to be able to carry out the activity, GLOVO may receive the geolocation data of the Delivery Person in the event that they have activated this function directly from their mobile phone.

GLOVO will use the obtained Data solely to provide the service to the delivery person and to share it with the consumer and the merchant whose order the Delivery Person has accepted to fulfill, so that the consumer and the merchant can contact the Delivery Person in case there is any incident with them."

NINETEENTH: In the "DOCUMENT 04.1 - Presentation used in the in-person information session on the use of the APP that was given to delivery candidates until mid-2019," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, in the slide titled "Calendar," it is indicated that "The calendar opens every Monday and Thursday, between 4 PM and 8 PM. The excellence score (awarded by all users of the platform) determines the order of access to the calendar, depending on supply and demand."

In the slide of the presentation titled "Excellence score," it is indicated that:

"65% depends on:

High Demand: Completed orders during peak hours that have been reported by Partners.

Order History: Historical amount of orders, and comparison with the average in your city.

Customers 7 / 15%

Partners / 5%

And 35% on efficiency on the platform:

Number of completed orders: check-in during the hours you have chosen and AA help to increase efficiency."

TWENTIETH: In the "DOCUMENT 04.2 - Screenshot of the message received by the candidate to be a delivery person since mid-2019," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, the title reads "STEP 1: Welcome to Glovo" and the text states "To continue the registration process, you must complete a tutorial by clicking the button below. There we will show you explanatory videos with information that will help you collaborate with us. The session is easy, short, and completely online. (...)".

TWENTY-FIRST: In the "DOCUMENT 05 - Screenshot of the mandatory tutorial to be completed in the pre-contractual phase explaining how to reserve hours and which certifies the need for action by the delivery person," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, it can be seen:

No link is provided to access the content of such a video.

TWENTY-SECOND: In the "DOCUMENT 06 - Screenshot of the mandatory tutorial to be completed in the pre-contractual phase explaining how an order works," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, it can be seen:

GLOVOAPP in the aforementioned allegations indicates that on the left, the online table of contents can be appreciated. And that delivery persons interested in providing services for Glovo must complete a tutorial before continuing the selection process. It also states that this video contains the details of how Glovo operates, of its...

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platform, of the excellence score, of geolocation, and of all the details of the treatment. However, no link is provided to access the content of such video.

TWENTY-THIRD: In the "DOCUMENT 07 - Message that appears at the moment of the completion of the tutorial by the delivery candidate," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, in the section "How does the excellence system work?" it states, "If you have any questions about how the Excellence System works, consult here for all the information." If you click on the provided link

(<https://delivery.glovoapp.com/es/faq/el-sistema-de-excelencia>), it redirects to a page not found:

TWENTY-FOURTH: In the "DOCUMENT 08.1 - Message of registration in the online tutorial in which information is provided to delivery candidates," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, there is an email dated July 19, 2021, with the subject "Fwd: Acquisition e-learning tool" in which an exchange of emails from May 2019 is forwarded, in which the purchase of an online tool to welcome delivery drivers is agreed upon.

TWENTY-FIFTH: In the "DOCUMENT 08.2 - Invoice from ***COMPANY.2, the company that manages the online tutorial for delivery candidates," which accompanies the allegations presented by

GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, there is an invoice from ***COMPANY.2 addressed to GLOVOAPP for €89 under the description "Corporate Owl." TWENTY-SIXTH: In the "DOCUMENT 09 - Frame from the tutorial video whose latest version has been available on YouTube since August 28, 2019 (<https://youtu.be/HZBqOezoeew>)," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, a screen of the application can be seen in which the delivery driver is geolocated. Upon accessing the video, it is observed that it explains what the GLOVOAPP application is about. From minute 0:56 to 0:59, the position of the delivery driver on the active order map can be appreciated.

TWENTY-SEVENTH: In the "DOCUMENT 10 - Frame from another tutorial video whose latest version has been available on YouTube since August 28, 2019 (https://youtu.be/_Z2LlaVRWVA)," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021,

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You can also see a screen from the application where the delivery person is geolocated. Upon accessing the video, it is observed that the question "What do you need to register with Glovo?" is answered, and it is noted that the delivery person needs to have a smartphone with an Internet connection in order to provide services to Glovo, among other requirements.

TWENTY-EIGHTH: In the "DOCUMENT 11 - Frame from another tutorial video whose first version is prior to September 2019 and whose latest version has been available on YouTube since September 29, 2020 (https://youtu.be/hIAHkN7Kh_Q)," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, the operation of hour reservations is explained. Upon accessing the video, it is observed that the question "How to reserve your hours" is answered, and it is explained how to make the hour reservation. It is also detailed that working during peak demand hours increases the excellence of the delivery persons and that the calendar is first opened to those delivery persons who have higher excellence.

TWENTY-NINTH: In the "DOCUMENT 12 - Frame from the same tutorial video dedicated to hour reservations," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, a graph is observed indicating that services performed during peak demand hours contribute to increasing the excellence score.

THIRTIETH: In the "DOCUMENT 13 - Frame from the same video indicating the process of canceling a reserved hour," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, it is indicated that "to cancel hours in green, send a message to support chat." The video in question is accessible at the following address: https://www.youtube.com/watch?v=hIAHkN7Kh_Q. In the aforementioned allegations, GLOVOAPP indicates that to cancel a reserved hour, it must be done manually within the time slot reservation system, in addition to the reservation itself.

THIRTY-FIRST: In the "DOCUMENT 14 - Frame from the video that describes the order assignment system based on geolocation," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, the following link to a video is provided: <https://www.youtube.com/watch?v=fHVJ4GXNyo>. Upon accessing the video, it is observed that "The process of an order" is explained. It details what happens if the "Auto-acceptance" button is turned on. It shows what the delivery person sees when an order comes in for them: a map with their precise location and the pickup and delivery points of the shipment. The types of orders (Partner/ Non-partner/ Transport) and when to pay the establishments are also explained, along with the steps to make a delivery.

THIRTY-SECOND: In the "DOCUMENT 15.1 - Transcript of the tutorial video explaining the operation of hour reservations and the excellence score," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, the following text

can be seen: “(...) the peak demand hours that will be identified with a diamond are hours during which there are more orders, therefore if you make deliveries during that...

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During this period, you will be able to generate higher income as well as place orders during those hours, increasing your excellence (...). And also: “(...) the calendar first opens to the couriers who have the highest excellence (...) and “ (...) if you need to remove any hour that you have in green, in that case, you can send a support message to have them removed (...).”

THIRTY-THIRD: In the “DOCUMENT 15.2 - Transcript of the video tutorial explaining how orders work,” which accompanies the allegations presented by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, the following text can be seen: “ (...) how it works is very easy, you download the courier app from where everything is managed, select when you want to collaborate, at which point in the city you want to start, and if you are interested, you place the order (...).”

THIRTY-FOURTH: In the “DOCUMENT 16.1 - Information about the excellence score accessible from the mandatory tutorial that couriers must complete before registering as Glovo couriers,” which accompanies the allegations presented by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, it is indicated that this information is available in the Help Center:

<https://delivery.glovoapp.com/es/gloveando/que-es-el-sistema-de-excelencia/> and in the FAQs:

<https://delivery.glovoapp.com/es/faq/el-sistema-de-excelencia>. However, when this Agency attempted to access the content of both links, it encountered the message “Sorry, no page was found” and “404 Page not found,” respectively.

In the aforementioned document accompanying the allegations presented by GLOVOAPP, the following can be seen:

“What is the Excellence System?

The Excellence System was created with the aim of evaluating the reputation of the Courier as an independent professional in their sector, based on the rating that their customers have given upon receiving their orders.

Additionally, this system was created at the suggestion of many couriers since, if all couriers have access to hours at any time, given that demand determines the capacity of each time slot, there would be too many couriers connected at the same time and therefore fewer orders available for each courier.

How is the Excellence Score calculated?

The Score is a number from 1 to 100, and it becomes effective once you have delivered 50 orders.

This means that if you are a new courier, you do not have a Score until you have delivered 50 orders.

Once you have reached 50 delivered orders, your Score will be calculated according to the parameters explained below.

You will be able to see your score in your profile in the app, and you will have access to time slots based on that Score.

Your Score is updated every morning and primarily collects information related to Partners, Customers, and your own service performance.

The Score consists of the following parameters:

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Partner

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High Demand Hours

High Demand Hours are hours selected by the Partners based on when they expect to receive more orders; the Partners communicate this to Glovo, and the Platform opens the time slots. Placing orders during those hours increases your Score.

The system calculates the orders you have started during high demand hours.

5/100

Partner Score

Partners can rate couriers after each order. When your score is activated in this parameter, you always have the maximum points, that is, 5. If you receive a negative rating from the partner, you lose one (1) point. If in the next 50 orders you do not receive any negative ratings, you will regain your point(s). As Partners state, couriers who are friendly and respectful receive better ratings as they provide the Partner with a better experience.

Customer

15/100

Customer Rating

Customers can rate their experience with your services after each order. Only negative ratings, such as poor transportation of the product or a bad attitude from the courier, can reduce your Score. If you receive a negative rating from a customer for either of the two reasons mentioned above, your score will drop by 3 points. If in the next 50 orders you do not receive any negative ratings, you will regain your points.

Platform

35/100

Efficiency

Efficiency calculates your activity index during the hours you have freely reserved. Therefore, the number of reassignments you make during your hours does not affect your Score. If you have the Auto-Acceptance mode activated, it helps you increase your score in this parameter and consequently increases your deliveries. It only depends on you!

10/100

Order History

The score related to order history measures how long you have been providing your services through the Platform compared to the other couriers using the Platform in your city, and it increases as you make more orders.

It is a division of two numbers:

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1. The number of orders you have made (this number will never decrease)
2. The average number of orders made by the couriers who have been collaborating the longest in your city (this number may vary from city to city).

THIRTY-FIFTH: In the “DOCUMENT 16.2 – Information on how to reserve hours,” which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, it is indicated that:

“How can I reserve hours?

The calendar opens twice a week:

- On Mondays, you can reserve hours for the weekend
- On Thursdays, you can reserve hours for the beginning of the following week

You always receive a notification to choose your hours, so we recommend being out of the Courier App to be able to see the notification correctly.

You can freely reserve your collaboration hours in the Calendar section of the Courier app.

The hours that appear in white are available, while those that appear in gray are hours that are already full.

Simply tap the available hours during which you want to collaborate, and they will turn green, indicating that you have successfully reserved them.

(Note that hours marked with a lock cannot be deselected)

The calendar first opens to couriers with higher excellence.

Remember that if you are a new courier, you do not have an Excellence Score until you have delivered 50 orders. As you make orders, your Excellence score is calculated, but it is not effective. That is, you have access to reserve hours at the same time as the average couriers in your city. Once you have reached 50 delivered orders, your Excellence will become effective. You will be able to see your score in your profile in the app, and you will have access to hours based on your Excellence."

Although this document appears to be from a website, the link to consult it is not provided.

THIRTY-SIXTH: In the "DOCUMENT 16.3 – Additional information on hour reservations," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, it is indicated that:

"How can I delete the hours I have already reserved?

If you want to remove hours that you have previously reserved, you have two options to do so:

1. If the hour you want to delete is more than 3 hours away, you can delete it yourself from your app.
2. If the hour you want to delete is less than 3 hours away, contact Support through the chat.

Why are the hours showing in red?

If any hour in your calendar appears in red, it may be for one of the following reasons:

You did not connect on time

Remember that you must do so 15 minutes before your reserved hour.

You will receive a notification to do so.

You are not in the coverage area of your city

Check the app map to ensure you are within the designated area to receive orders.

You may not have enough battery

Make sure your phone is charged, with a battery above 20%."

Although this document appears to be from a website, the link to consult it is not provided.

THIRTY-SEVENTH: In the "DOCUMENT 16.4 – Information on high-demand hours and how they influence the excellence score," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, it is indicated that:

"What are high-demand hours?

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The High Demand Hours are those hours during which there are more orders.

Placing orders during those hours (chosen by the Partners) increases your Excellence Score.

How do they affect my Excellence and how is it calculated?

To calculate the high demand hours, the orders you have accepted during high demand hours over the last 28 days are summed. Remember that what matters is the time at which the order is accepted, not the time at which it is delivered; therefore, if the order is accepted within the high demand hour, it will count even if you delivered it outside of that hour. The same applies in reverse: if the order was accepted before the start of the high demand hour, it will not count even if you deliver it within the high demand hour.

If you are inactive for 7 days or more, the app understands that you are taking a break, so it freezes your High Demand Hours score until you become active again so that your Excellence does not decrease.

While this document may seem to be from a website, no link is provided for consultation.

THIRTY-EIGHTH: In the "DOCUMENT 16.5 – Information on the areas with the most orders in each city so that couriers can obtain more orders and more excellence score," which accompanies the

allegations submitted by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, it is stated that:

"INFO ABOUT YOUR CITY

Barcelona

Activity Map

Glovo customers can place orders 24 hours a day, seven days a week.

Hot Spots

Orders are concentrated in the Eixample center, Sant Gervasi, and the Born (Gothic Quarter).

Office

Carrer Bac de Roda, 81.

Hours

Monday: From 10:00 – 13:00 and from 14:00 – 18:30

Tuesday: From 10:00 – 13:30

Wednesday: From 14:00 – 18:30

Thursday: From 10:00 – 13:30

Friday: From 10:00 – 13:30

To visit the Customer Service Office click here."

While this document may seem to be from a website, no link is provided for consultation.

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THIRTY-NINTH: In the "DOCUMENT 17- Additional information on the truth or falsity of the myths arising in relation to excellence score," which accompanies the allegations submitted by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, it is stated that:

"Myths about Excellence – Part 1

OCT 21, 2019 · 1 MIN

We know that the operation of the Excellence System generates many doubts among couriers in Spain. There are many rumors about this topic, but... do you know which ones are true and which are not? Below, we have prepared a video for you to see what the main 10 topics believed about the Excellence Score are.

Hit play!

Now that you know which myths are true and which are not, the goal is for you to understand in detail how the system works and the different parameters that are taken into account.

Read the following article on the Couriers' Website and resolve all your doubts!"

Below, there is a button with the caption "This is how Excellence works."

While this document may seem to be from a website, no link is provided for consultation.

FORTIETH: In the "DOCUMENT 18- Second part of Additional information on the truth or falsity of the myths arising in relation to excellence score," which accompanies the allegations submitted by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, despite the low quality of the image, it is observed:

"Myths about Excellence - Part 2

OCT 29, 2019 – 4 MIN

We continue with the myths about Excellence! Last week you could check the main 5 myths about this system, and this week we want to show you 5 more, let's go!

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We remind you that each of these myths has been collected through the survey you received in the

past weeks; therefore, we hope that with the justification of each one, you now have a clear understanding of what is true and what is not.

Here is a summary of the 10 myths!

1. "The more hours I can reserve with Glovo, the higher my Excellence Score"

Incorrect. Your availability does not determine your Excellence Score. The efficiency of the orders you deliver during the hours you have reserved will be measured.

2. "The more orders I deliver during peak hours, the higher my Score"

Correct. Delivering orders during those hours increases your Score. The system calculates the orders you have started during peak hours over the last 28 days.

3. "The greater the distance of my order, the higher my score."

Incorrect. Whether you make an order of more or fewer kilometers, your score will remain the same. Only the efficiency of the order is measured, not the distance.

4. "Every so often, the parameters taken into account are changed."

Incorrect. The parameters are always the same: efficiency, orders during peak hours, customer rating, partner rating, and number of orders.

5. "In some cases, poor customer ratings lower my excellence score."

Correct. Remember that only poor ratings due to bad transportation of the product or a bad attitude from the courier can reduce your Score.

6. "The more orders I reassign, the worse my excellence score."

Incorrect. Efficiency calculates your activity index during the hours you have freely reserved. The number of reassignments does not affect your excellence score.

7. "The less time I take to deliver an order, the higher my excellence score."

Incorrect. The minutes spent are not taken into account. Your safety comes first; we recommend that you respect traffic signals and drive at the indicated speed.

8. "The higher my score, the sooner my calendar will open to reserve hours."

Correct. The score determines the order of access to the selection of hours. This does not mean that a courier with a higher score will receive more orders.

9. "If I do not follow the route indicated on the map, it affects my Score."

Incorrect. The route indicated by Google Maps is for guidance. You simply need to keep in mind that the money you receive will be calculated based on the mileage from Google Maps.

10. "When I cancel a reserved hour, my excellence score decreases."

Incorrect. You have total freedom to deselect hours in your calendar. Your availability is not analyzed; only the orders made during your reserved hours are taken into account.

While this document may seem like it is from a website, the link to consult it is not provided.

FORTY-FIRST: In the "DOCUMENT 19 - Detailed information on the operation of the Jarvis module, used in order assignment," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, it is indicated:

"Hi, this is Jarvis

May 5th, 2020 • 5 min read

What do we understand by an algorithm?

An algorithm is a set of defined, non-ambiguous instructions or rules that, applied systematically to appropriate entry data, solve problems automatically in a finite number of pre-set steps.

At Glovo, the algorithm used to assign orders to couriers is called Jarvis.

Why is it called Jarvis?

Jarvis is an artificial intelligence robot that helps the main character in the film Iron Man. It's extremely intelligent and always gives good advice. When we developed the first version of this algorithm, it was given this name because it fitted well with what it was going to do: help the agents that were previously manually assigning orders to couriers.

What exactly does the Glovo algorithm do?

Jarvis is a process carried out every few seconds that looks at all the new orders in the city, all the available couriers, and calculates the optimum courier-order assignment.

Why are algorithms used by companies? What value do they add?

The use of the algorithm mainly allows for processes to be automated and made more efficient. If you

imagine a switchboard situation, this would be the process it would follow for a similar activity to Glovo's: receive a call with a client order, identify the business where the product will be picked up, identify the courier who's closest to both the business and the end client, call the business to let them know about the order, call the courier to let them know the pickup point, call the user to confirm their order and track the order in case of any problems.

Technology allows the Glovo algorithm to take charge of this whole process and do it efficiently because it calculates which courier will have the shortest journey between point A and point B objectively and immediately. That means that journeys are more efficient and there can be more orders per hour, less waiting time, etc.

What factors does the algorithm take into account to make its decision?

Jarvis itself doesn't make any decisions; it only follows the previously established parameters. The factors that it takes into account to solve the "problem" are:

- Food or merchandise preparation time

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- Courier vehicle

- Traffic

- Seasonality/demand

Exceptional situations (adverse weather conditions, protests, areas closed off due to danger, etc.), so that couriers' routes are more efficient and they earn more for every order they deliver, and so that they're safer.

What are the areas of knowledge that the algorithm is based on?

The algorithm is mainly based on two areas of knowledge. The scientific community is currently very interested in both areas, and we always try and stay up to date with new discoveries to see if they could help with the algorithm's performance.

What prediction times does the algorithm work with?

The algorithm is operating 24 hours a day for all the cities that Glovo operates in. In each city, the algorithm runs every few seconds, noting the orders and couriers that are available at that moment.

How does this algorithm affect the 3 pillars of Glovo: courier, user, business?

This algorithm is vital for the satisfaction of the 3 pillars of Glovo, because it directly impacts every one of them.

From the point of view of the courier, a good assignment algorithm allows them to deliver more orders per hour, and so increase their income. The algorithm means they avoid having to follow inefficient routes (very long, a lot of waiting, etc.). It also considers dangerous areas of the city, protests, or inclement weather.

For the user, the algorithm has a decisive influence on the total delivery time, which is one of the biggest factors in satisfaction. It helps avoid their order spending too long at the store or restaurant, makes sure the courier's route is direct, etc.

For businesses, the algorithm should mean that they avoid having a backlog of prepared orders nor waiting couriers. A mistake with the algorithm might mean that prepared orders end up waiting for a courier coming to pick them up. They get cold, and often that the restaurant has to prepare them again, whilst also leading to a poor user experience.

Does it determine the slots a courier can choose?

No, the algorithm doesn't play any role in couriers' collaboration slots. Roughly one week in advance, all couriers have the chance to choose their slots on the calendar: this is the point when they can decide how many slots they want or hope to do.

Does the algorithm determine how much the couriers earn?

Jarvis, as an algorithm, isn't able to determine anything. It needs the input of a human being. The

structure of couriers' earnings is determined by the operations team. It works like a taxi: there's a base rate, to which is added an amount for every km covered, and for waiting time. Jarvis simply calculates things based on each journey.

How does Jarvis choose a certain courier? Is it predetermined?

Jarvis establishes the optimum courier based on the distance between the pickup point, the delivery point, and their current location. Its main aim is for this journey to be as efficient as possible (short, calculated times). If the courier rejects the order, the procedure starts all over again.

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While this document may seem to be from a website, the link to consult it is not provided.

FORTY-SECOND: In the "DOCUMENT 20- Screenshots of the Glovo application and the mobile operating system of the courier," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, it is observed:

FORTY-THIRD: In the "DOCUMENT 21- Help of the application," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, it is observed:

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FORTY-FOURTH: In the "DOCUMENT 22- Main page of the Help Center for couriers on the Glovo website," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, it is observed:

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FORTY-FIFTH: In the "DOCUMENT 23- Screenshots of the application, showing warnings and informative texts," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, it is observed:

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FORTY-SIXTH: In the "DOCUMENT 24- Model of the contractual resolution document," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, it is indicated: "(...) Finally, we inform you that the personal data we have been processing throughout the contractual relationship will cease to be actively processed, keeping them duly blocked during the legal action prescription periods established by current legislation, in accordance with what is established in the privacy policy for representatives (...)."

FORTY-SEVENTH: In the document of allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, the following screenshots are provided that

are shown in the Apple App Store and in Google Play from Google, prior to the download of the APP that couriers must use:

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FORTY-EIGHTH: In the “DOCUMENT 25 - Sectoral Agreement on Good Practices with the Main Associations of Deliverers,” which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, it is stated:

“(…) 1. Sectoral Commitment to Safety During the Different Phases of the Health Crisis

Safety is a priority for digital delivery platforms. It was a priority before Covid-19, it has been during the context of the crisis, and it will continue to be in times of new normality. In this regard, the platforms commit to continue observing the necessary hygiene and safety measures to prevent coronavirus infections in delivery activities, specifically:

- Provide appropriate resources for the protection of deliverers if recommended by the relevant authorities.
- Promote communication and coordination between restaurants, shops, platforms, and deliverers to comply with the Guide for Safe Delivery for All, avoid crowding in restaurants, and maintain social distancing at all times.
- Review the Guide for Safe Delivery for All based on the evolution of the health situation and always in accordance with the recommendations of the authorities.
- Inform users of the platforms about the safety measures.

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2. Sectoral Commitment to Action in Case of Meteorological Emergency Situations

This has been one of the main suggestions from the associations of deliverers that represent the interests of this group. In line with the commitment to safety, Glovo, Deliveroo, Uber Eats, and Stuart commit to strengthening their respective action protocols in cases of emergencies, specifically:

- Establish monitoring mechanisms to detect and act in the event of incidents that may affect the normal development of the service, such as emergencies, extreme weather, or other situations that endanger the safety of deliverers.

- In active and ongoing dialogue with the associations of deliverers, the situation will be assessed following the indications of the competent local authorities to anticipate risk scenarios and adopt the necessary operational changes and/or partial or total service closures to safeguard safety. (…)

FORTY-NINTH: In the “DOCUMENT 26 - One of the news articles that echoed the aforementioned protocol,” which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, there is a press release with the Adigital logo dated July 8, 2020, titled “Digital Delivery Platforms and Deliverer Associations Sign a Good Practices Agreement.” In the body of the note, it is indicated that: “The digital home delivery platforms Deliveroo, Stuart, Glovo, and Uber Eats, gathered in Adigital, have signed a sectoral agreement on good practices with the main associations of deliverers (…)

In particular, the companies commit to continue promoting the necessary hygiene and safety measures during the different phases of the health crisis to prevent coronavirus infections in delivery activities, providing appropriate resources for the protection of deliverers or coordinating with them, as well as with restaurants, shops, and social agents, to ensure safe delivery, avoid crowding, and maintain social distancing.

These measures are joined by a series of proposals for meteorological emergency situations. This is one of the main requests made by the associations of deliverers, to which the platforms respond with

the commitment to establish monitoring mechanisms to detect and act when incidents occur that may affect the normal development of the service, always prioritizing the safety of deliverers. (...)"

FIFTIETH: GLOVOAPP is a startup created in 2015, as indicated in the document of allegations to the initiation agreement of the sanctioning procedure PS/00020/2021.

FIFTY-FIRST: As indicated in the document of allegations to the initiation agreement of the sanctioning procedure PS/00020/2021, the process of reserving hours or time slots by GLOVOAPP deliverers was as follows:

1. The deliverer reserves an hour, and it is blocked in their calendar.

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2. The delivery person belongs to the group of delivery persons who have selected that hour.

3. The system orders the delivery persons and groups them based on their excellence score. The groups with the highest score are placed at the beginning of the list and have preference for reserving the time slot.

4. When the hour arrives, the system unlocks the calendar for the groups of delivery persons with the highest score so that they can reserve the time slot they wish to deliver, and it successively unlocks the calendar for the groups of delivery persons that follow in the list.

FIFTY-SECOND: As indicated in the document of allegations to the initiation agreement of the sanctioning procedure, PS/00020/2021, the excellence score was obtained from the following parameters:

FIFTY-THIRD: In the "DOCUMENT 26.1 - Audit Report of Processes," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the sanctioning procedure PS/00020/2021, it is stated:

"(...) 2.6 SERVICE COMPLETION

(...) Regarding the delivery persons, at the end of the day, each provider receives a report with the orders made, as a delivery note that they will later use to prepare the invoice for the services rendered. In case there is any error—for example, due to a geolocation failure—the delivery person can contact GLOVO to resolve it.

(...)

3.3.1 Opening of time blocks on the platform

The platform opens twice a week to offer service time blocks to the delivery persons. The opening of the platform is carried out as follows:

- On Mondays, between 4 PM and 8 PM, the platform opens for the assignment of time blocks for the period from Thursday to Sunday of that same week.

- On Thursdays, between 4 PM and 8 PM, the platform opens for the assignment of time blocks for the period from Monday to Wednesday of the following week.

In both cases, the opening of time blocks is done progressively every 10 minutes, increasing the number of providers who can access the platform to reserve time blocks each time. Thus, access to the platform is open to all delivery persons from 8 PM on Monday/Thursday until the start date of the service.

The assignment of the selection period for each provider (i.e., the first 10-minute slot from which the delivery person already has the platform available to access the selection of desired time blocks) depends on their rating—which in turn corresponds to their excellence ranking—so that providers with better ratings can access the platform earlier.

3.3.2 Activation of time blocks

(...) In strict order of reservation, the time blocks are filled up to the pre-established capacity limit (maximum number of active delivery persons in a time block). Once that point is reached, the block in question is disabled for new reservations.

3.3.3 Deactivation of time blocks

Two types of deactivation procedures for time blocks are distinguished, depending on the notice given:

- Before 48 hours: automatic and immediate procedure (...)
- After 48 hours: manual procedure via message to GLOVO

If a delivery person wants to cancel a time block that is going to take place within the next 48 hours, they will see on the platform that the block contains the symbol of a padlock. This will indicate that they cannot cancel the block automatically, but must communicate it expressly—with authorization without the need for justification—thus allowing GLOVO to find another provider so that the level of service is not affected.

In both cases of deactivation of time blocks, delivery persons are exempt from penalties in their scoring system (detailed in later sections).

3.3.4 Reopening of blocks due to high demand

The time blocks where the estimated capacity has been reached can be reopened and, therefore, become available again for selection by the delivery persons if, due to episodes of high demand, the saturation level of the block is higher than initially anticipated.

In these cases, the platform may reopen the high-saturation time block so that delivery persons who did not have that time block selected can join the service if they wish, thereby decreasing the saturation level. This reopening of time blocks due to high demand is carried out by notifying the delivery persons. On the other hand, the method of assigning delivery persons to these time blocks depends solely on the order of request, without affecting the scores of the delivery persons.

(...)

3.4 ASSIGNMENT OF ORDER TO DELIVERY PERSON

(...)

3.4.1 Criteria for selecting delivery persons

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In order to assign orders to delivery personnel, it is necessary to evaluate a set of technical and operational aspects that in some way condition or limit the provision of the service.

(...) Both the means of transport and the delivery material are technical aspects to consider when assigning orders, as due to distance or the physical volume of the product, a specific order may require a particular vehicle and material to transport it within the appropriate time.

At the operational level, other functional criteria applicable to the delivery personnel are taken into account, as detailed below:

- ****Activated time block:**** The delivery person must have previously reserved the time block in which they wish to offer their services by selecting it after the opening of the time blocks.

- ****Active application:**** It will be necessary for the delivery person to have the app open and functioning during the time blocks they have selected to offer their services as a transporter. Additionally, they must have checked in on the application. The application will notify the delivery person that the time slot they have reserved to offer their services is starting. At that moment, the courier must accept the message to inform GLOVO that they are available to perform delivery services. This tool will help GLOVO know how many delivery personnel can actually perform services during that time block. Finally, it will be necessary for the courier to have more than 20% battery on the mobile device they will be using.

- ****Type of acceptance (AA/MA):**** Delivery personnel, during their working time blocks (which may differ from previous ones), may assign either automatic acceptance (AA for its acronym in English) or manual assignment (MA for its acronym in English). In the first case (AA), the platform will automatically assign a delivery, allowing the delivery person to manually reject the order without incurring any penalties. In the second case (MA), the platform will not automatically assign the order to a delivery person; instead, the delivery person will have to select which delivery they want to make from those available.

- ****Availability:**** At the time of order assignment, the delivery person may not be fulfilling any other order, unless they are in the final delivery phase of a product to its destination (but never in the pickup

phase). However, a procedure is currently being carried out whereby GLOVO's algorithm can automatically assign a second order—placed on hold—to a delivery person who is performing a service, as long as the platform achieves a cost-benefit function that minimizes the distance to be traveled and the delivery time of both orders (the one being performed and the one placed on hold). In this regard, there is a first scenario in which the assignment of the second order—placed on hold until the completion of the first order—is not seen by the delivery person, so that the latter will only see the entry of the second order once the delivery of the ongoing order is completed. On the other hand, there is a second scenario in which the delivery person sees the assignment of a second order, which remains on hold until the completion of the first order.

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On the other hand, when a delivery person is at the pickup point for the products but the order is not ready - and therefore, they must wait for its delivery by the store - there is the possibility that the delivery person initiates a pending order request. This operation is carried out through a support chat that delivery persons have available in the APP provided by GLOVO, with the latter being responsible for authorizing the pending order request. In such a case, the delivery person can place a second order while the establishment involved in the first order - currently paused - has the products available.

□

Proximity: To be selectable, the delivery person must be located in the vicinity of the area of operation in the city where the services are to be performed.

(...)

3.4.2 Method of assigning delivery persons in AA

The GLOVO algorithm for assigning orders to delivery persons with the automatic assignment mode (AA) follows a cost-benefit function aimed at minimizing both the distance to be traveled and the delivery time of the orders. (...)

As an example (...) a simple case of selection of a delivery person and an order by the algorithm is indicated:

□

In the case of having two delivery persons and a single order, the algorithm will choose the delivery person who has to travel a shorter distance to perform the service.

□

In the case of having a single delivery person and two orders, the algorithm will prioritize the order that has been waiting the longest.

(...) Finally, in the event that a delivery person in AA mode rejects an order (...), it will be reassigned to another delivery person.

3.4.3 Method of assigning delivery persons in MA

When the procedure for searching for the combination of order-delivery person (AA mode) has concluded and there are still orders to be assigned, the algorithm opens the pending orders to the rest of the delivery persons (via notification in the APP), allowing for their acceptance in manual mode (MA). (...)

3.4.4 Method of assignment by GLOVO

In exceptional cases of orders that have been rejected multiple times by delivery persons in automatic assignment mode, the customer service figure of GLOVO is responsible for ensuring the quality of service and manually assigning a delivery person to the order in automatic mode.

4. DELIVERY PERSON SCORING SYSTEM

(...) It is important to note that these scoring systems only affect the reservation of time blocks made according to the methods indicated in 3.3.1 Opening of time blocks on the platform. However, in cases where a reopening of time blocks occurs due to high demand (see section 3.3.4 Reopening of blocks due to high demand), the scores detailed below are not taken into account, but only the order of request for reservation of the reopened time block.

On the other hand, it is important to highlight that the assignment of an order to a delivery person - prior reservation of the time block by the delivery person - is not subject to their scoring criteria, but only to technical and functional criteria (means of transport, material available for delivery, distance, preparation time of the order, etc.).

(...) 4.3 EXCELLENCE VERSION 3

This scoring model came into operation in July 2018 and is currently in use. The scoring of delivery persons ranges from 0 to 100 points and is obtained as the percentage sum of various aspects:

☐

35% of the delivery persons' score is based on their efficiency, understood as the percentage of the last 40 orders - scored by the user of the APP - that the delivery person has completed in automatic assignment mode versus manual assignment.

☐

35% of the delivery persons' score is given by the number of orders delivered in the last 72 hours of high demand in the city (known as diamond hours).

The percentage is calculated on a total of 90 points, meaning that the delivery person has the total of this score if they have delivered more than 90 orders in the last 72 hours of high demand.

It is noteworthy that there are approximately 10 hours a week categorized as high demand hours.

☐

10% of the delivery persons' score is obtained from the total historical volume of orders delivered, valued percentage-wise over a total of 750 orders. As in the previous case, if a delivery person has delivered more than 750 orders, they receive the total of this 15% score.

☐

15% of the delivery persons' score is obtained from the rating of the APP users (customer rating) in the last 40 evaluated orders, with the option to choose a positive or negative score.

☐

5% of the delivery persons' score is obtained from the rating of the establishments, with the option to choose a positive or negative score.

In this scoring version, a penalty is only incurred when the delivery person has not checked in at the start of the reserved time block to offer their services as a delivery person. (...)

It is noteworthy that this report is dated April 18, 2019.

FIFTY-FOURTH: In "DOCUMENT 27 - an article warning of the risks arising from the reassignment of orders," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, it is stated: "When you reassign an order, the app's system does not expect it, so it takes longer to find another order for you. This means that you are losing money as you deliver fewer orders per hour."

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In the latest study conducted by Glovo on the earnings of the platform's couriers, we have detected that couriers who tend to reassign orders generate 20% less income per hour compared to those who do not usually reassign. This translates into the time lost reassigning an order (...) As you can see, reassignments have a significant impact on your earnings; therefore, during the times you are available to collaborate, we recommend reassigning only in cases of emergency."

FIFTY-FIFTH: In the "DOCUMENT 28 - Explanation of the order reassignment process," which accompanies the allegations presented by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, it is observed:

"Courier order acceptance

How it looks in the Courier App, once Jarvis assigns them an order:

If they press the red button, they will have the option to reassign the order:

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The procedure to be followed for the manual reassignment of orders and how reassignment is carried out through Jarvis is explained below.

FIFTY-SIXTH: In the “DOCUMENT 29 - Certificate signed by B.B.B., ***POSITION.1 of Glovo,” which accompanies the allegations presented by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, a table is attached with the columns: “DNI/NIE,” “COURIER_NAME,” “Excellence,” “Orders per day,” and “Hours per day.” Of the 168 records listed in the table, 23 correspond to couriers who work a minimum of 6 hours per day. Only two of them have an “Excellence” lower than 85 (one case has 74.46 and the other 39.10). On the other hand, of the 66 records that have an “Excellence” of at least 90, 17 work a maximum of 3 hours, while 18 work a minimum of 6 hours. It is noteworthy that this document is dated March 23, 2021.

FIFTY-SEVENTH: In the “DOCUMENT 31 - Corporate Purpose,” which accompanies the allegations presented by GLOVOAPP to the initiation agreement of the present sanctioning procedure, a report from the College of Registrars of Spain is attached, which states:

“Article 2. CORPORATE PURPOSE. The Company shall have as its purpose, totally or partially in an indirect manner, through the ownership of shares, social participations, or any form of representation of participation in the capital or own funds of entities with identical or analogous purposes: (a) the exploitation of computer applications for courier services with the authority to acquire goods on behalf of others acting as a commission agent; (b) the performance of the activity of intermediary in the contracting of the transport of goods by road in the capacity of a transport agency, freight forwarder, warehouse-distributor, or logistics operator; and (c) the acquisition, holding, administration, and management of titles, shares, social participations, or any form of representation of participation in the capital or own funds of entities, whether residents or not in Spanish territory, whose activity is similar to those mentioned in points (a) and (b) and/or complementary to the latter, through the corresponding organization.

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organization of material and personal resources; as well as the advice and management of said companies. Activities expressly reserved by law for Collective Investment Institutions (both open-ended and closed-end) are excluded, as well as those expressly reserved by the consolidated text of the Securities Market Law for investment service companies. If legal provisions require a professional title, administrative authorization, or registration in public registers for the exercise of certain activities included in the corporate purpose, such activities must be carried out by a person holding such professional qualification and, where applicable, may not commence until the required administrative conditions have been met.

FIFTY-EIGHTH: In the “DOCUMENT 33 - Security Document,” which accompanies the allegations submitted by GLOVOAPP to the initiation agreement of sanctioning procedure PS/00020/2021, it is noted that the creation date is December 1, 2015, and it was modified on July 4, 2016, January 2, 2017, and February 18, 2017. In section 5 “User List” of the cited document, a list of personnel with authorized access to the files is indicated, including the following information: “Personal Data” (here the name and surname and ID number are indicated) and “Authorized Resources” (which indicates whether access to the files “Clients,” “Suppliers,” “Human Resources,” “Web Users” is granted). Among the users with access to “Suppliers,” the “Position” section shows: “Backend Developer,” “CTO,” “Web Lead,” “Mobile Lead,” “IOS Developer,” “UX Designer,” “Senior IOS Developer,” “Senior Android Developer.” In section 6 “Data Processors,” among the users with access to “Suppliers,” there is a natural person, but only their name, surname, and tax identification number are indicated.

FIFTY-NINTH: According to GLOVOAPP in the allegations submitted to the initiation agreement of sanctioning procedure PS/00020/2021, the kilometers traveled in each service and the waiting time at each establishment are recorded based on geolocation data, the route taken, waiting times, and travel times. These data are used as the basis for billing Glovo and the delivery person.

SIXTIETH: In the allegations submitted to the initiation agreement of sanctioning procedure PS/00020/2021, GLOVOAPP attaches the following screenshot: It is indicated that this image is part of a tutorial for individuals who want to become delivery persons and that the video has been accessible since August 28, 2018, at the link: https://youtu.be/xqrR_BJ2e74.

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Upon accessing the video in question, it is observed that it answers the question "How much money will you earn using GLOVO?" and explains that for each order made, a fixed base payment will be made, to which a variable amount will be added based on the kilometers traveled and the waiting time at the establishment.

SIXTY-FIRST: In Document 1 accompanying the allegations submitted by GLOVOAPP to the proposed resolution of sanctioning procedure PS/00020/2021, which is again attached as Document 2 of the allegations submitted by GLOVOAPP to the initiation agreement of the present sanctioning procedure, it is indicated that the following are recorded in the System:

- 4,620 entries of manual change logs between February 1 and April 1, 2020, made by 130 different operators.
- 16,175 entries of operation logs on time slots between March 20 and April 1, 2020, for the city of Barcelona, with 6,239 expulsion actions, slightly more than 38.6% of the operations, carried out by 29 different operators.
- 13 manual increases in capacity in time slots between March 24 and April 1, 2020, carried out by 6 different operators.
- One of the previous operations with code "2867115" shows 32 operations for reserving delivery persons in the time slot following that change.

SIXTY-SECOND: On March 4, 2023, the website www.axesor.es was consulted, and it was verified that GLOVOAPP, S.A. has YYY employees and in 2021 had a sales volume of ***AMOUNT.1 €.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the provisions of Articles 58.2 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 and 68.2 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures."

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II

Preliminary Issues

In the present case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, given that GLOVOAPP carries out, among other processes, the collection, storage, consultation, and deletion of personal data of its delivery personnel, such as: name, identification number, location data, among other data.

It is undisputed that GLOVOAPP carries out this activity in its capacity as data controller, as it is the entity that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. Furthermore, this processing is cross-border, as GLOVOAPP has its main establishment in Spain, although it provides services to other countries in the European Union.

The GDPR provides, in its Article 56.1, for cases of cross-border processing, as outlined in its Article 4.23), regarding the competence of the main supervisory authority, that, without prejudice to the provisions of Article 55, the supervisory authority of the main establishment or of the only establishment of the controller or processor shall be competent to act as the main supervisory authority for the cross-border processing carried out by such controller or processor in accordance with the procedure established in Article 60. In the case examined, as stated, GLOVOAPP has its registered office and main establishment in Spain, therefore the Spanish Data Protection Agency is competent to act as the main supervisory authority.

III

Claims Made

In relation to the claims made regarding the initiation agreement of the present sanctioning procedure, responses are provided according to the order presented by GLOVOAPP:

1. - Prescription of the infringements

1.1 Prescription of the infringement for violation of Article 13 of the GDPR

GLOVOAPP argues that in accordance with the provisions of Article 74.a) of the LO-PDGDD, the infringement of Article 13 of the GDPR would be considered serious and would prescribe after one year. It claims that the facts allegedly committed by GLOVOAPP would consist of failing to provide riders with information regarding the "excellence score" system, which would have occurred over time. Therefore, legally, we would be facing a continued infringement, which would have taken place over a determined period of time.

In accordance with the provisions of Article 30.2 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (hereinafter, "LRJSP"), in the case of continued infringements, the prescription period begins to run from the moment the infringing conduct ceases. Therefore, for GLOVOAPP, there is no doubt that the cessation of this alleged conduct on its part would have concluded with the entry into...

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in force of the so-called "Rider Law" on August 12, 2021, the date on which the "excellence score" system was discontinued. Therefore, the dies a quo of the limitation period for the infringement for non-compliance with Article 13 of the GDPR should be set on August 12, 2021, with the dies ad quem of the one-year limitation period being August 12, 2022.

And it is argued that, although by resolution dated April 26, 2022, the AEPD declared the expiration of PS/00020/2021 due to the passage of the maximum period of 9 months for its resolution, in accordance with Article 95.3 of the LPACAP, the expiration of an administrative procedure does not, by itself, interrupt the limitation period for infringements, so the infringement for violation of Article 13 of the GDPR must be considered time-barred.

In this regard, this Agency wishes to point out that it indeed agrees with GLOVOAPP that the dies a quo of the limitation period for the infringement for non-compliance with Article 13 of the GDPR should be set on August 12, 2021, with the dies ad quem of the one-year limitation period being August 12, 2022. And that, as established by Article 95.3 of the LPACAP, the expiration of procedure PS/00020/2021 has not interrupted the limitation period for the infringement in question.

However, Article 64 of the LOPDGDD "Form of initiation of the procedure and duration" in its section 2

provides:

“(…)

2. When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 and this organic law, it shall be initiated by an initiation agreement adopted on its own initiative or as a consequence of a complaint.

(…)

When the rules established in Article 60 of Regulation (EU) 2016/679 are applicable, the procedure shall be initiated by the adoption of the draft initiation agreement of the sanctioning procedure, of which formal notice shall be given to the interested party for the purposes provided for in Article 75 of this organic law.”

In this sense, Article 75 "Interruption of the limitation period for the infringement" of the LOPDGDD establishes:

“(…)

When the Spanish Agency for Data Protection holds the status of the main supervisory authority and must follow the procedure provided for in Article 60 of Regulation (EU) 2016/679, the formal knowledge by the interested party of the draft initiation agreement submitted to the interested supervisory authorities shall interrupt the limitation period.”

In the present case, it is a sanctioning procedure in which the AEPD holds the status of the main supervisory authority, as it concerns cross-border processing carried out by a company (GLOVOAPP) that has its main establishment in Spain and provides services to several countries in the European Union, so the rules established in Article 60 of the GDPR apply. Therefore, it is the adoption of the draft initiation agreement of the sanctioning procedure that gives

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The initiation of this procedure interrupts the statute of limitations for the infringement with the formal knowledge of the initiation agreement project by GLOVOAPP.

According to the records, the initiation agreement project for this sanctioning procedure was adopted on May 18, 2022, and was notified to GLOVOAPP on May 27, 2022.

Therefore, since the dies ad quem of the one-year statute of limitations is August 12, 2022, the infringement of Article 13 of the GDPR was not time-barred.

For all the above reasons, this allegation is dismissed.

1.2 Statute of Limitations for the Infringement for Violation of Articles 32 and 25 of the GDPR

GLOVOAPP claims that in accordance with the provisions of Article 73 of the LOPDGDD, the alleged infringement of Articles 25 and 32 of the GDPR would be considered serious and would be time-barred after two years. It argues that the facts attributed to it involve the possibility that users of its platform could access the personal data of couriers from the European Union or outside it if the “EU User Access” permission was activated, which would have occurred over time. Therefore, legally, we would be facing a continuous infringement that would have taken place over a specific period.

In accordance with the provisions of Article 30.2 of the LRJSP, in cases of continuous infringements, the statute of limitations must be set at the moment when the conduct attributed to GLOVOAPP was corrected. For GLOVOAPP, based on the proven facts in the previous sanctioning procedure No. PS/00020/2021, this conduct would have ceased on May 18, 2020, with the implementation of the “system with access to the data of couriers according to the permissions enabled by countries and/or cities,” the so-called “city group permission.”

Therefore, it understands that the dies a quo of the statute of limitations for the infringement for non-compliance with Articles 32 and 25 of the GDPR should be set on May 18, 2020, with the dies ad quem of the two-year statute of limitations being May 18, 2022. It also argues that the expiration of the administrative procedure does not, by itself, interrupt the statute of limitations for the infringements (Article 95.3 LPACAP), so the infringement for violation of Articles 32 and 25 of the GDPR should also

be considered time-barred.

In this regard, this Agency wishes to point out that it indeed agrees with GLOVOAPP that the dies a quo of the statute of limitations for the infringement for non-compliance with Articles 25 and 32 of the GDPR should be set on May 18, 2020, with the dies ad quem of the two-year statute of limitations being May 18, 2022. Furthermore, as established by Article 95.3 of the LPACAP, the expiration of procedure PS/00020/2021 has not interrupted the statute of limitations for the infringement in question. However, Article 64 of the LOPDGDD "Form of Initiation of the Procedure and Duration" in its section 2 states:

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"(...)

2. When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 and this organic law, it shall be initiated by an initiation agreement adopted on its own initiative or as a consequence of a complaint.

(...)

When the rules established in Article 60 of Regulation (EU) 2016/679 are applicable, the procedure shall be initiated by the adoption of the draft initiation agreement for sanctioning proceedings, of which formal notice shall be given to the interested party for the purposes provided for in Article 75 of this organic law."

In this regard, Article 75 "Interruption of the statute of limitations for the infringement" of the LOPDGDD establishes:

"(...)

When the Spanish Data Protection Agency holds the status of the main supervisory authority and the procedure provided for in Article 60 of Regulation (EU) 2016/679 must be followed, the formal knowledge by the interested party of the draft initiation agreement submitted to the interested supervisory authorities shall interrupt the statute of limitations."

For its part, the Fourth Additional Provision "Suspension of limitation and expiration periods" of Royal Decree 463/2020, of March 14, which declares the state of alarm for the management of the health crisis situation caused by COVID-19, provided that:

"The limitation and expiration periods for any actions and rights shall be suspended during the duration of the state of alarm and, where applicable, of the extensions that may be adopted."

And Article 9 "Administrative deadlines suspended by Royal Decree 463/2020, of March 14." of Royal Decree 537/2020, of May 22, which extends the state of alarm declared by Royal Decree 463/2020, of March 14, which declares the state of alarm for the management of the health crisis situation caused by COVID-19, established that:

"Effective from June 1, 2020, the counting of administrative deadlines that had been suspended shall resume, or shall restart, if so provided in a law approved during the duration of the state of alarm and its extensions."

In the present case, it is a sanctioning procedure in which the AEPD holds the status of the main supervisory authority, as it concerns cross-border processing carried out by a company (GLOVOAPP) that has its main establishment in Spain and provides services to several countries in the European Union, thus the rules established in Article 60 of the GDPR apply. Therefore, it is the adoption of the draft initiation agreement for sanctioning proceedings that initiates the present procedure and interrupts the statute of limitations for the infringement, the formal knowledge of the draft initiation agreement by GLOVOAPP.

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According to the file, the draft initiation agreement of the present sanctioning procedure was adopted on May 18, 2022, and was notified to GLOVOAPP on May 27, 2022.

Therefore, considering that the dies ad quem of the two-year statute of limitations was May 18, 2022, but taking into account that due to the exceptional situation caused by COVID-19, both the limitation and expiration periods were suspended from March 14, 2020, to June 1, 2020, the infringement of Articles 25 and 32 of the GDPR was not time-barred.

For all the above, this allegation is dismissed.

2. - Regarding the infringement of Article 13 of the GDPR for failing to inform about the existence of automated individual decisions

GLOVOAPP alleges that it did not make automated individual decisions that required informing the couriers, simply because it understands that none existed, so there has been no infringement of the transparency requirements provided for in Article 13 of the GDPR. The only thing that existed, in its view, were automated processes within the framework of the "excellence score" rating system that couriers used to select the time slot in which they wished to deliver, with a significant volume of manual intervention.

2.1 Difference between automated decision and automated execution of a decision

GLOVOAPP argues that the decision regarding which couriers were allowed to reserve a time slot before others was not made by the system, but rather the decision was already made when designing the time slot allocation model and, subsequently, when the courier received the information about this model and accepted it by signing the contract.

Therefore, the algorithm executed the previously adopted decision, applying a time slot table that was part of an agreement between GLOVOAPP and the courier. And this agreement is reinforced by the continued willingness of the courier to participate in the system.

Instead of an automated decision, GLOVOAPP defends the thesis that it was an automated process that performed the following functions:

1. Applied a time slot table agreed upon by the parties.
2. Executed a decision made by the parties by mutual agreement.
3. Entered the time slot according to a previously established order based on the preferences of the parties.

In this regard, this Agency wishes to point out that defending the thesis that GLOVOAPP applied a time slot table "agreed upon by the parties," that executed a decision "made by the parties by mutual agreement" and that entered the time slot according to a previously established order "based on the preferences of the parties" is, at the very least, surprising, since even in the hypothetical case of C/ Jorge Juan, 6

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that the workers accepted the use of the "excellence score" system in order to participate in the platform and were aware of the existence of a time slot table, they should have been informed that automated decisions were being made as contemplated in Article 22 of the GDPR, in the terms set out in Article 13 of the GDPR.

GLOVOAPP continues by arguing that if the previously established order had not been the excellence score system, but another, such as alphabetical order:

1. First, the couriers with surnames starting with A, B, C, or D enter.
2. Then those starting with E, F, G, or H.
3. And so on.

Would an automated decision occur by reserving first for couriers with a specific initial in their surname? The legal effects would be the same, regardless of the selection criterion. There would always be some couriers who would enter first and others who would enter later.

However, in neither case would the algorithm make a decision.

The conclusion reached by GLOVOAPP, therefore, is that it is an automated process (not an

automated decision that must be reported in accordance with Article 13 of the GDPR), in which the established order was applied, and previously accepted by the courier with the signing of the contract, and that the ordering criterion based on the excellence score is fairer and more beneficial for the courier than a less fair criterion such as that based on alphabetical order.

And that if alphabetical order had been chosen, it could be argued that couriers with surnames located at the end of the alphabet would have been consistently penalized, although this would not be true because GLOVOAPP never left a courier without collaborating with the platform, thanks to the (in its view) evident manual intervention that it will demonstrate later.

GLOVOAPP argues that this difference between automated decision and automated process is also addressed by the Article 29 Working Party in its Guidelines on Automated Individual Decision-Making and Profiling for the purposes of Regulation 2016/679 (the "Guidelines").

In this regard, this Agency wishes to point out that it does not doubt that there is a difference between a mere automated process and decision-making through automated processes.

The aforementioned Guidelines state: "Decisions based solely on automated processing represent the ability to make decisions by technological means without human involvement."

That is to say, the making of an automated decision does not consist of a mere automated process, such as an automatic order dispatch system or goods receipt, but refers to the ability to make decisions by technological means. The use of technology to make decisions that affect individuals and that require the processing of personal data poses a greater risk to the rights and freedoms of the data subjects, as the algorithm may make erroneous, biased, or unfair decisions. Therefore, the GDPR establishes the safeguards that must be adopted in the use of algorithms that make decisions due to the greater risk they entail, among which the controller is imposed a duty of transparency.

In point IV of the aforementioned Guidelines, it states:

"Article 22, paragraph 1, refers to decisions 'based solely' on automated processing. This means that there is no human involvement in the decision-making process.

Example

An automated process produces what is, in reality, a recommendation regarding the data subject. If a human reviews and takes into account other factors to make the final decision, that decision will not be 'based solely' on automated processing.

The data controller cannot overlook the provisions of Article 22 by inventing human involvement. For example, if someone routinely applies automatically generated profiles to individuals without this having any real influence on the outcome, this would still be a decision based solely on automated processing.

To be considered as human involvement, the data controller must ensure that any oversight of the decision is meaningful, rather than merely a symbolic gesture. It must be carried out by an authorized and competent person to modify the decision. As part of the analysis, all relevant data must be taken into account.

As part of the DPIA, the data controller must identify and record the degree of human involvement in the decision-making process and at what point this occurs."

In the present case, setting aside considerations about which ordering criterion is the fairest for the couriers, this Agency understands that it is the system that made the decision about the order in which certain couriers were allowed to access a specific time slot for reservation, regardless of the fact that it was GLOVOAPP as the data controller who introduced the necessary parameters into the System for it to make such a decision.

The decision about the order in which couriers were allowed to access time slots was made by the application, without any human intervention of any kind.

Human intervention only occurred in those cases where couriers made claims, but if there was no claim, there was no human intervention that modified that decision nor any oversight of such a decision.

The fact that a certain number of human interventions had occurred, as GLOVOAPP points out in its expert report to which it refers,

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In point 2.3 of the allegations regarding the initiation agreement of the present sanctioning procedure,

it does not prevent the decision on access to the time slots in question from having been made by the application without any human intervention on its part, especially considering that human intervention did not occur in all cases and that it was carried out only after a claim from the interested parties, which would fulfill the obligation of the controller to ensure the right of the interested parties to obtain human intervention, as stated in Article 22.3 of the GDPR, which provides: "In the cases referred to in paragraph 2, letters a) and c), the controller shall take appropriate measures to safeguard the rights and freedoms and the legitimate interests of the data subject, at a minimum the right to obtain human intervention on the part of the controller, to express their point of view and to contest the decision," and in Recital 71: "(...) However, decisions based on such processing, including profiling, should be allowed if expressly authorized by Union or Member State law applicable to the controller, even for the purposes of fraud control and prevention and tax evasion, carried out in accordance with the regulations, standards, and recommendations of the Union institutions or national supervisory bodies and to ensure the security and reliability of a service provided by the controller, or necessary for the conclusion or execution of a contract between the data subject and a controller, or in cases where the data subject has given explicit consent. In any case, such processing must be subject to appropriate safeguards, including specific information to the data subject and the right to obtain human intervention, to express their point of view, to receive an explanation of the decision made after such assessment, and to contest the decision (...)." However, the adoption of this system of safeguards does not exempt the controller from fulfilling the information duties set out in Article 13.2.f) of the GDPR.

Finally, it is worth noting that the data regarding human interventions should have been provided by GLOVOAPP through an expert report, as it lacked the DPIA that the same Guidelines indicate should have been carried out to precisely identify and record the degree of human participation in the decision-making process and at what point this occurs.

Therefore, this Agency considers that it would be an automated decision in the terms of Article 22 of the GDPR and, for all the reasons stated, this Agency dismisses the present allegation.

2.2 The algorithm does not decide who enters and who does not

GLOVOAPP claims that the system managing the reservation of hours did not decide who entered and who did not, but rather that the couriers entered in blocks, one block after another, in a pre-established order.

It explains that in the GLOVOAPP hour reservation system there was a maximum load of couriers per time slot and groups of couriers, with the sequence being as follows:

1. The couriers manually selected the time slots in which they wished to work.

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2. In each time slot, there was a predefined maximum number of couriers, manually set based on the estimated demand volume for that slot.

3. The system created groups of couriers ordered according to the criteria established in the contract.

4. If the sorting criterion were alphabetical, the system would act exactly the same.

5. At the designated time, the groups of couriers would enter the time slots.

6. The system admitted the groups in the pre-established order.

7. The system did not decide who enters and who does not.

It indicates that GLOVOAPP could intervene manually in all phases of the process:

1. It could manually modify the score.

2. It could modify the groups.

3. It could modify the inclusion of a courier in one group or another.

4. For example, it could apply the function "boost courier with a tag," which allowed couriers with a certain tag to advance positions. For instance, those with a bicycle.

5. It could apply a "kickout" (manual expulsion) to a courier regarding a time slot.

6. It could manually open the calendar to allow more couriers to enter a time slot.

In this regard, this Agency understands that it was the System that formed the blocks of couriers and assigned them a priority order when selecting a particular time slot, based on the "excellence score." This selection was made without human intervention, that is, in an automated manner, as explained earlier. Regardless of the possibility of human intervention in all phases of the process, the determination of the blocks of couriers and their priority when selecting a time slot was made by the System. Human intervention was a possibility that existed to perform specific actions that could modify the decision made by the System, but this does not prevent the decision regarding the priority assigned to a courier from being made automatically.

For all the above reasons, this allegation is dismissed.

2.3 Expert report demonstrating the high percentage of human intervention in the automated process
In the expert report submitted as DOCUMENT 2 of the allegations to the initiation agreement of the present sanctioning procedure, a representative sample of operations of the excellence score system is analyzed to demonstrate the non-existence of automated individual decisions during the months of February and March 2020, dates when the AEPD inspection took place, concluding:

"From the previous results, a clear human intervention in the decision-making regarding the access of couriers to the reservation of time slots is deduced, reaching even in some cases nearly 40% of the total analyzed operations."

GLOVOAPP argues that the conclusions of this expert report leave no room for doubt, as they undoubtedly demonstrate that the level of human intervention in the automated process is very high and concludes that the application of the figure of automated individual decisions should be excluded from this data processing as it is non-existent.

The aforementioned report details that "between the dates of March 20, 2020, and April 1, 2020, there were a total of 16,175 log entries, of which 38.6% were manual interventions corresponding to 'kickout' actions or manual expulsions of couriers from the reserved time slot. These actions were performed by 29 different human operators."

And that "in a sample of one week (from March 24, 2020, to April 1, 2020), there were up to 13 manual increases in the capacity of the time slots, performed by 6 different human operators."

In this regard, this Agency wishes to point out that the Guidelines on automated individual decisions and profiling for the purposes of Regulation 2016/679 indicate that:

"Article 22, paragraph 1, refers to decisions 'based solely' on automated processing. This means that there is no human involvement in the decision-making process. (...)

(...)

To be considered as human involvement, the data controller must ensure that any oversight of the decision is significant, rather than merely a symbolic gesture. It must be carried out by an authorized and competent person to modify the decision. As part of the analysis, all relevant data must be taken into account.

As part of the DPIA, the data controller must identify and record the degree of human involvement in the decision-making process and at what point it occurs."

In the present case, the fact that there were a certain number of human interventions does not imply that the System was not making automated decisions. In fact, Article 22 of the GDPR establishes that, in cases where the processing is necessary for the execution of the contract (as in the present case), "the data controller shall take appropriate measures to safeguard the rights and freedoms and the legitimate interests of the data subject, at least the right to obtain human intervention on the part of the controller, to express their point of view and to contest the decision." Therefore, the possibility of human intervention in the case of making automated decisions is, in fact, an obligation imposed on the data controller, who must guarantee this possibility to those affected by such decisions.

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Furthermore, as stated in the aforementioned "Guidelines," the data controller (in this case, GLOVOAPP) should have conducted a DPIA in order to identify and record the degree of human involvement in the decision-making process and at what point this occurs.

In any case, none of this prevents GLOVOAPP, through the use of the "excellence score," from making automated decisions as referred to in Article 22 of the GDPR without informing about it (even denying it) in the relevant documents, thus violating the provisions of Article 13 of the GDPR.

Therefore, this Agency considers that it would constitute an automated decision in the terms of Article 22 of the GDPR and, for all the reasons stated, this Agency dismisses the present allegation.

Finally, GLOVOAPP considers it important to mention that this expert report had to be prepared by them to refute the assumptions made by the AEPD when, in reality, the burden of proof corresponded to this Agency.

In this regard, this Agency wishes to point out that the data regarding human interventions should have been provided by GLOVOAPP through an expert report due to the lack of the DPIA that the same Guidelines indicate should have been conducted to identify and record precisely the degree of human involvement in the decision-making process and at what point this occurs.

For all the reasons stated, the present allegation is dismissed.

2.4 Permanent commitment to assign orders to all available couriers

GLOVOAPP claims that the statistics from previous years do not show any time slots in which couriers have been unable to enter to make their reservation due to Glovo's commitment to manually allow couriers into the time slots they require. GLOVOAPP indicates that this commitment has been and is permanent, as the objective is that no courier is left out of the desired time slot in which to make their reservation.

And that the AEPD cannot predict the future nor presume that this manual intervention will not occur. For this, the AEPD would have to demonstrate a restrictive intent from GLOVOAPP, which has never been evidenced.

In this regard, this Agency wishes to point out that Article 22 of the GDPR states: "Everyone shall have the right not to be subject to a decision based solely on automated processing, including profiling, which produces legal effects concerning him or her or similarly significantly affects him or her." That is to say, the individual automated decisions regulated in Article 22 are those that are based solely on automated processing and that produce legal effects on the data subjects or significantly affect them in a similar manner.

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In this regard, this Agency understands that the "excellence score" produced legal effects on the interested parties as it assigned them a priority to access the reservation of hours for a specific time slot, which directly impacted their work and income. The fact that there could be a manual intervention, as previously explained, does not prevent that in this case individual automated decisions were being made.

At no time has this Agency questioned the commitment that GLOVOAPP claims to maintain with its delivery personnel, to manually allow delivery personnel into the time slots they required. It is simply to point out that GLOVOAPP was making decisions based solely on automated processing and that these decisions produced legal effects for the interested parties (the riders) and, therefore, these were the decisions regulated by Article 22 of the GDPR and should have been indicated as such in the relevant documents.

For all the above reasons, this allegation is dismissed.

2.5 The hour reservation system has been eliminated

GLOVOAPP claims that everything discussed so far has referred to the hour reservation system that was in effect at the time of the inspection, but that the entry into force of the so-called Rider Law (by means of Royal Decree-Law 9/2021, of May 11, which amends the consolidated text of the Workers'

Statute, approved by Royal Legislative Decree 2/2015, of October 23, to guarantee the labor rights of individuals engaged in delivery in the context of digital platforms) has displaced the hour reservation system (excellence score), which was replaced by another system based on the order of arrival of the delivery personnel and applies the principle of "first come, first served."

And that this makes it so that no type of projection, assumption, or presumption about the future legal effects of the automated hour reservation process is applicable, since as of August 12, 2021, it no longer exists.

In this regard, this Agency positively values the discontinuation of the use of the hour reservation system (excellence score) and wishes to point out that it does not make any type of "projection, assumption, or presumption about the future legal effects" of the hour reservation process, but rather that in this case, GLOVOAPP was making individual automated decisions as per Article 22 of the GDPR without properly informing the delivery personnel about this in the relevant documentation. For all the above reasons, this allegation is dismissed.

2.6 Non-existent breach of the duty to inform regarding the making of individual automated decisions
GLOVOAPP alleges that, since there were no automated decisions but rather automated processes, it considers that it was not necessary to inform the delivery personnel about the existence of automated decisions. And that, ultimately, it is important to understand the spirit of the regulation since it cannot be considered that Glovo is not a company committed to and aware of the protection of personal data, as from everything...

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Previously argued, it is easily deduced (in its opinion) that it is a company with high sensitivity and respect for the protection of personal data.

In this regard, this Agency insists that GLOVOAPP was indeed making automated individual decisions and, therefore, should have duly informed the couriers of such a situation.

Regarding the "spirit of the regulation" referred to by GLOVOAPP, this Agency wishes to point out that Recital 71 of the GDPR states:

"(71) The data subject shall have the right not to be subject to a decision, which may include a measure, that evaluates personal aspects concerning him or her, and which is based solely on automated processing and produces legal effects concerning him or her or similarly significantly affects him or her, such as the automatic denial of an online credit application or online hiring services in which there is no human intervention. This type of processing includes profiling consisting of any form of automated processing of personal data that evaluates personal aspects concerning a natural person, in particular to analyze or predict aspects related to work performance, economic situation, health, personal preferences or interests, reliability or behavior, the situation or movements of the data subject, to the extent that it produces legal effects concerning him or her or similarly significantly affects him or her. However, decisions based on such processing, including profiling, shall be allowed if expressly authorized by Union or Member State law applicable to the data controller, even for the purposes of fraud and tax evasion control and prevention, carried out in accordance with the regulations, standards, and recommendations of Union institutions or national supervisory bodies and to ensure the security and reliability of a service provided by the data controller, or necessary for the conclusion or performance of a contract between the data subject and a data controller, or in cases where the data subject has given explicit consent. In any case, such processing must be subject to appropriate safeguards, including specific information to the data subject and the right to obtain human intervention, to express his or her point of view, to receive an explanation of the decision reached after such evaluation, and to contest the decision. Such a measure must not affect a minor."

The aforementioned Guidelines on automated individual decisions and profiling for the purposes of Regulation 2016/679 explain:

"(...)

In summary, Article 22 provides as follows:

- i) as a rule, there is a general prohibition on making individual decisions based solely on automated processing, including profiling, which produce legal effects or similarly significant effects;
- ii) there are exceptions to this rule;
- iii) when one of these exceptions applies, there must be measures in place to safeguard the rights and freedoms of the data subject, as well as their legitimate interests.

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This interpretation reinforces the idea that it is the data subject who should have control over their personal data, which aligns with the fundamental principles of the GDPR. Interpreting Article 22 as a prohibition rather than as a right that must be invoked means that individuals are automatically protected against the potential consequences that this type of processing may have. The wording of the article suggests that this is the intention, and it is supported by Recital 71, which states the following:

"However, decisions based on such processing, including profiling, should be allowed if expressly authorized by Union or Member State law [...], or necessary for the conclusion or performance of a contract [...], or in cases where the data subject has given explicit consent."

This implies that the processing provided for in Article 22, paragraph 1, is generally not permitted. However, the prohibition in Article 22, paragraph 1, only applies in specific circumstances when a decision based solely on automated processing, including profiling, produces legal effects or similarly significantly affects someone, as explained further in the guidelines. Even in these cases, there are defined exceptions that allow such processing to take place.

The mandatory protective measures, described in more detail below, include the right to be informed (provided for in Articles 13 and 14—specifically significant information about the logic involved, as well as the significance and expected consequences for the data subject) and safeguards, such as the right to obtain human intervention and the right to contest the decision (provided for in Article 22, paragraph 3).

Any processing that likely entails a high risk for the data subjects requires the controller to carry out a data protection impact assessment (DPIA). In addition to addressing any other risks related to the processing, a DPIA can be especially useful for those controllers who are unsure whether their proposed activities fall within the definition of Article 22, paragraph 1, and, in the event that an identified exception permits them, what protective measures should be applied. (...)

That is to say, in principle, the GDPR prohibits individual decision-making based solely on automated processing that produces legal effects concerning the data subject or significantly affects them, as in this case, since the priority with which a delivery person enters a specific time slot, or not, directly affects their income. For this reason, the duty of transparency is reinforced in these cases, so that the data subject is aware that automated decisions are being made and their effects.

Finally, the same Guidelines warn that for those cases where the controllers are unsure whether their activities align with the definition of Article 22, paragraph 1, a DPIA is particularly useful, which has not been conducted in the present case.

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For all these reasons, despite GLOVOAPP claiming to be “a company committed and sensitive to the protection of personal data, as it can be easily deduced from all the arguments presented above that it is a company with high sensitivity and respect for the protection of personal data,” it has not been demonstrated in the present procedure that GLOVOAPP complied with the applicable regulations regarding the information provided to the couriers concerning the adoption of automated individual decision-making as per Article 22 of the GDPR.

For all the above, this allegation is dismissed.

3. - Regarding the infringement of Articles 25 and 32 of the General Data Protection Regulation due to the existence of indiscriminate access to the couriers' data

In this regard, this Agency wishes to point out that Article 25 of the GDPR imposes the obligation on the data controller to apply, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures designed to effectively apply the principles of data protection and integrate the necessary safeguards into the processing, in order to comply with the requirements established in the GDPR and protect the rights of the data subjects. It also obliges the data controller to apply appropriate technical and organizational measures to ensure that, by default, only personal data that is necessary for each specific purpose of the processing is processed.

When the GDPR refers to measures that ensure personal data is not accessible, without the intervention of the individual, to an indeterminate number of natural persons, it uses the phrase "in particular." This means that preventing indiscriminate access to the couriers' data is one of the obligations referred to in the GDPR, but it is not the only one. In fact, the first obligation referred to in Article 25.2 of the GDPR is to apply appropriate measures to ensure that, by default, only personal data that is necessary for each specific purpose of the processing is processed. In other words, that data that is not strictly necessary for each purpose for which it is processed is not processed.

In the present case, data was being processed, through access to it, from couriers in countries that did not need to be processed to track those couriers, due to a lack of foresight in the design of the system that did not guarantee compliance with the principles of data protection and did not establish measures to ensure that, by default, workers would only process the data of the couriers that were necessary. Therefore, by processing more data than strictly necessary, Article 25 of the GDPR was being infringed.

The same can be said for Article 32 of the GDPR, as the technical and organizational measures applied did not guarantee an adequate level of security relative to the risk, since measures had not been implemented to prevent users from accessing data of couriers that was not necessary to process for the purpose for which it was used.

For all the above, this allegation is dismissed.

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3.1 Legal Basis for the Sanction

GLOVOAPP alleges that the AEPD considers that Articles 25 and 32 of the GDPR have been infringed because it was possible to access the data of couriers located in any country of the European Union from any country of the European Union, without discrimination in access by country.

And that the AEPD relies on the provisions of Articles 25, 32, and 83.4 of the GDPR and Article 73 of the LOPDGDD to impose its sanction, specifically citing the following infringements:

1. The failure to adopt those technical and organizational measures that are appropriate to effectively apply the principles of data protection by design, as well as the failure to integrate the necessary safeguards in the processing, as required by Article 25 of the GDPR.
 2. The failure to adopt the appropriate technical and organizational measures to ensure that, by default, only personal data necessary for each specific purpose of the processing will be processed, in accordance with the requirements of Article 25.2 of the GDPR.
 3. The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of the processing, as required by Article 32.1 of the GDPR.
- However, it indicates that in its initiation agreement, the AEPD specifically focuses on the cross-border and indiscriminate access to the data of couriers, which confines the infringement to Article 25.2 of the GDPR, and specifically to two very specific obligations:
1. To apply the appropriate technical and organizational measures to ensure that, by default, only

personal data that is necessary for each specific purpose of the processing is subject to processing. This obligation applies to the accessibility of the data.

2. To ensure that personal data is not accessible, without the intervention of the individual, to an indeterminate number of natural persons.

In this regard, this Agency wishes to clarify that the text of paragraph 2 of Article 25 of the GDPR is as follows:

“2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data that is necessary for each specific purpose of the processing is processed. This obligation shall apply to the amount of personal data collected, the extent of its processing, the period of its storage, and its accessibility. Such measures shall ensure in particular that, by default, personal data is not accessible, without the intervention of the individual, to an indeterminate number of natural persons.”

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That is, the obligation to implement appropriate measures to ensure that only the personal data necessary for each specific purpose of processing is subject to processing applies not only to the accessibility of the data but also to the amount of personal data collected, the extent of its processing, and its retention period.

And that, in particular, such measures must ensure that, by default, personal data is not accessible, without the intervention of the individual, to an indeterminate number of natural persons. This means that such measures must guarantee the aforementioned, but not only that.

This Agency insists that when the GDPR refers to measures that ensure personal data is not accessible, without the intervention of the individual, to an indeterminate number of natural persons, it uses the phrase "in particular." This means that preventing indiscriminate access to the data of couriers is one of the obligations referred to by the GDPR, but it is not the only one. In fact, the first obligation referred to in Article 25.2 of the GDPR is to implement appropriate measures to ensure that, by default, only personal data that is necessary for each specific purpose of processing is processed. In other words, that data that is not strictly necessary for each purpose for which it is processed is not processed.

In the present case, data of couriers from countries that did not need to be processed to track those couriers was being processed due to a lack of foresight in designing appropriate measures to ensure compliance with the principle of data minimization, as well as the absence of appropriate measures to ensure that, by default, only necessary data is processed. Therefore, Article 25 of the GDPR is not being complied with.

The same can be said for Article 32 of the GDPR, since the technical and organizational measures applied did not guarantee an adequate level of security relative to the risk, given that the system allowed users access to data of couriers that was not necessary for the purpose for which it was used.

3.2 Organizational evolution of Glovo from its establishment to the time of the inspection

GLOVOAPP claims that the inspection that gave rise to this second sanctioning procedure took place on February 12, 2020, and March 4, 2020, being perfectly adequate for the structure of Glovo, which then presented the concept of a single organizational unit and "lean startup."

And that the companies from the different countries that formed the Glovo group acted as a single organizational unit and with a single computer system, assuming in many cases the parent company and subsidiaries' departments transversal functions that involved the processing of personal data of couriers.

In this regard, it indicates that it is necessary to take into account that, on the dates of the inspection, GLOVOAPP was a rapidly growing company based in Barcelona. And

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It was from its headquarters that all access permissions to data of couriers located in different countries of the European Union were managed.

And that, as could be verified during the inspection, only the individuals who at that moment held the position of Account Manager, that is, those who managed accounts of various companies from different countries, were the ones who could access data of couriers located in various countries of the European Union.

In this regard, GLOVOAPP explains that it started as a company with only two employees and has now grown to more than three thousand employees. Consequently, it is reasonable to understand that its organizational structure has evolved over time and, therefore, so has the management of access permissions to personal data of couriers.

Initially, GLOVOAPP managed the accounts of couriers in a centralized manner from Barcelona due to the unique "lean startup" organizational structure it presented to facilitate the achievement of the defined processing purposes. Subsequently, and even while Glovo remained a unique organizational unit and a "lean startup," as the AEPD could verify during its inspection, access permissions were granted based on whether the user had activated the "EU User Access" permission or not, and finally, these access profiles began to be defined by geographical regions by countries and/or cities referred to as "city group permissions."

In short, GLOVOAPP believes that it has never neglected its obligation to comply with the principles of data protection by design and by default recognized in the GDPR; on the contrary, it has consistently strived to reconcile compliance with this obligation according to the organizational structure and size it presented at each moment and, therefore, it considers that the intervention of the AEPD in Glovo's organizational freedom would infringe upon the freedom of enterprise within the framework of a free market economy, in accordance with the provisions of Article 38 of the Spanish Constitution.

In this regard, this Agency wishes to remind the concept of proactive responsibility, regulated in paragraph 2 of Article 5 "Principles relating to processing" of the GDPR, which states: "2. The data controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it ('proactive responsibility')."

Directly related to the principle of proactive responsibility provided for in Article 5.2 of the GDPR is the "Responsibility of the data controller," from Article 24 of the GDPR, which states:

"1. Taking into account the nature, scope, context, and purposes of the processing as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is in compliance with this Regulation. Such measures shall be reviewed and updated when necessary."

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2. When provided in relation to processing activities, among the measures mentioned in paragraph 1, the implementation by the data controller of appropriate data protection policies shall be included. (...)"

In line with these provisions, Recital 74 of the GDPR states: "The responsibility of the data controller for any processing of personal data carried out by them or on their behalf must be established. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of processing activities with this Regulation, including the effectiveness of the measures."

Similarly, related to the principle of proactive responsibility is the principle of "Data protection by design and by default," as set out in Article 25 of the GDPR, which establishes:

"1. Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity posed to the rights and freedoms of natural persons, the data controller shall implement, both at the time of

determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing, in order to meet the requirements of this Regulation and protect the rights of data subjects.

2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data which are necessary for each specific purpose of the processing are processed. This obligation shall apply to the amount of personal data collected, the extent of their processing, the duration of their storage, and their accessibility. Such measures shall ensure in particular that, by default, personal data are not accessible, without the intervention of the data subject, to an indefinite number of natural persons.

3. An approved certification mechanism under Article 42 may be used as an element to demonstrate compliance with the obligations set out in paragraphs 1 and 2 of this Article."

In line with these provisions, Recital 78 of the GDPR states:

"The protection of the rights and freedoms of natural persons with regard to the processing of personal data requires the adoption of appropriate technical and organizational measures to ensure compliance with the requirements of this Regulation. In order to demonstrate compliance with this Regulation, the data controller must adopt internal policies and implement measures that comply in particular with the principles of data protection by design and by default. Such measures could consist, among others, of minimizing the processing of personal data, pseudonymizing personal data as soon as possible, providing transparency regarding the functions and processing of personal data,

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allowing interested parties to supervise the processing of data and the data controller to create and improve security elements. In developing, designing, selecting, and using applications, services, and products that are based on the processing of personal data or that process personal data to fulfill their function, producers of products, services, and applications should be encouraged to take into account the right to data protection when developing and designing these products, services, and applications, and to ensure, with due regard to the state of the art, that data controllers and processors are in a position to fulfill their obligations regarding data protection. The principles of data protection by design and by default must also be considered in the context of public contracts.

Specifically, in light of GDPR Recital 78, the principle of data protection by design is the key that the data controller must follow to demonstrate compliance with the GDPR, as "the data controller must adopt internal policies and implement measures that comply in particular with the principles of data protection by design and by default."

Throughout this procedure, it has been established that the access permission system for the data of delivery personnel, instituted by GLOVOAPP, initially did not comply with these principles and obligations established by the GDPR, since the company did not conduct a prior analysis of the processing in which the possible implications for the rights and freedoms of the delivery personnel were adequately analyzed, which would have avoided the implementation of a permission management model that did not guarantee the principle of minimization. On the contrary, GLOVOAPP did not adopt a proactive stance but rather a reactive attitude, modifying the management of access permissions to the personal data of the delivery personnel as if they were "patches" in the software, solving problems as they arose in accordance with changes in the organizational structure, as GLOVOAPP has stated in its allegations to the initiation agreement of this sanctioning procedure. The freedom of enterprise enshrined in Article 38 of the Spanish Constitution is not an absolute right, but must be reconciled with the other rights recognized by the legal system.

In this regard, it is pertinent to mention Judgment 292/2000, of November 30, of the Constitutional Court, which establishes the right to data protection as an autonomous and independent right that consists of a power of disposition and control over personal data that empowers the individual to decide which of those data to provide to a third party, whether the State or a private individual, or what

data this third party may collect, and which also allows the individual to know who holds that personal data and for what purpose, being able to oppose that possession or use. Thus, according to Legal Grounds 4, 5, 6, and 7 of the ruling of the high court:

“4. Without the need to detail the extensive possibilities that computing offers both for collecting and communicating personal data nor the undeniable risks that this may entail, given that a person may be unaware not only of what data concerning them is collected in a file but also whether it has been transferred to another and for what purpose, it is sufficient to indicate both aspects to understand that the fundamental right...”

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The right to privacy (art. 18.1 CE) alone does not provide sufficient protection against this new reality arising from technological progress.

However, with the inclusion of the current art. 18.4 CE, the constituent made it clear that it was aware of the risks that the use of information technology could entail and entrusted the legislator with the guarantee of certain fundamental rights as well as the full exercise of individual rights. This is, by incorporating a guarantee institution "as a response to a new form of concrete threat to the dignity and rights of the individual," but which is also "in itself, a fundamental right or freedom" (STC 254/1993, of July 20, FJ 6). The concern and purpose of the constituent is evident, on one hand, if one takes into account that since the draft of the constitutional text, a similar provision to the current art. 18.4 CE was already included and that it was later expanded by accepting an amendment to include its final clause. And more clearly, on the other hand, because if in the Senate debate some doubts arose about the necessity of this provision given the recognition of the rights to privacy and honor in the initial section, these were dispelled by highlighting that these rights, in view of their content, did not offer sufficient guarantees against the threats that the use of information technology could pose to the protection of private life. Thus, the constituent sought to guarantee through the current art. 18.4 CE not only a specific area of protection but also one more suitable than what could be offered, by themselves, by the fundamental rights mentioned in section 1 of the provision.

5. (...)

Well then, in these decisions, the Court has already declared that art. 18.4 CE contains, in the terms of STC 254/1993, a guarantee institution for the rights to privacy and honor and for the full enjoyment of the other rights of citizens which, moreover, is in itself "a fundamental right or freedom, the right to freedom against potential assaults on the dignity and freedom of the individual arising from the unlawful use of the mechanized processing of data, what the Constitution calls 'information technology'," which has been referred to as "information freedom" (FJ 6, reiterated later in SSTC 143/1994, FJ 7, 11/1998, FJ 4, 94/1998, FJ 6, 202/1999, FJ 2). The guarantee of the private life of the individual and of their reputation today possesses a positive dimension that exceeds the scope of the fundamental right to privacy (art. 18.1 CE), and translates into a right of control over data relating to the individual. The so-called "information freedom" is thus the right to control the use of the same data inserted in a computer program (habeas data) and includes, among other aspects, the citizen's opposition to certain personal data being used for purposes other than that legitimate purpose which justified its acquisition (SSTC 11/1998, FJ 5, 94/1998, FJ 4).

This fundamental right to data protection, unlike the right to privacy of art. 18.1 CE, which shares the objective of providing effective constitutional protection of personal and family private life, attributes to its holder a bundle of powers that consists mainly of the legal power to impose on third parties the performance or omission of certain behaviors whose specific regulation must be established by Law, which in accordance with art. 18.4 CE must limit the use of information technology, either by developing the fundamental right to data protection (art. 81.1 CE), or by regulating its...

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exercise (art. 53.1 CE). The peculiarity of this fundamental right to data protection in relation to the closely related fundamental right to privacy lies, therefore, in its distinct function, which consequently implies that its object and content also differ.

6. The function of the fundamental right to privacy under art. 18.1 CE is to protect against any invasion that may occur in that sphere of personal and family life that the individual wishes to exclude from the knowledge of others and from the intrusions of third parties against their will (see, among others, STC 144/1999, of July 22, FJ 8). In contrast, the fundamental right to data protection aims to guarantee that individual a power of control over their personal data, its use and destination, with the purpose of preventing its unlawful and harmful trafficking to the dignity and rights of the affected party. Ultimately, the right to privacy allows for the exclusion of certain data about a person from the knowledge of others; for this reason, and as this Tribunal has stated (SSTC 134/1999, of July 15, FJ 5; 144/1999, FJ 8; 98/2000, of April 10, FJ 5; 115/2000, of May 10, FJ 4), it is to safeguard their private life from unwanted publicity. The right to data protection guarantees individuals a power of disposition over that data. This guarantee imposes on public authorities the prohibition of becoming sources of that information without the necessary safeguards; and also the duty to prevent risks that may arise from the improper access or disclosure of such information. However, that power of disposition over one's own personal data is of no value if the affected party is unaware of what data is held by third parties, who holds it, and for what purpose.

Hence the uniqueness of the right to data protection, since, on the one hand, its object is broader than that of the right to privacy, as the fundamental right to data protection extends its guarantee not only to privacy in its constitutionally protected dimension under art. 18.1 CE, but also to what this Tribunal has sometimes defined in broader terms as the sphere of personal goods belonging to the realm of private life, inextricably linked to the respect for personal dignity (STC 170/1987, of October 30, FJ 4), such as the right to honor, expressly mentioned in art. 18.4 CE, and likewise, in the broad expression of art. 18.4 CE itself, to the full exercise of personal rights. The fundamental right to data protection expands the constitutional guarantee to those data that are relevant to or have an impact on the exercise of any rights of the individual, whether or not they are constitutional rights and whether or not they relate to honor, ideology, personal and family privacy, or any other constitutionally protected good.

In this way, the object of protection of the fundamental right to data protection is not limited solely to the intimate data of the individual, but to any type of personal data, whether or not intimate, whose knowledge or use by third parties may affect their rights, whether or not fundamental, because its object is not only individual privacy, which is protected by art. 18.1 CE, but personal data.

Consequently, it also extends to those public personal data, which by virtue of being so, accessible to anyone, do not escape the power of disposition of the affected party because their right to data protection guarantees it. For this reason, the fact that the data is of a personal nature does not mean that only those related to the private or intimate life of the individual are protected, but also...

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that the protected data includes all information that identifies or allows the identification of a person, which may serve to create their ideological, racial, sexual, economic, or any other type of profile, or that serves any other purpose that, under certain circumstances, constitutes a threat to the individual. However, the fundamental right to data protection also has a second peculiarity that distinguishes it from others, such as the right to personal and family privacy under Article 18.1 of the Spanish Constitution (CE). This peculiarity lies in its content, since, unlike the latter, which grants a person the legal power to impose on third parties the duty to refrain from any intrusion into the intimate sphere of the person and the prohibition of using what is thus known (Constitutional Court Judgments [SSTC] 73/1982, of December 2, FJ 5; 110/1984, of November 26, FJ 3; 89/1987, of June 3, FJ 3; 231/1988, of December 2, FJ 3; 197/1991, of October 17, FJ 3, and in general SSTC 134/1999, of July 15,

144/1999, of July 22, and 115/2000, of May 10), the right to data protection grants its holder a bundle of powers consisting of various legal powers whose exercise imposes legal duties on third parties, which are not contained in the fundamental right to privacy, and which serve the essential function that this fundamental right performs: to guarantee the person a power of control over their personal data, which is only possible and effective by imposing on third parties the aforementioned duties to act. Namely: the right to require prior consent for the collection and use of personal data, the right to know and be informed about the destination and use of that data, and the right to access, rectify, and cancel such data. Ultimately, the power of disposition over personal data (STC 254/1993, FJ 7).

7. From all that has been said, it follows that the content of the fundamental right to data protection consists of a power of disposition and control over personal data that empowers the person to decide which of those data to provide to a third party, whether the State or a private individual, or which data this third party may collect, and that also allows the individual to know who holds that personal data and for what purpose, being able to oppose that possession or use. These powers of disposition and control over personal data, which form part of the content of the fundamental right to data protection, are legally specified in the authority to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses, by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the authority to know at all times who holds that personal data and what use they are subjecting it to, and, on the other hand, the power to oppose that possession and uses.

In short, characteristic elements of the constitutional definition of the fundamental right to the protection of personal data are the rights of the affected individual to consent to the collection and use of their personal data and to be informed about the same. And the recognition of the right to be informed of who holds their personal data and for what purpose, as well as the right to oppose that possession and use by requiring the relevant party to cease the possession and use of the data, are indispensable to make that content effective. That is to say, demanding from the data holder that they inform them of what data they possess about them.

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person, accessing their appropriate records and entries, and what destination they have had, which also extends to possible assignees; and, if applicable, require them to rectify or cancel them."

Therefore, any action that deprives the person of those powers of disposition and control over their personal data constitutes an attack and a violation of their fundamental right to data protection. Consequently, a special duty of diligence is imposed when carrying out the use or processing of personal data, regarding compliance with the duties established by data protection legislation to guarantee the fundamental rights and public freedoms of individuals, and especially their honor and personal and family privacy, the intensity of which is enhanced by the relevance of the legal goods protected by those norms and the professionalism of the responsible parties or those in charge, especially when they operate for profit in the data market; in this sense, the National Court ruling 392/2015, of November 17 (See its Legal Ground Third) has also pronounced.

In short, due to the importance of the protected legal good, GLOVOAPP was obliged to find organizational solutions before the start of processing that guaranteed the principle of minimization and set, by default, a limit on the accessibility of the data, regardless of the size of its organization or the number of employees it had, since these risks were the same regardless of the number of couriers at a given moment.

The system of access permissions to the data of the couriers was not properly configured in the initial moments, so that access was limited geographically by default.

Claiming that GLOVOAPP complied with what is established in the GDPR in no way infringes upon the freedom of enterprise recognized in Article 38 of the Spanish Constitution. It simply requires that the company comply with current legislation. And in the field of the fundamental right to the protection of

personal data, it is the AEPD that holds the competence for this.

For all the above reasons, this allegation is dismissed.

3.3 Non-existence of indiscriminate access and an indeterminate number of users with access rights
GLOVOAPP argues that it is recorded in the inspection minutes and in the documents and evidence provided that there was potential access between countries, but at no time has it been proven that this access was "indiscriminate," as claimed by the AEPD, nor that there was an indeterminate number of users with access rights, as required by Article 25.2 of the GDPR.

On the contrary, it indicates that in the evidence gathered during the on-site inspection, it was verified that there were perfectly defined user profiles, and that in no case could all users access the couriers' data indiscriminately.

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GLOVOAPP emphasizes that the AEPD was able to verify in person that users of the Glovo platform, including customer service agents, had clearly defined access permissions to data of couriers from European Union countries, or from outside the European Union, depending on whether they had activated the "EU User Access" permission or not.

It states that subsequently, these access permissions were defined by geographic regions by countries and/or cities under the designation "city group permissions." And that the AEPD was able to perfectly verify the functioning of these permissions through the video recordings provided by Glovo during the procedure.

It points out that these access maps were configured to meet the aforementioned objectives of a unique organizational structure, in accordance with the concept of "lean startup" that GLOVOAPP presented at that time, as demonstrated by the table of access rights by department that was submitted in the context of PS/00020/2021.

In conclusion, in its opinion, the perimeter of the systems was perfectly delineated and restricted, and there was no indeterminate number of users with access rights.

It understands that the perimeter of the unique organizational unit and the unique computer system securely covered various countries, leaving the access map perfectly delineated, without being excessive or disproportionate.

It states that, although they covered several countries, there were certain profiles (such as the Account Manager) with access permissions to data of couriers from several countries, and some of them with privileged permissions (such as the LiveOps Project Manager Global) within a single computer system, with the different countries acting as departments of a single organizational structure and with delineated rights.

In conclusion, GLOVOAPP argues that it has not been proven in any way that there was indiscriminate access to personal data since, within the margin of organizational freedom that Glovo could enjoy, as has been proven (in its opinion) in the administrative file from which these allegations arise, GLOVOAPP at all times protected the personal data it processed within the framework of a free market economy and in accordance with the freedom of enterprise established in Article 38 of the Spanish Constitution.

In this regard, this Agency wishes to point out that it is not a matter of there being indiscriminate access to personal data (which, by the way, has not been stated in the initiation agreement of this procedure), but rather that the system of access permissions to the personal data of couriers did not comply with what is established in paragraph 2 of Article 25 of the GDPR in the sense of "ensuring that, by default, only personal data that are necessary for each specific purpose of the processing are subject to processing." Certainly, those who had the "EU User Access" permission had access to personal data of couriers that were not necessary for the purposes of their processing. So much so that subsequently this system of

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Access permissions were replaced by another, which grants access permissions differentiating by geographical regions by countries and/or cities.

As previously indicated, proactive responsibility involves the implementation of a compliance and management model for the GDPR that determines the widespread fulfillment of obligations regarding data protection. It includes the establishment, maintenance, updating, and control of data protection policies within an organization—understood as the set of guidelines governing the actions of an organization, practices, procedures, and tools—from privacy by design and by default, which ensure compliance with the GDPR, prevent the materialization of risks, and allow for the demonstration of compliance.

It pivots on risk management. As established in Report 0064/2020 from the Legal Department of the AEPD, the metamorphosis of a system that has transitioned from being reactive to becoming proactive is shown, since “at the present time, it must be taken into account that the GDPR has represented a paradigm shift in addressing the regulation of the right to personal data protection, which is now based on the principle of ‘accountability’ or ‘proactive responsibility’ as repeatedly pointed out by the AEPD (Report 17/2019, among many others) and is reflected in the Explanatory Memorandum of the LOPDGDD: ‘the greatest novelty presented by Regulation (EU) 2016/679 is the evolution from a model fundamentally based on compliance control to one that rests on the principle of active responsibility, which requires a prior assessment by the data controller or processor of the risk that may be generated by the processing of personal data in order to adopt the necessary measures based on that assessment.’”

It requires a conscious, committed, active, and diligent attitude. Consciousness implies the knowledge of one’s organization by the data controller and how it is affected by data protection and the inherent risks of personal data processing; commitment involves the willingness to comply and to truly take responsibility for the implementation of data protection policies within the organization; the active attitude is related to proactivity, effectiveness, efficiency, and operability; and diligence is the care, zeal, and dedication put into compliance.

GLOVO should have taken into account the applicable measures to its access system aimed at complying with the principle of minimization during the design process, which it does not appear to have done, a circumstance that constitutes a violation of Article 25.1 of the GDPR.

On the other hand, to comply with the principle of data protection by default, the data controller must not collect more data than is necessary, nor carry out a processing of the collected data that is broader than necessary for its purposes, nor retain the data for longer than necessary. The basic requirement is that data protection is integrated into processing by default, as stated in Guidelines 4/2019 regarding Article 25 Data Protection by Design and by Default.

Given the above, it can be stated that, from the instruction of the procedure, it was verified, among other things, the lack of adequate measures to ensure that, by default, only the data necessary for the intended purpose would be processed, which constitutes a violation of Article 25.2 of the GDPR.

A mechanism was also not established to limit users’ access to data that was not necessary, a circumstance that violates Article 32 of the GDPR.

For all the above reasons, this allegation is dismissed.

3.4 Disappearance of the subjective element of the administrative infringement

GLOVOAPP considers the same allegations and the same criteria of the AEPD applicable to this case as in the case of impact assessments related to data protection established in the previous PS/00020/2021.

GLOVOAPP believes that the same criteria apply to a management model based on a single organizational unit, as Glovo deemed it appropriate under the GDPR to establish a defined perimeter, in which different countries used a single IT system, with the corresponding access permission map based on user profile.

Therefore, it considers that GLOVOAPP cannot be attributed a willful or negligent conduct to the extent that it acted in good faith and conducted prior analyses while applying the measures that offered the greatest guarantees of personal rights protection. GLOVOAPP understands that, with the disappearance of the subjective element of the type of administrative infringement, it cannot be attributed the violation of Articles 25 and 32 of the GDPR.

However, as explained earlier, this Agency considers that GLOVOAPP did not act diligently. Denying the occurrence of negligent conduct on the part of GLOVOAPP would be equivalent to acknowledging that its conduct—by action or omission—has been diligent.

Obviously, this perspective of the facts is not shared, as the lack of due diligence has been established.

This Agency reiterates that throughout this procedure it has been established that the access permission system to the data of the delivery personnel, instituted by GLOVOAPP, did not initially comply with these principles and obligations established by the GDPR, since the company did not conduct a prior analysis of the processing in which the possible implications for the rights and freedoms of the data subjects were duly analyzed and the appropriate measures for the access permission management system were determined based on that analysis. Rather, GLOVOAPP did not adopt a proactive stance but rather a reactive attitude, modifying the management of access permissions to the personal data of the delivery personnel as if they were IT "patches," solving problems as they arose in accordance with changes in the organizational structure, as GLOVOAPP has stated in its allegations to the initiation agreement of this sanctioning procedure.

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Due to the importance of the protected legal interest, GLOVOAPP was obliged to find organizational solutions that did not pose a greater risk to the rights and freedoms of its delivery personnel and that ensured data security, regardless of the size of its organization or the number of employees it had, since these risks were those that needed to be taken into account regardless of the number of delivery personnel at any given time.

The access permission system for the delivery personnel's data was not configured in the initial stages with consideration for the possible risks to the rights and freedoms of its delivery personnel, nor was it configured in such a way that, by default, the data of the delivery personnel would not be accessible unless necessary for the purpose. GLOVOAPP should have ensured that, by default, access to the data of the delivery personnel was limited to the necessary geographical scope, in compliance with Article 25.2 of the GDPR.

Having established the above, it can be stated that, from the instruction of the procedure, it was also found, among other things, the lack of a mechanism for access permissions to the personal data of the delivery personnel that prevented users from accessing data that was not necessary and that guaranteed data security, as required by Article 32 of the GDPR.

Likewise, the fact that GLOVOAPP subsequently implemented modifications to the existing technical or organizational measures corroborates that those others did not provide adequate security.

For all the above reasons, this allegation is dismissed.

4.- ON THE ABUSE OF RIGHTS BY THE ADMINISTRATION AND ITS PATRIMONIAL LIABILITY

4.1. On the abuse of rights

GLOVOAPP alleges that the opening of a new sanctioning procedure (the current PS/00209/2022) after the previous procedure (PS/00020/2021) was declared expired, and based on identical facts and legal grounds, creates a situation of evident legal uncertainty for Glovo.

It cites the Judgment of the Supreme Court STS 3891/2002, of May 30, which states:

“Restarting a procedure multiple times after successive declarations of expiration, by causing a situation of legal uncertainty for the administered party, may lead to the recognition of an abuse of rights by the Administration.”

In this regard, this Agency wishes to point out that in the case of the Judgment of the Supreme Court STS 3891/2002, of May 30, it was a sanctioning procedure that had been declared expired due to the passage of its resolution period on two occasions, and only on the third occasion was a sanction imposed.

However, in the present case, this Agency only declared the expiration of the proceedings on a single occasion (procedure number PS/00020/2021) at

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having elapsed the period of 9 months provided for its resolution under Article 64.2 of the LOPDGDD and initiated a new sanctioning procedure (the present one) for infringements that were not time-barred, as provided for in Article 95.3 of the LPA-CAP:

“The expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into this. In any case, in the new procedure, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed.”

Therefore, this case does not involve a situation in which a procedure is restarted multiple times after successive declarations of expiration, nor can an abuse of rights by the Administration be appreciated, as this is a possibility specifically provided for in the same legislation that regulates the administrative procedure.

In fact, it is established case law of the Supreme Court as set forth in STS 4084/2003, which stated:

“The declaration of expiration and filing of proceedings established for procedures in which the Administration exercises sanctioning powers, Article 44.2 of Law 30/1992, do not extinguish the action of the Administration to exercise the powers referred to in that provision, with Article 92.3 of the same Law being fully applicable to them.”

In this regard, Article 44.2 of Law 30/1992, after establishing that the expiration of the period produced the expiration of the procedure ex officio, added: “In these cases, the resolution declaring the expiration will order the filing of the proceedings, with the effects provided for in Article 92.”

In the same vein, among others, the rulings STS 9569/2001, of December 5, and 2716/2002, of April 17, can be cited.

GLOVOAPP argues that once the expiration of a procedure is declared, it is unacceptable to proceed with the opening of a new procedure due to the basic principle of ne bis in idem, that is, because one cannot be sanctioned or “judged” twice for the same act. In this sense, it understands that it cannot be tolerable for an Administration to take advantage of the effects of its inactivity to argue that if it “sanctions again,” it cannot be considered that the first time it was sanctioned because that sanction “was null and void.”

In this regard, this Agency wishes to point out that GLOVOAPP is referring to a completely different situation from that posed in the present case. GLOVOAPP refers to a situation in which a sanction had been imposed once the period for doing so had elapsed, making the sanction null and void, and once appealed, its nullity is declared, and a new sanctioning procedure is opened because the infringement is not time-barred.

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In this case, this Agency had not yet issued a resolution when it declared the expiration of proceedings number PS/00020/2021, nor did it issue a sanctioning resolution thereafter. Therefore, there was no resolution null and void by law. It simply limited itself to declaring the expiration of the proceedings, verifying that the infringements in question had not expired, and opening a new sanctioning procedure, as provided for in Article 95.3 of the LPACAP.

In this regard, GLOVOAPP brings to attention the recent pronouncements of the Supreme Court in its ruling STS 1805/2021, of May 6, which state as follows:

“What is contemplated is a simple delay in the processing of said procedure, highlighting that the Legislator, while the sanctioning procedure must be processed within a reasonable period, which is normatively imposed on the Administration, does not authorize the Administration to arbitrarily exhaust such deadlines without any basis; rather, based on the principle of effectiveness that is imposed on all administrative actions, including the processing of procedures, it requires diligence through the indirect means of restarting the statute of limitations.”

“...the purpose of the norm is to guarantee to the presumed responsible parties not only that the Administration must process the procedure to impose a sanction and that it must be processed within the specified period, but also that, without prejudice to this, the Administration must process the procedure with sufficient diligence, not delaying the proceedings beyond what is necessary...”

In this regard, this Agency wishes to point out that in the Supreme Court ruling STS 1805/2021, of May 6, the issue of casational interest was to determine: “Whether for the statute of limitations of the infringements to operate -once more than a month of suspension of the sanctioning procedure not attributable to the responsible party has elapsed- the computation of the period must be restarted in its entirety or, on the contrary, the already elapsed monthly period must be deducted from it.”

In this sense, in the present case, there has been no delay in the procedure that would have caused the statute of limitations to restart due to having been suspended for more than six months for reasons not attributable to the alleged infringer (Article 75 of the LOPDGDD). Nor has this Agency at any time claimed that the statute of limitations was interrupted during the duration of the sanctioning procedure number PS/00020/2021, which has already expired, in order to initiate the present sanctioning procedure.

It has simply limited itself to applying the aforementioned Article 95.3 of the LPACAP, which contemplates the possibility of initiating a new procedure due to the absence of the aforementioned expiration of the infringement, as in the present case.

GLOVOAPP also cites the ruling of the Superior Court of Justice of the Region of Murcia in its Judgment 1207/2002 of April 29. It argues that the expiration of a procedure should be an instrument of guarantee and tranquility for the administered party, and they should not have to bear the consequences of the Administration's inactivity in not having resolved the sanctioning procedure within the legally established time. Otherwise, the Administration (in this case, the Agency) would be taking advantage of...

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of its unequal position against the regulated party to reopen any sanctioning procedures it wishes.

In this regard, it states that the 9-month period established in Article 64.2 of the LOPDGDD for procedures aimed at determining a possible existence of an infringement of the GDPR (such as the sanctioning procedures that concern us here, namely, PS/00020/2021 and PS/00209/2022), has no other purpose than to ensure that if the Agency itself does not comply with this period, the Law penalizes its passivity or administrative negligence with the expiration of the sanctioning administrative procedure.

It argues that, given the circumstances, on April 26, 2022, the AEPD proactively declared the filing of proceedings number PS/00020/2021 due to the expiration of the aforementioned period. And that reopening a new procedure now based on identical facts and legal grounds can only be classified as a clear act of abuse of rights by this Agency since the expiration, which is meant to be a guarantee and

peace of mind for the citizen, would thus become a mere instrument of the alleged negligence of the officials; an instrument that ultimately falls on the shoulders of GLOVOAPP as the regulated party, which would not only be subjected to the torture (and, by the way, also to the costs) of a new file and the uncertainty it entails.

In this regard, this Agency wishes to point out that procedure number PS/00020/2021 expired not due to "negligence of the officials" or negligence of the Administration, but because, being a cross-border procedure, the decisions to be made must be by mutual agreement, which is why the deadline for issuing a sanctioning resolution in that procedure was exceeded, and for this reason, its expiration was declared.

Furthermore, this Agency wishes to emphasize that it has simply limited itself to applying the aforementioned Article 95.3 of the LPACAP, which contemplates the possibility of initiating a new procedure due to the non-occurrence of the prescription of the infringement, as in the present case. And it understands that one cannot speak of legal uncertainty or a clear abuse of rights by this Agency when it is the same law that regulates the administrative procedure that contemplates the option of initiating a new sanctioning procedure if the infringement in question is not prescribed, in the event that the previous proceedings have expired due to not having been resolved within the stipulated time. Finally, this Agency wishes to point out that the present procedure does not concern whether GLOVOAPP has suffered "torture" and "uncertainty" due to its actions, which in this case has always complied with the applicable regulations and the consolidated doctrine of the Supreme Court.

For all the above, this allegation is dismissed.

4.2. On the patrimonial liability of the Administration

GLOVOAPP alleges that the inactivity of this Administration has caused the expiration of the previous procedure PS number PS/00020/2021 and now demands that GLOVOAPP reiterate the allegations it has already presented with the corresponding direct costs for attorney fees, expert fees, and time spent on the defense.

It states that to appreciate the patrimonial liability of the Administration, a harmful result is required regardless of whether there has been any fault or negligence on the part of the administrative body. And, in its opinion, in this case, there is an effective, economically assessable, and individualized damage that is attributable to the Spanish Agency for Data Protection. And this attribution is based on the abnormal functioning of said Agency.

Therefore, it reserves the necessary actions to claim the patrimonial liability of the Administration for the damages caused by its inactivity.

In this regard, this Agency wishes to emphasize that the present procedure does not concern the possibility or not of appreciating the patrimonial liability of the Administration, which would be the subject of another procedure, and this Agency makes it clear that GLOVOAPP is free to take the actions it deems necessary for that purpose. While it is true that it seems difficult to consider that patrimonial liability could arise from the fact that the Administration acts in accordance with a provision expressly provided for in procedural legislation, such as the aforementioned Article 95.3 of the LPACAP, which expressly provides for the possibility of initiating a new procedure due to the expiration of the previous one, if the infringement in question is not prescribed (as in the present case).

For all the above, this allegation is dismissed.

5. – NULLITY OF THE ADMINISTRATIVE ACT DUE TO THE ABSENCE OF THE NECESSARY ELEMENTS TO CONSIDER THAT AN INFRINGEMENT EXISTS.

Furthermore, GLOVOAPP understands that in no case is its conduct sanctionable, for the reasons set forth below.

5.1 Absence of the subjective elements of the infringement. Nullity of Sanction

GLOVOAPP argues that it is necessary, first of all, to examine the concurrence, or more precisely the non-concurrence, of the fundamental elements and necessary requirements to impose a sanction in the case in question.

Thus, the principles that will govern the sanctioning power of the Administration will be, in general, those of Administrative Sanctioning Law and in particular, "the principles of legality, typicity, responsibility, proportionality, and non-concurrence."

It indicates that the LRJSP establishes that the administrative infringement consists of the action,

understood in the broad sense of any act - or omission of persons aimed at producing a result that the Legislator has classified as an infringement.

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And that, in accordance with the above, in order to be faced with an infringement in the area of personal data protection, there must have been a wrongful or negligent action or omission with any degree of negligence.

And it is the responsibility of the competent authority to examine whether the conduct under analysis is wrongful or negligent, as this assessment is essential for imposing a sanction since it constitutes elements of the administrative infringement.

In this regard, the Judgment of October 13, 2005, of the National Court is cited, as it provides a detailed review of the sanctioning principles, their evolution, and the applicable jurisprudential criteria. GLOVOAPP argues that the initiation Agreement disregards one of the essential elements for imposing a sanction, which is the examination of culpability.

And it must be taken into account that the Administration should have carried out this analysis and, therefore, since there can be no appreciation of any intent to infringe by GLOVOAPP and the assessment of such intent as an essential element of the administrative infringement has been omitted, the imposition of a sanction would be vitiated by nullity.

It points out that there is a possible sanction of 550,000 euros being demanded from GLOVOAPP with tremendous lightness. And it believes that before demanding such an amount, which undoubtedly could seriously compromise the Company's economy, a much more diligent analysis of the conduct should have been carried out, and therefore the sanction applied to GLOVOAPP should be annulled in full right due to lack of motivation.

In this regard, this Agency reiterates what has been previously stated regarding the infringement of Articles 25 and 32 of the GDPR, in the sense that it considers that GLOVOAPP did not act diligently.

And that denying the occurrence of negligent conduct by GLOVOAPP would be equivalent to acknowledging that its conduct—by action or omission—has been diligent.

Obviously, this perspective of the facts is not shared, as the lack of due diligence has been established.

This Agency reiterates that throughout this procedure it has been established that the access permission system for the data of the delivery personnel, instituted by GLOVOAPP, did not initially comply with the principles of data protection by design and by default, nor with the security obligations derived from the GDPR, since the company did not conduct a prior analysis of the processing in which the possible risks to the rights and freedoms of its delivery personnel were adequately analyzed and the appropriate measures were taken to avoid unnecessary processing for the intended purpose, establishing a permission management model such that, by default, those were limited to the appropriate geographical scope. Rather, on the contrary, GLOVOAPP did not adopt a proactive stance but rather a reactive attitude, modifying the management of access permissions to the personal data of the delivery personnel as if they were "patches" to computer systems, solving problems as they arose in accordance with changes in the organizational structure, as GLOVOAPP has...

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set forth in its allegations to the proposal for resolution of the present sanctioning procedure.

Due to the importance of the protected legal asset, GLOVOAPP was obliged to find organizational solutions that did not jeopardize the rights and freedoms of its delivery workers, regardless of the size of its organization or the number of employees it had, since these risks were the same regardless of the number of delivery workers at a given moment.

The access permission system for the delivery workers' data was not configured from the design stage to comply with the principle of data minimization nor was it configured to comply with the principle of data protection by default, at the initial moments, taking into account the possible risks to the rights and freedoms of its delivery workers, nor did it have an access control mechanism that limited access to

the necessary resources, which is why GLOVOAPP subsequently had to establish such a mechanism to geographically limit access.

The fact that GLOVOAPP later implemented modifications to the existing security measures corroborates that those other measures did not provide adequate security.

Regarding the infringement of Article 13 of the GDPR, this Agency considers that GLOVOAPP should have been diligent in conducting a prior and concurrent analysis of the processing, in order to establish the information that should be provided to the delivery workers about the "excellence score" system. Had GLOVOAPP acted diligently, it would have conducted the relevant checks and would have verified that automated individual decisions were being made as per Article 22 of the GDPR and that, therefore, the delivery workers should have been informed of its existence, in addition to providing all the information required by Article 13 of the GDPR.

For all the above reasons, this allegation is dismissed.

5.2. On the lack of evidence that undermines the presumption of innocence of Glovo. Nullity of sanction

GLOVOAPP argues that, in this regard, it should be noted that, as repeatedly stated by the jurisprudence, for the imposition of any administrative sanction, the existence of conduct constituting an administrative infringement is a prior and inescapable requirement.

Therefore, the Administration cannot impose a sanction without sufficiently proving the culpability of the sanctioned subject, that is, the existence of bad faith in their conduct. Consequently, it is clear that the burden of proof of the subject's culpability lies with the Administration, which must be substantiated by any means permitted by law.

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However, in the present case, GLOVOAPP understands that it has no evidence whatsoever that allows considering the presumption of innocence to be destroyed.

In its view, it is clear that the Agreement of the AEPD must require something more than a mere mention of the legal provisions. In this case, in its Agreement, the AEPD merely reviews the background of the file, but, as has been demonstrated, in its opinion, it cannot be asserted in any way that we are facing an intentional infringement of data protection regulations by GLOVOAPP.

For all the arguments presented, GLOVOAPP requests that the nullity of the sanction imposed on GLOVOAPP in the AEPD Agreement be declared null and void, as it was issued with a total absence of evidentiary elements of culpability and, consequently, in violation of the fundamental right to the presumption of innocence enshrined in the Spanish Constitution.

In this regard, this Agency wishes to point out that there is ample evidence of GLOVOAPP's behavior, all of which is documented in the file. Not only has all the evidence collected during the on-site inspection been gathered, but also all the information provided by GLOVOAPP through its responses to the information requests from this Agency and its allegations to the initiation agreement of sanctioning procedure number PS/00020/2021, as well as the allegations to the proposal for resolution of the aforementioned sanctioning procedure, along with the documentation accompanying them, as well as the allegations to the initiation agreement of the present sanctioning procedure. All of this is as recorded in the proven facts of this document.

Furthermore, this Agency insists that it does not consider that GLOVOAPP has deliberately infringed data protection regulations, but rather that it believes it has not acted with the due diligence it should have, given the continuous processing of personal data it was conducting.

For all the above reasons, this allegation is dismissed.

5.3. Absence of culpability. Nullity of sanction

GLOVOAPP understands that at no time has it omitted or failed to comply with the orders of the AEPD; on the contrary, GLOVOAPP has faithfully fulfilled all its obligations.

There has been no intention to infringe; quite the opposite. GLOVOAPP has offered the AEPD on multiple occasions an approach between the parties so that the AEPD could verify firsthand the functioning of the Platform.

For all the arguments presented, GLOVOAPP considers that there is a total absence of evidentiary elements of culpability and, consequently, a violation of the fundamental right to the presumption of innocence enshrined in the Spanish Constitution.

In this regard, this Agency insists that it understands that GLOVOAPP has not acted with the intention to infringe, with malice, but rather with a lack of diligence. The National Court

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requires entities accustomed to the processing of personal data to observe an adequate level of diligence, as indicated in its Judgment of October 17, 2007 (Rec. 63/2006): "...the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. In assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard." Finally, it should be noted that the AEPD has been able to verify firsthand the operation of the Platform during the on-site inspection carried out.

Regarding the total absence of evidentiary elements of guilt, this Agency reiterates what was stated in points 5.1 and 5.2 of this Legal Basis, which responds to the allegations against the initiation agreement of the present sanctioning procedure.

For all the above reasons, the present allegation is dismissed.

5.4. Absence of the principles of legality and presumption of innocence. Nullity of sanction

GLOVOAPP alleges the non-existence of the conduct considered as an infringement and for which it is sanctioned.

It indicates that the legal system requires the administrative bodies responsible for initiating sanctioning actions to only consider as infringements those behaviors that adequately fit the definitions explicitly established by norms with the rank of law (Article 27 of Law 40/2015, "principle of legality"). And that the same Law 40/2015 establishes that the starting point of any action aimed at establishing responsibilities for the commission of administrative infringements must be to consider that, unless proven otherwise, the administered party has not incurred in the types declared as such infringements (principle of presumption of innocence).

GLOVOAPP understands that it is being sanctioned for the commission of facts whose existence the Administration has not been able to prove. And that the evidence contained in the Administrative File, far from proving the alleged facts, only demonstrates the strictest compliance with the applicable regulations. And that GLOVOAPP has been sanctioned for the commission of alleged facts by the Administration that do not fit the infringing type.

In this regard, this Agency wishes to point out that GLOVOAPP is charged with the commission of the following infringements.

An infringement of Article 13 of the GDPR for failing to properly inform the couriers about the making of automated individual decisions (through the use of the "excellence score" system). Throughout this sanctioning procedure, it has been duly proven that GLOVOAPP made such decisions and did not properly inform its couriers in the relevant documents.

It is also charged with the infringement of Articles 25 and 32 of the GDPR.

In the present case, it has been duly proven throughout this sanctioning procedure that GLOVOAPP had implemented a system of access permissions to the couriers' data that did not comply with the requirements of Article 32, as it granted access to data that was not necessary for the stated purposes. And that it also did not act with diligence on its part when conducting an adequate prior analysis before the initiation of processing regarding the information of the couriers that should be provided to users as

necessary for achieving the purposes and which should be limited by default.

For all the above reasons, the present allegation is dismissed.

6. Subsidiary commitments of GLOVOAPP in case this Agency does not find the previous allegations in accordance with the law

In the event that this Agency does not find the previous allegations in accordance with the law, GLOVOAPP commits to provisionally apply the measures that may be required, without prejudice to the appeals it considers appropriate to present in defense of its rights.

In this regard, this Agency reiterates that GLOVOAPP can certainly present the appeals it deems appropriate in defense of its rights, which is not the subject of this procedure.

And it points out that the measures related to the information on the existence of automated decisions should be rendered ineffective, as the hour reservation system based on the excellence score that the AEPD inspected has ceased to exist.

In this regard, this Agency wishes to point out that no measures related to the information on the existence of automated decisions have been proposed in this sanctioning procedure, precisely because the hour reservation system based on the excellence score has ceased to exist.

In light of all the above, GLOVOAPP understands that it has been duly demonstrated that it has acted in good faith at all times, applying maximum effort to comply with data protection regulations with the conviction of being within the law, as this is the requirement of all its investors and its governing bodies, and without ever jeopardizing the rights and freedoms of the interested parties.

And that there is, therefore, no clear "intent" to violate the current regulations since GLOVOAPP took all necessary and due actions to comply with the regulations and has prudently adjusted its actions to the law.

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For all the above reasons, GLOVOAPP requests that the present procedure be archived and that the sanctioning procedure number PS/00209/2022 be rendered ineffective.

And it states that GLOVOAPP is an organization that applies, at all times, the appropriate legal, technical, and organizational measures to ensure an adequate level of protection of the personal data of the interested parties, constantly reviewing and updating them in accordance with the evolution of the company and the state of the art.

In this regard, this Agency insists that it does not consider that GLOVOAPP has deliberately infringed data protection regulations, but rather that it has not acted with the due diligence that it should have, given the continuous processing of personal data that it was carrying out.

For all the above reasons, the present allegation is dismissed.

In relation to the allegations made regarding the proposed resolution of the present sanctioning procedure, a response is provided according to the order presented by GLOVOAPP:

1.- On the prescription of the infringements

GLOVOAPP considers that the alleged infringement of Articles 25 and 32 of the GDPR was time-barred.

It indicates that the fourth additional provision of Royal Decree 463/2020, of March 14, which declares the state of alarm for the management of the health crisis situation caused by COVID-19, which is the one alleged by the AEPD in its Proposal, specifically states that "The time limits for the prescription and expiration of any actions and rights shall be suspended during the duration of the state of alarm and, where applicable, of the extensions that may be adopted."

And that it is necessary to distinguish between the prescription of "actions and rights" and the prescription of "infringements and sanctions." And that in the case of infringements and sanctions, this provision could not apply in the event that it exists, since it would generate a state of defenselessness for individuals and legal entities, such as the present one, which would see the time limits for the prescription of any alleged non-compliance extended, which would be contrary, among other things, to Article 9.3 of the Constitution regarding the non-retroactivity of unfavorable or restrictive sanctioning

provisions of individual rights.

And it cites for this purpose Judgment 135/2021, of June 3, from the Administrative Court No. 1 of Salamanca, which concludes that indeed, Royal Decree 463/2020 is not applicable in the case of sanctioning procedures, appreciating the corresponding prescription.

In this regard, this Agency wishes to point out that it cannot agree with such an assertion.

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In this regard, the Administrative Litigation Court No. 3 of Toledo, in its Judgment No. 189/2021 of October 30, has understood that:

“3.- Prescription of the infringement.

(...)

Notwithstanding the above, in the present case, the special circumstances that occurred due to COVID must be taken into account, which led to the declaration of a state of alarm for the management of the health crisis caused by COVID-19 by Royal Decree 463/2020, of March 14, whose Additional Provision 4, "Suspension of prescription and expiration periods," stated that "The prescription and expiration periods for any actions and rights will be suspended during the duration of the state of alarm and, if applicable, during any extensions that may be adopted." However, Royal Decree 537/2020, of May 22, which extended the state of alarm, in its Article 9 stated that effective from June 1, 2020, the counting of administrative deadlines that had been suspended would resume or restart, and in its Article 10 that effective from June 4, 2020, the suspension of the prescription and expiration periods of rights and actions would be lifted.

In the case at hand, at the time the state of alarm was declared, the sanctioning procedure had not been initiated, thus suspending the prescription period for the infringement from March 14, 2020, until June 4, 2020, so that since the infringement was committed on June 22, 2019, the prescription period for the infringement was suspended on March 14, 2020, and the aforementioned suspension was lifted on June 4, 2020, a date coinciding with the initiation agreement of the file, which concluded with the issuance of the sanctioning Resolution of October 16, 2020, notified to the interested party on the 30th of the same month and year, it is considered that the infringement had not prescribed, thus the allegation made by the appellant in this regard is dismissed.”

The Superior Court of Justice of Murcia has also understood this, (Contentious-Administrative Chamber, Section 2) in its Judgment No. 401/2022 of July 14:

“It is raised in this case that, since the infringement is minor, given that allegations were made on September 23, 2019, and it was not until May 5, 2020, that a report was requested by the instructor of the file, that internal prescription had occurred.

It is true, as highlighted by the Third Chamber of the Supreme Court, Section Five, in judgment 649/2021, of May 6, 2021, arising from appeal 2329/2020, in the interpretation of article 30.3, that the suspension of the sanctioning procedure for a period exceeding one month restarts the prescription period for the infringement, in which the aforementioned monthly suspension period is excluded from the counting.

In this case, it is noted that such a suspension occurred for a period exceeding one month, since after the allegations made by the party on September 23, 2019, no action was taken until May 5, 2020, which determined that the prescription period for the infringement was restarted on October 23, and that...”

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date had already elapsed the period of six months for the prescription of minor infractions.

However, it must be taken into account that, by application of the Fourth Additional Provision of Royal Decree 463/2020, "the periods of prescription and expiration of any actions and rights will be suspended during the duration of the state of alarm and, where applicable, of the extensions that may be adopted," and upon the entry into force of this, that is, on March 14, the suspension of the prescription period for the action to impose sanctions occurred, and as of that date, the six-month period had not elapsed.

In the same sense, the Superior Court of Justice of Aragon (Contentious-Administrative Chamber, Section 2) has ruled in its Judgment No. 290/2022 of October 14, in which it stated that:

"(...)

And regarding the allegations of the party concerning the validity of the principles of operation of public administrations, the enabling of organizational measures for teleworking to facilitate the provision of services by public employees remotely, being extremely cautious in the case of notifications with the suspension of deadlines, seeking, as far as possible, to avoid causing harm arising from confusing interpretations regarding this issue, and the mention by the party of the actions taken by the Administration during the State of Alarm, it is sufficient to recall the situation that the country was experiencing at that time, with intense limitations on rights motivated by a serious health crisis that affected the entire Spanish society and hindered social and institutional activity, a situation in which it was necessary to approve regulations to address those difficulties, providing legal certainty in the relationships of citizens with Public Administrations. The suspension period, which lasted 78 days, protected citizens from the undesirable effects of possible preclusions of deadlines and established the legal framework that should govern the periods of prescription and expiration, a framework that we must understand as in force in the section we are examining regarding an allegation of expiration." Finally, the Supreme Court, Contentious-Administrative Chamber, Section Five, in its Judgment No. 1.509/2022 of November 16, has stated:

"In what is now relevant, the issue of cassational interest raised relates to the content of the third and fourth additional provisions. It is therefore appropriate to reproduce the content of the aforementioned Additional Provisions:

"Third Additional Provision. Suspension of administrative deadlines.

1. Terms are suspended and deadlines for the processing of procedures of public sector entities are interrupted. The counting of deadlines will resume at the moment when this royal decree ceases to be in force or, where applicable, its extensions.
2. The suspension of terms and the interruption of deadlines will apply to the entire public sector defined in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.

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3. Notwithstanding the above, the competent authority may agree, by means of a reasoned resolution, to the organizational and instructional measures strictly necessary to avoid serious harm to the rights and interests of the interested party in the procedure, provided that the interested party expresses their consent, or when the interested party expresses their consent for the deadline not to be suspended.
4. This provision shall not affect the procedures and resolutions referred to in the first paragraph when these relate to situations closely linked to the justifying facts of the state of alarm.

"Additional Provision Four. Suspension of limitation and expiration periods.

The limitation and expiration periods for any actions and rights shall be suspended during the duration of the state of alarm and, where applicable, during any extensions that may be adopted."

From the wording of Additional Provision Three, it can be inferred that the general rule established as a necessary consequence of the declaration of the state of alarm is the suspension of the deadlines established for the processing of procedures of public sector entities (which are those referred to in Article 2 of Law 40/2015).

However, it is important to clarify that, although suspension is the general rule, the provision itself restricts the applicability of this general rule in two ways: on the one hand, by providing for its non-application to the procedures and resolutions mentioned in paragraph 4; and, on the other hand, allowing in its paragraph 3 for the competent authority to agree, by means of a reasoned resolution, to the organizational and instructional measures strictly necessary to avoid serious harm to the rights and interests of the interested party in the procedure, provided that the interested party expresses their consent, or when the interested party expresses their consent for the deadline not to be suspended.

Moreover, when interpreting the provisions and regulations of the Royal Decree to determine the scope of the consequences of its potential non-compliance, it is essential to keep in mind the purpose pursued by it, which—as previously stated—is the protection of legal certainty and the legitimate rights and interests of citizens.

Therefore, the fact that the general rule is the suspension of processing deadlines does not mean that all possibilities for administrative action are barred while the state of alarm or its extensions are in effect. The regulation does not establish the paralysis of administrative activity or, more precisely, the paralysis of the activity of public sector entities (nor does it refer to the paralysis of the activity of the judicial bodies of the country), bearing in mind that this consequence, apart from not aligning with the purpose pursued by the regulation, could potentially generate serious harm to the general interest and to the specific rights and interests of citizens.

Thus, it can be concluded that what is truly intended with the aforementioned Royal Decree is that, in order to protect the rights of citizens, the effectiveness of those administrative actions—which should not necessarily be deemed invalid for having been carried out during that period—will be suspended, meaning that their effectiveness will be delayed.

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until the state of alarm ceases -the duration of which was set at fifteen calendar days by Article 3 of the Royal Decree- or its extensions, at which point the counting of deadlines will resume.

And this same reasoning applies to the Fourth Additional Provision, which states that the periods of prescription and expiration of any actions and rights will be suspended during the duration of the state of alarm and, where applicable, of the extensions that may be adopted.

Therefore, the notification of a sanctioning resolution issued prior to the declaration of the state of alarm, which was carried out during its validity or that of its extensions, cannot be deemed -in principle- invalid, without prejudice to the fact that its effectiveness may be delayed until the moment the state of alarm or its extensions cease, from which point the counting of deadlines will resume. And, in line with what has been stated, also during that period of validity of the state of alarm or its extensions, the expiration period of any actions or rights will remain suspended.

Consequently, we can respond to the question of casational interest raised in the admission order in the following terms:

(i) The Third Additional Provision of Royal Decree 463/2020 must be interpreted in the sense that the notification of a sanctioning resolution issued prior to the declaration of the state of alarm, and carried out during its validity, must be deemed -in principle- valid, without prejudice to the fact that its effectiveness may be delayed until the moment the state of alarm or its extensions cease, from which point the counting of deadlines will resume.

(ii) And, in line with what has been stated, the Fourth Additional Provision of the aforementioned Royal Decree must be interpreted in the sense that during the period of validity of the state of alarm or its extensions, the expiration period of any actions or rights will remain suspended and, therefore, also of those referred to in the aforementioned notification.”

For all the above reasons, this Agency maintains that the Fourth Additional Provision of the Royal Decree of March 14, which declares the state of alarm for the management of the health crisis situation

caused by COVID-19, is applicable to the present case.

As in the present case the dies ad quem of the two-year prescription period would be May 18, 2022, and considering that due to the exceptional situation caused by COVID-19, both the prescription and expiration periods were suspended from March 14, 2020, to June 1, 2020, this Agency considers that the infringements of Articles 25 and 32 of the GDPR were not prescribed when the present sanctioning procedure was initiated.

Finally, regarding the argument put forward by GLOVOAPP that this provision could not be applied because it would be contrary, among others, to Article 9.3 of the Constitution relating to the non-retroactivity of unfavorable sanctioning provisions or those restricting individual rights, this Agency wishes to bring to attention the Judgment.

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of the Superior Court of Justice of Madrid, (Contentious-Administrative Chamber),

no. 68/2023 of January 17, which, although it analyzes the Third Additional Provision of such Royal Decree, could extend its conclusions to the Fourth Additional Provision of the Royal Decree in question, since it cannot be interpreted that the Royal Decree is a sanctioning provision that is unfavorable or restrictive of individual rights:

“As noted by the State Attorney and although it may seem irrelevant, the appealed resolution incurs a material error. This is because it states that there were two failed attempts at notifying the expulsion. The truth is that, as the appellant himself admits and is evident from the file [page 31], after a first attempt at notification on 7/6/21 when the appellant was absent, the notification took place on 8/6/21, with his signature recorded on the acknowledgment of receipt.

From there, it must be taken into account that the initiation of the procedure occurs on 19/2/20 and that it becomes decisive to understand whether or not the expiration period has elapsed, the effects granted to the suspension of deadlines established by the Third Additional Provision of Royal Decree 463/2020, of March 14, which declares the state of alarm for the management of the health crisis situation caused by COVID-19, in relation to Article 9 of Royal Decree 537/2020, of May 22, which extends the state of alarm.

The thesis on which the Judgment leans is that such suspension cannot operate to the detriment of the administered party. It interprets that the suspension implied an unfavorable extension for the citizen and contrary to Article 9.3 of the Constitution.

For its part, the State Attorney rightly emphasizes that what the trial judge is actually doing is disregarding a provision with the rank and value of law without, as would be necessary, promoting the question of unconstitutionality under Article 163 of the Constitution.

This is a matter on which this Chamber and Section have already had the opportunity to pronounce [see, among others, Judgment No. 776/2022, of October 3 (rec. 839/2021)]. As stated therein, "it cannot be considered in a univocal and indisputable manner that the aforementioned Third Additional Provision is a sanctioning provision that is unfavorable or restrictive of individual rights, given that its objective is not to limit or restrict rights but to safeguard the right of citizens to interact with Public Administrations and the normal exercise by Public Administrations in their relations with citizens in the face of difficulties for the normal exercise of those rights and powers arising from the limitations on the freedom of movement of persons and other exceptional measures contained in the Royal Decree-Law. The application of the suspension of administrative deadlines established in Royal Decree 462/2020, through the Third Additional Provision, is applicable to sanctioning or restrictive procedures of individual rights initiated before the declaration of the state of alarm and pending resolution at the time of the entry into force of the aforementioned legal norm, produces favorable effects for the affected citizens" [F.D. 2nd].

Consequently, and by virtue of the application of the Third Additional Provision of Royal Decree 463/2020, of March 14, it cannot be asserted that the expiration of the expulsion file has occurred due to the notification of the expulsion resolution.

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session once six months have passed since the start date of said procedure.

It follows from the above that the appeal is upheld and the Judgment is consequently revoked. This, in turn, must translate into the dismissal of the appeal filed in the instance, confirming the contested administrative action.

Therefore, for all the reasons stated, the present allegation is dismissed.

2.- On the infringement of Article 13 of the GDPR for failing to inform about the existence of automated individual decisions

GLOVOAPP considers that to address this matter, it is necessary to insist, once again, on the difference between an "automated decision" and an "automated execution of a decision." It emphasizes that what exists are only automated processes within the framework of the "Excellence Score" scoring system, but in no case does Glovo make automated individual decisions that need to be reported to the couriers.

To support this, it cites the definition of the verb "decide" from the Dictionary of the Spanish Language of the Royal Spanish Academy (RAE) and that from the Oxford English Dictionary.

It is not the purpose of this file nor is it the function of this Agency to conduct a semantic analysis of the verb "decide." However, regarding GLOVOAPP's assertion, some clarifications can be made.

In this case, it was, in GLOVOAPP's words, a matter of "a problem affecting the couriers themselves: the excess of these during certain time slots, in relation to the number of available orders."

In response, GLOVOAPP decided to "establish the possibility of setting a maximum limit of couriers per time slot, a limit that could be determined, among other things, based on statistics of previous orders and time slots." And to "determine which couriers could access the selection of time slots within the aforementioned maximum limit in advance, Glovo's product development team decided to use the Excellence Score system as an objective means for such early access."

As has been evidenced in the present procedure, the "excellence score" is the score assigned to couriers based on, among other things, the following data:

- a. the number of orders made during high-demand time slots in the last 28 days,
- b. the feedback from stores in the last 50 orders, which can be positive, negative, or not rated,
- c. the feedback from users in the last 50 orders, which can be positive, negative, or not rated,
- d. rejected or reassigned orders in the last 50 orders, although, in Spain, reassignment does not penalize,
- e. order history since the beginning of the collaboration.

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This score is calculated automatically, without any human intervention, based on the aforementioned parameters. While it is true that the values used to calculate the excellence score could be modified manually, this would only occur in the event that a delivery person files a complaint, typically through billing.

Returning to the matter at hand, in order to decide which delivery persons would work during a specific time slot, the procedure followed by GLOVOAPP was as follows:

- 1) The maximum number of delivery persons needed for a specific time slot on a given day was calculated (automatically).
- 2) All registered delivery persons in a city or operational area of the app were selected (automatically).
- 3) These delivery persons were ranked (automatically) according to their Excellence Score (also calculated automatically).

4) Twice a week (on Mondays and Thursdays), a notification was sent (automatically) to each delivery person informing them that the selection of time slots for certain days of the week was now available (on Mondays, they could reserve time slots for Thursday, Friday, Saturday, and Sunday; and on Thursdays, they could reserve time slots for the following week's Monday, Tuesday, and Wednesday), following a descending order based on the previous ranking.

Of course, at each of these stages, there could be human intervention to correct specific issues (and upon prior complaint), but the reality was that the entire process was carried out automatically, meaning that the decision regarding which delivery persons accessed or did not access a specific time slot and in what order was an automated decision.

Moreover, this automated decision had legal effects on the interested parties (in this case, the delivery persons) since the possibility of accessing or not accessing a specific time slot directly affected their income.

Therefore, in the present case, this Agency considers that GLOVOAPP was making automated decisions as referred to in Article 22 of the GDPR, and that this situation should have been communicated to the delivery persons in those terms, and GLOVOAPP violated the provisions of Article 13 of the GDPR by failing to do so.

For all the above reasons, this allegation is dismissed.

3. - Regarding the sanction for the infringement of Articles 25 and 32 of the GDPR

GLOVOAPP argues that this Agency bases the infringement of Articles 25 and 32 of the GDPR on the processing of data of delivery persons from countries that did not need to be processed to monitor those delivery persons, thus processing more data than strictly necessary. However, the AEPD does not go into detail about which data is unnecessary to process by which profiles.

It indicates, for this purpose, that in the inspection report summarizing the actions carried out on February 12, 2020, and March 4, 2020, it does not describe at any time the data that different profiles of Glovo can access; the data

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which are considered excessive; the purposes of processing for which, if applicable, they were considered excessive; the reasons why, if applicable, the AEPD considers that they were or could be considered excessive in relation to said purpose(s).

In this regard, this Agency wishes to point out that the inspection report is limited to recording the information obtained during such actions, without making any assessment of any kind regarding whether the data is excessive or not, nor whether the purposes were excessive, nor the reasons why the data could be considered excessive for those purposes, since, precisely, the object of the report is not to make such assessments but to reflect the findings as faithfully as possible.

GLOVOAPP insists that the inspection report states that when attempting to access data of couriers from the European Union without permission, a message was displayed saying "This Courier is based in the EU so additional data privacy protections apply" and access to such data was not permitted.

It has been established in the file, among other things, that there were different user profiles; that there was a property of the user profile that provided access, or not, to data of European couriers, "EU User Access," and that those without this permission could only access basic data such as courier ID, city, type of transport, number of orders, and time since the last order; that "EU User Access" was a profile feature used in practice at the time of the inspection; and that not all profiles could access or modify the information of the couriers.

GLOVOAPP argues that the AEPD does not question whether the profiles are adequate or not for the purposes of processing, nor does it provide any argument to justify, if applicable, that they are excessive and therefore involve the processing of "data of couriers from countries that it was not necessary to process to track those couriers."

In this regard, this Agency acknowledges that GLOVOAPP had different user profiles, that there was a property of the user profile that provided access, or not, to data of European couriers, "EU User

Access,” and that those without this permission could only access basic data of the courier; that “EU User Access” was a profile feature used in practice at the time of the inspection; and that not all profiles could access or modify the information of the couriers.

What this Agency questions, precisely, is not the lack of profiles but the lack of user profiles that allowed access only to the data of couriers from the appropriate geographical area. It is not that there were profiles that did not allow access to the data of the couriers, but that those that did allow access enabled access to more data than necessary. That is to say, in the present case, that within the profiles that should have access to the data of the couriers, there were no profiles differentiated by regions, countries, cities, or other similar parameters. This functionality was indeed incorporated later. GLOVOAPP claims that it has experienced exponential growth in a short time and that it has applied a “lean startup” business development scheme, and that a large

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Part of Glovo's business activities were carried out transversally and mainly from the headquarters in Barcelona.

It indicates that Glovo's customer service and delivery personnel could access data of delivery personnel from any European city. However, this access is not unnecessary since all Glovo employees managing the company's activities at the order and/or customer service level needed to be able to access all information, as the service required agility and efficiency. Limiting access to information would mean that there would be inquiries that could not be addressed, which could not only generate frustration for the customer or delivery person but could also hinder the fulfillment of the contractual obligations assumed by Glovo towards those customers or delivery personnel.

It claims that this situation, which stemmed from the very structure of the business and its exponential growth, allowed for effective support to those companies within the Glovo Group where personal resources were limited, thus generating corporate synergies that enabled better management of Glovo's operations from the outset, leveraging the experience of the Spanish company.

And this situation was nothing more than an outsourcing or support of services, regulated contractually. It indicates that the centralization of such services is common and necessarily implies that the agents involved have access to all information necessary to address any type of request received.

It cites Iberia as an example, which provides services to customers in different countries and, by accessing the customer service page, there is no separation by the customer's country of origin, from which it deduces that a single customer service department will have access to all data of all customers. It provides contact points such as phone numbers, WhatsApp, or email addresses common to any language. Therefore, it is reasonable to expect that such a department can access all data without discrimination by country or type of inquiry.

In this regard, this Agency wishes to point out that the purpose of this procedure is not to analyze how Iberia organizes itself to provide its customer service, much less based on an assumption made by another company with no other basis than to observe its website, but rather to identify whether GLOVOAPP had the measures required by the GDPR.

In this sense, the GDPR does not make distinctions regarding the obligations of data controllers based on the size or growth experienced by the company, nor the business development scheme it uses, nor according to how it decides to organize itself to carry out its activities.

The GDPR merely states that data controllers must comply with the obligations established therein. Regarding Article 25 of the GDPR, the data controller must apply, both at the time of determining the means of processing and at the time of the processing itself, technical measures and...

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appropriate organizational measures to effectively apply the principles of data protection and integrate the necessary safeguards in the processing, in order to comply with the requirements of this Regulation and protect the rights of the data subjects. And it must apply appropriate technical and organizational measures to ensure that, by default, only personal data that is necessary for each specific purpose of the processing is processed. Regarding Article 32 of the GDPR, the data controller must implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk.

What the GDPR does indicate is that, in both cases, a series of factors will be taken into account to identify the measures in question, such as the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying probabilities and severity of risks to the rights and freedoms of natural persons.

However, the fact that it was an expanding company, nor that it used an agile methodology, nor even that it decided to centralize customer or delivery personnel support in a specific location results in a situation that could exempt GLOVOAPP from complying with the provisions of the regulations. In fact, it should have anticipated before starting the processing in question what measures it would apply. And once its activity began, as the company grew and operated in more countries and cities, it should also have reviewed whether the technical and organizational measures were adequate. And GLOVOAPP should have arranged for the necessary means so that the personnel who needed access to the delivery personnel's data could only access the data necessary to perform their work, no more and no less.

Even in the event that it was an outsourced activity carried out from a single location, the mere organization of work indicates that each worker would not be in a position to manage the total volume of requests, but rather the task would be distributed, especially considering that these are countries that do not even share a common language. Therefore, there were personnel who had access to data from delivery personnel from countries where it was not necessary for them to have such access, given that they would not process requests from them.

GLOVOAPP claims that access to personal data by the personnel assigned to the customer service or delivery personnel support department is greater than that of the personnel assigned to the marketing department. And that within the same group there are functionalities not accessible to all its members, such as the ability to modify time slots. Therefore, it considers that all necessary measures have been taken to adapt the means and scope of the processing to the different profiles of Glovo employees and that the principle of minimization is being complied with (hence the marketing personnel cannot access delivery personnel data, as it is not necessary for them).

In this regard, this Agency wishes to point out that the access to the personal data of the delivery personnel by the marketing department personnel is not questioned in this procedure, nor that there were users with greater permissions than others, who are allowed, for example, to modify time slots. Rather, the issue is that the permissions granted to the personnel assigned to the

Customer service department or delivery person support had access to the data of all delivery persons in the European Union, without being limited in any way, neither by countries, nor cities, nor regions, nor anything else.

GLOVOAPP claims that it is surprised that this Agency concluded that it has been established that the access permission system for delivery persons' data did not comply with the principles and obligations of the GDPR, understanding that the company "did not conduct a prior analysis before processing in which the possible implications that the access permission management model could have regarding the risks to the rights and freedoms of its delivery persons were duly analyzed," considering that the risk analysis carried out by Glovo in 2017 was provided as evidence (DOCUMENT 30), and that it was updated in 2019, a version that the Agency obtained during the inspection carried out at Glovo's offices, in which it understands that the risks to the rights and freedoms of its delivery persons were assessed when evaluating whether a Data Protection Impact Assessment was required. Therefore, GLOVOAPP asserts that such prior analysis did exist, that the risks to the rights and freedoms of its delivery persons were considered, and understands that the determination of the profiles assigned to

Glovo employees and the scope of accessible data was appropriate and necessary for each category of employee to perform their work functions.

In this regard, this Agency wishes to point out that the aforementioned DOCUMENT 30, which was submitted along with the written allegations to the initiation agreement of PS/00020/2021, is nothing other than a "Preliminary checklist for the impact assessment" (as stated in its description), in which GLOVOAPP limits itself to "Checking whether a processing operation meets the characteristics for conducting a data protection impact assessment" (as stated in its section "Processing"). Regarding its content, it is a document that only reviews whether it is carried out:

(...)

As for the document obtained during the on-site inspection, the document updated to 2019 is nothing other than a preliminary analysis on the need to conduct an impact assessment, in which it limits itself to analyzing whether (in its opinion) an impact assessment is necessary based on the provisions of Article 35 of the GDPR and whether GLOVOAPP carries out any of the activities established in the list that this Agency had published on its website, namely:

- Processing that involves profiling or assessment of subjects, including the collection of data from the subject in multiple areas of their life (work performance, personality, and behavior), covering various aspects of their personality or their habits.
- Processing that involves automated decision-making or that significantly contributes to the making of such decisions, including any type of decision that prevents a data subject from exercising a right or accessing a good or service or being part of a contract.
- Processing that involves the observation, monitoring, supervision, geolocation, or control of the data subject in a systematic and comprehensive manner, including the collection of data and metadata through networks, applications, or in public access areas, as well as the processing of unique identifiers that allow the identification of users of society services.

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information such as web services, interactive TV, mobile applications, etc.

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Processing that involves the use of special categories of data referred to in Article 9.1 of the GDPR, data related to criminal convictions or offenses referred to in Article 10 of the GDPR, or data that allows determining the financial situation or asset solvency or deducing information about individuals related to special categories of data.

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Processing that involves the use of biometric data for the purpose of uniquely identifying a natural person.

-

Processing that involves the use of genetic data for any purpose.

-

Processing that involves the use of data on a large scale. To determine whether a processing operation can be considered large scale, the criteria established in the WP243 guidelines "Guidelines on Data Protection Officers (DPO)" of the Article 29 Working Party will be considered.

-

Processing that involves the association, combination, or linking of records from databases of two or more processing operations with different purposes or by different controllers.

-

Processing of data of vulnerable subjects or those at risk of social exclusion, including data of minors under 14 years old, elderly individuals with some degree of disability, disabled persons, individuals accessing social services, and victims of gender-based violence, as well as their descendants and individuals under their guardianship and custody.

-

Processing that involves the use of new technologies or an innovative use of established technologies, including the use of technologies at a new scale, for a new purpose, or combined with others, in such a way that it entails new forms of data collection and use that pose risks to the rights and freedoms of individuals.

-

Processing of data that prevents data subjects from exercising their rights, using a service, or executing a contract, such as processing where the data has been collected by a controller different from the one that will process it and applies any of the exceptions regarding the information that must be provided to data subjects according to Article 14.5 (b, c, d) of the GDPR.

None of these documents contain an analysis of the risks of personal data of the delivery personnel nor do they refer to any measures, whether planned or implemented from the design stage, that prevent non-compliance with the principle of data minimization or guarantee that, by default, data of the delivery personnel that is not necessary is not processed, as required by Article 25. There are also no measures to ensure the security of this data, as mandated by Article 32 of the GDPR.

Article 25 of the GDPR states: "Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity posed by the processing to the rights and freedoms of natural persons, the controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and integrate the guarantees."

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necessary in the processing, in order to comply with the requirements of this Regulation and protect the rights of the data subjects. (...)"

And Article 32 of the GDPR states that: "Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying probabilities and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk (...)"

In this case, none of these documents refer to the possible risks to which the data of the delivery personnel could be exposed, nor do they mention the appropriate technical and organizational measures to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards in the processing, in order to comply with the requirements of this Regulation and protect the rights of the data subjects (Article 25 GDPR), nor do they refer to the appropriate technical and organizational measures to ensure a level of security appropriate to the risk (Article 32 GDPR).

Therefore, it cannot be understood that these documents indicate that GLOVOAPP has adequately analyzed, when determining the means of processing or during its execution, the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probabilities and severity that the processing entails for the rights and freedoms of natural persons, in order to adopt the corresponding measures.

GLOVOAPP claims that it did not adopt a "reactive attitude," as this Agency asserts, and that at no time during this procedure can it be understood or deduced that it applied "quick fixes" to solve problems. Firstly, because Glovo does not consider that there was any problem to solve regarding employee access permissions. And to consider that the natural evolution of a company and the implementation of new security measures, such as modifying the access profile feature "EU User Access" to a more focused system like "City group permissions," is a problem-solving solution based on "quick fixes" precisely eliminates the possibility that any company complies with the principle of proactive responsibility required by the GDPR.

GLOVOAPP asserts that in this case it is not about solving a problem but rather a change in the way of operating within its own continuous improvement processes, and in a manner proportional to the growth of the company. That is to say, that not only was the “EU User Access” system reasonable for Glovo's business structure at that time and, above all, for the purposes of the processing, but it was proactively improved when the business structure allowed it.

In this regard, this Agency refers to what has already been addressed in response to allegation 3.2 in the initiation agreement of this sanctioning procedure.

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And it wishes to add that the Guidelines 4/2019 regarding Article 25 Data Protection by Design and by Default Version 2.0, adopted by the European Data Protection Board on October 20, 2020, state that: “(...) Data protection by design must be implemented ‘at the time of determining the means of processing’.

(...)

The ‘moment of determining the means of processing’ refers to the period during which the controller is deciding how the processing will be carried out and how it will occur, as well as the mechanisms that will be used to carry out such processing. In the process of making such decisions, the data controller must assess the appropriate measures and safeguards to effectively apply the principles and rights of the data subjects in the processing, and take into account elements such as risks, the state of the art, and the cost of implementation, as well as the nature, scope, context, and purposes. This includes the moment of acquiring and implementing software and hardware and data processing services.

(...)

Once processing has begun, the controller has a permanent obligation to maintain the Data Protection by Design and by Default (DPDD), that is, to effectively and continuously apply the principles in order to protect the rights, stay updated on the state of the art, reevaluate the level of risk, etc. The nature, scope, and context of the processing operations, as well as the risk, may change during the course of processing, which means that the controller must reevaluate its processing operations by periodically reviewing and assessing the effectiveness of the measures and safeguards it has decided to adopt. The obligation to maintain, review, and update the processing operation, as necessary, also applies to existing systems. This means that legacy systems designed before the entry into force of the GDPR must be reviewed and maintained to ensure that measures and safeguards are applied that effectively uphold the principles and rights of the data subjects, as explained in these Guidelines.

(...)

The data controller must previously determine for what specified, explicit, and legitimate purposes personal data is collected and processed. The measures must be adequate to ensure, by default, that only personal data necessary for each of the specific purposes of processing is processed.

(...)

The same considerations apply to the organizational measures supporting the processing operations. They must be designed to process, from the outset, only the minimum amount of personal data necessary for the specific operations. This must be particularly taken into account when assigning access to data to individuals with different roles and different access needs.

The ‘appropriate technical and organizational measures’ in the context of data protection by default are thus understood in the manner already explained in section 2.1.1, but specifically concerning the application of the data minimization principle. (...)”

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In particular, the aforementioned Guidelines state that:

“(…) In Recital 78, it is stated that one of the measures of Data Protection by Design and by Default (PDDD) could consist of allowing the data controller to ‘create and improve security elements.’ Along with other PDDD measures, Recital 78 points out that data controllers have the responsibility to continuously assess whether they are using appropriate processing means at all times and whether the chosen measures truly neutralize existing vulnerabilities. Furthermore, data controllers must carry out periodic reviews of the information security measures surrounding and protecting personal data, as well as the procedure for managing breaches.

Essential elements from design and by default regarding integrity and confidentiality may include the following:

(…)

- Risk analysis: Risks to the security of personal data will be assessed considering how they affect individuals' rights, and identified risks will be neutralized. For use in risk assessment, a comprehensive, systematic, and realistic ‘threat model’ will be developed and maintained, along with an analysis of the attack surface of the software designed to reduce attack vectors and opportunities to exploit weaknesses and vulnerabilities.
- Security by design: Security requirements will be considered as early as possible in the design and development of the system, and relevant testing will be integrated and carried out continuously.
- Maintenance: Periodic reviews and testing of software, hardware, systems, and services, etc., will be conducted to detect vulnerabilities in the supporting processing systems.
- Access control management: Only authorized personnel who need access to the personal data necessary for their processing tasks shall have access, and the controller must differentiate the access privileges of authorized personnel.

o Access limitation (agents): Data processing will be configured in such a way as to minimize the number of people who need access to personal data to perform their functions, and access will be limited accordingly.

o Access limitation (content): In the context of each processing operation, access will be limited exclusively to those attributes of each dataset that are necessary to carry out that operation. Furthermore, access to data belonging to those data subjects who fall within the scope of the respective employee's responsibilities will be limited.

o Access segregation: Data processing will be configured so that no person needs to access all the data of a data subject, let alone all personal data of a particular category of data subjects. (…)

In the present case, GLOVOAPP began its activity in 2015. In the risk analysis document it prepared in 2017, which is provided as

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DOCUMENT 30 together with the written allegations to the initiation agreement of PS/00020/2021, which is described as “Pre-evaluation checklist for impact assessment,” has established that it was merely verified whether or not it was necessary to carry out a personal data protection impact assessment. And in the risk analysis document that GLOVOAPP carried out in 2019, obtained during the on-site inspection conducted by this Agency, it has been established that GLOVOAPP limits itself to analyzing whether (in its opinion) an impact assessment is necessary based on the provisions of Article 35 of the GDPR and whether the company carries out any of the activities listed on the list that this Agency had published on its website.

However, in neither case has it been established that GLOVOAPP evaluated when determining the means of processing “the appropriate measures and guarantees to effectively apply the principles and rights of the data subjects in the processing,” nor that once the processing began, GLOVOAPP reevaluated “its processing operations by periodically reviewing and assessing the effectiveness of the measures and guarantees it decided to adopt.”

Moreover, in the specific case of GLOVOAPP, it had commenced its activity before the GDPR came into force, which makes particularly applicable the notion that “this means that legacy systems designed before the GDPR came into force must be reviewed and maintained to ensure that measures and guarantees are applied that effectively uphold the principles and rights of the data subjects, as explained in these Guidelines.”

The fact that the system of permissions for personnel who could access the data of couriers across Europe was only changed in mid-2020 implies that for years the permission system was not reviewed, nor were the possible risks to the rights and freedoms of the data subjects analyzed, nor were the necessary measures adopted to ensure compliance with the processing principles established by the GDPR.

Furthermore, regarding “The measures must be adequate to ensure, by default, that only personal data necessary for each specific purpose of the processing is processed,” the aforementioned Guidelines emphasize that “This must be especially considered when assigning access to data to individuals with different roles and different access needs.” And it insists on the “responsibility to continuously assess whether appropriate processing means are being used at all times and whether the chosen measures truly neutralize existing vulnerabilities,” which has not been carried out in the present case.

A proper risk analysis has not been conducted, in which a “comprehensive, systematic, and realistic ‘threat model’ and an analysis of the attack surface of the software designed to reduce attack vectors and opportunities to exploit weaknesses and vulnerabilities” is developed.

Nor has access control management been correctly implemented, especially regarding access segregation, given that GLOVOAPP itself...

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acknowledges that all customer service or delivery personnel could access all personal data of the delivery personnel from the European Union.

Given the above, it can be stated that, from the instruction of the procedure, it was noted, among other things, the lack of a permission access system to the personal data of the delivery personnel that took into account from the outset the risks and freedoms for their rights, which denotes a reactive attitude rather than a proactive one focused from the design. In this regard, this Agency considers that GLOVOAPP has not been as diligent as it should have been when configuring the permission system for the personnel in charge of customer service or delivery. The fact that the organizational structure of the company has varied over time does not prevent the company from having to foresee adequate measures at all times to ensure compliance with the GDPR and protect the rights and freedoms of the delivery personnel.

Furthermore, Recital 78 of the GDPR states:

“The protection of the rights and freedoms of natural persons with regard to the processing of personal data requires the adoption of appropriate technical and organizational measures to ensure compliance with the requirements of this Regulation. In order to be able to demonstrate compliance with this Regulation, the data controller must adopt internal policies and implement measures that comply in particular with the principles of data protection by design and by default. Such measures could consist, inter alia, of minimizing the processing of personal data, pseudonymizing personal data as soon as possible, providing transparency regarding the functions and processing of personal data, allowing data subjects to monitor the processing of data and enabling the data controller to create and improve security elements. When developing, designing, selecting, and using applications, services, and products that are based on the processing of personal data or that process personal data to fulfill their function, producers of products, services, and applications should be encouraged to take into account the right to data protection when developing and designing these products, services, and applications, and to ensure, with due regard to the state of the art, that data controllers and processors are in a position to fulfill their obligations regarding data protection. The principles of data protection by design and by default should also be taken into account in the context of public contracts.”

Specifically, in light of Recital 78 of the GDPR, the principle of data protection by design is the key to be followed by the data controller to demonstrate compliance with the GDPR, as “the data controller must adopt internal policies and implement measures that comply in particular with the principles of data protection by design and by default.”

The principle of privacy by design is a demonstration of the shift from reactivity to proactivity and a direct manifestation of the risk-based approach imposed by the GDPR. Part of the proactive responsibility requires that, from the earliest stages of planning a processing operation, this principle must be considered: the data controller, from the moment an eventual processing of personal data is designed and planned, must determine all the elements that make up the processing, in order to effectively apply the principles of data protection.

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integrating the necessary guarantees in the processing with the ultimate aim of, in compliance with the provisions of the GDPR, protecting the rights of the data subjects.

Thus, regarding the risks that may be present in the processing, the data controller shall carry out an exercise of analysis and detection of risks throughout the entire data processing cycle, with the primary and ultimate purpose of protecting the rights and freedoms of the data subjects, and not only when the processing actually occurs. This is expressed in the aforementioned Guidelines 4/2019 when they state that:

“Considering Data Protection by Design (DPbD) from the outset is crucial for the proper application of the principles and for the protection of the rights of the data subjects. Furthermore, from a cost-effectiveness perspective, it is also in the interest of data controllers to consider DPbD as early as possible, as it may later prove difficult and costly to introduce changes to already formulated plans and designed processing operations.”

To this end, the data controller must resort to the principles set out in Article 5 of the GDPR when designing the processing, which will serve to assess the effective compliance with the GDPR. Thus, the aforementioned Guidelines 4/2019 state that “To make DPbD effective, data controllers must apply the principles of transparency, lawfulness, fairness, purpose limitation, data minimization, accuracy, storage limitation, integrity and confidentiality, and proactive responsibility. These principles are outlined in Article 5 and Recital 39 of the GDPR.”

The Privacy by Design Guide from the AEPD states that “Privacy by Design (PbD) involves using a risk management and proactive responsibility approach to establish strategies that incorporate privacy protection throughout the entire lifecycle of the object (whether it is a system, hardware or software product, service, or process). The lifecycle of the object refers to all the stages it goes through, from conception to withdrawal, including the phases of development, production deployment, operation, maintenance, and withdrawal.”

The Guide states that “Privacy must be an integral and inseparable part of systems, applications, products, and services, as well as of the business practices and processes of the organization. It is not an additional layer or module added to something pre-existing, but must be integrated into the set of non-functional requirements from the moment it is conceived and designed (...) Privacy is born in the design, before the system is operational, and must be guaranteed throughout the entire data lifecycle.”

Therefore, privacy by design, an obligation of the data controller that arises before the system is operational, is not a patch that is placed on a system built in disregard of the GDPR. Linked to the establishment of a true culture of data protection within the organization, it also implies, due to proactive responsibility, the ability to document all decisions made with a “privacy design thinking” approach, demonstrating compliance with the GDPR in this aspect as well.

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The risk-based approach refers directly and immediately to a preventive system aimed at visualizing, concerning the processing of personal data, the risks to the rights and freedoms of individuals.

Therefore, other series of risks to which the organization may be subjected and that affect its business

scope must be excluded from the data protection risk-based approach.

In relation to the risks to the rights and freedoms of individuals, risks must be identified, their impact evaluated, and the likelihood of their materialization assessed. Thus, it is not the data that is protected, but the individuals behind it.

In the present case, in the supposed risk analyses of GLOVOAPP from 2017 and 2019, it is observed that both aim simply to conclude that it was not necessary to carry out a data protection impact assessment, but do not guarantee the Fundamental Right to Personal Data Protection of the couriers; their rights and freedoms are not protected, which is the ultimate purpose pursued by the GDPR through data protection by design. Therefore, it is not a document conceived for compliance with the principle of proactive responsibility (Article 5.2 GDPR), since it should have started from an adequate risk analysis that would lead to the adoption of measures for the protection of rights and freedoms, always based on the design of the processing. From this perspective, in the already mentioned Privacy by Design Guide of the AEPD, various guidelines are established, which are not fulfilled in the present case:

“Any system, process, or infrastructure that will use personal data must be conceived and designed from scratch by identifying, a priori, the possible risks to the rights and freedoms of the data subjects and minimizing them so that they do not materialize into harm. A PbD policy is characterized by the adoption of proactive measures that anticipate threats, identifying the weaknesses of the systems to neutralize or minimize risks rather than applying corrective measures to resolve security incidents once they have occurred. That is to say, PbD avoids the 'remedial policy' and anticipates the materialization of the risk event.”

Privacy as the default setting:

“PbD aims to provide the user with the highest level of privacy given the state of the art and, in particular, that personal data is automatically protected in any system, application, product, or service. The default setting must be established from the design at the level that is as respectful as possible in terms of privacy. In the event that the subject does not take any configuration action, their privacy must be guaranteed and remain intact, as it is integrated into the system and configured by default.

Privacy embedded in the design phase:

“Privacy must be an integral and indissoluble part of the systems, applications, products, and services, as well as the business practices and processes of the organization. It is not an additional layer or module that is added to something pre-existing, but must be integrated into the set of non-functional requirements from the very moment it is conceived and designed. To ensure that privacy is taken into account...”

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From the early stages of design, it is necessary to:

- Consider it a necessary requirement in the life cycle of systems and services, as well as in the design of the organization's processes.
- Conduct a risk analysis for the rights and freedoms of individuals and, where applicable, impact assessments related to data protection, as an integral part of the design of any new processing initiative.
- Document all decisions made within the organization with a “privacy design thinking” approach.

Respect for user privacy, maintaining a user-centered approach:

“Without overlooking the legitimate interests pursued by the organization through data processing, the ultimate goal must be to guarantee the rights and freedoms of users whose data is being processed, so any measures taken must aim to ensure their privacy. This implies designing processes, applications, products, and services ‘with the user in mind,’ anticipating their needs. The user must have an active role in managing their own data and in controlling how others manage it. Their inaction should not undermine privacy, reiterating one of the principles already mentioned which advocates for

a default privacy setting that offers the highest level of protection.”

Thus, the access permission system for the personal data of delivery personnel requires, in terms of data protection, a proper risk analysis regarding the rights and freedoms of the delivery personnel, adequate planning, the establishment of security measures to prevent risks, maintenance, updating, and control of those measures through continuous risk review, including the demonstration of compliance (observance of the principle of proactive responsibility), especially in the present case concerning appropriate security measures. This is to ensure the Fundamental Right to Data Protection of the delivery personnel, which includes the effective protection of personal data by the data subjects, as well as ensuring the security of customers' personal data effectively and, in particular, that such personal data cannot be accessed by personnel for whom this access is not necessary. Compliance with this obligation imposed by the GDPR on the data controller is achieved through privacy by design.

Thus, upon examining the permission system of customer service personnel or delivery personnel referred to as “UE User Access,” it has been found that it did not comply with the provisions of the GDPR and was not focused on the risks to the rights and freedoms of customers, which shows that the obligation set forth in Article 25 of the GDPR regarding the design and integration of data protection in the aforementioned permission system has not been fulfilled.

GLOVOAPP alleges that this Agency has not substantiated or proven the infringing conduct it seeks to attribute, which is contrary to the very principles of the sanctioning administrative procedure that the AEPD must adhere to. Namely, the necessity to prove (i) the existence of conduct contrary to law and, (ii) that such conduct was committed by the sanctioned party, with mere existence not being sufficient.

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this conduct to attribute it to the administrator, which is also reflected in Article 53 of the Law, which establishes that the interested party shall have the right, in the administrative process, to “the presumption of non-existence of administrative responsibility until proven otherwise.”

And regarding the presumption of innocence, it cites Judgment 18/1981 of the Constitutional Court, dated June 8, and Judgments 31/1981 and 76/1990, also from the Constitutional Court. As well as the Supreme Court Judgments STS 3075/2008, dated June 3, and STSJ of Asturias 826/2018, dated March 19.

GLOVOAPP concludes that the AEPD has not sufficiently proven or accredited these infringements, as demonstrated by the fact that it indicates that the infringement is based on access to personal data that was not necessary, but fails to even indicate which data was accessible, nor which data was necessary and which was not according to the existing user profiles to which it had full access during the inspections carried out.

In this regard, this Agency considers it duly accredited that the personnel in charge of customer service or delivery personnel had configured a type of permission, the “EU User Access,” by which all those who had it could access the personal data of all delivery personnel in the European Union. This Agency refers to what has already been expressed earlier in this same allegation regarding the unnecessary access to this data by all personnel dedicated to it and the need to have conducted a thorough analysis of the risks and the possible impact on their rights and freedoms, which was also not carried out, and regarding the importance of having applied the necessary measures to ensure compliance with the GDPR and the security of such data, by the aforementioned permission system. For all the above, this allegation is dismissed.

4.- ON THE AMOUNT OF THE SANCTION

GLOVOAPP alleges that the proposed sanction by the AEPD for the supposed infringement of Articles 25 and 32 of the GDPR is fully disproportionate to Glovo's conduct.

It indicates that GLOVOAPP is not a “large company.” And that, in any case, it remains a newly created company and maintains its status as a start-up.

In this regard, this Agency wishes to point out that in Europe, a large company is one that has a workforce of more than 250 employees or that invoices more than 50 million euros annually. And, according to the information held by Axesor, GLOVOAPP has YYY employees and invoiced a total of ***AMOUNT.1 € in 2021, thus meeting the established requirements to be considered a large company.

Regarding its status as a start-up, the GDPR makes no distinction between companies that are and those that are not, so the regulation applies equally in any case and is considered completely irrelevant for the purposes of determining whether or not there is an infringement of the GDPR. In fact, the aforementioned Guidelines 4/2019 indicate that: "The DPIA is a requirement for all data controllers, whether small businesses or multinationals. Based on this, the complexity of the application of the DPIA may vary depending on the specific data processing operation. However, regardless of size, the application of the DPIA has advantages for the data controller and for the data subject in all cases." GLOVOAPP alleges that it is surprised by the amount of the proposed sanction, given that this Agency has indicated that there are no quantifiable damages to the interested parties, a criterion it considers essential for assessing the amount of the sanction and which, in its opinion, is disproportionate. In this regard, this Agency wishes to point out that the level of damages suffered by the interested parties is one of the possible criteria for graduation cited in section a) of Article 83.2 of the GDPR, but at no time does this Regulation establish that this is the "essential" criterion for assessing the amount of the sanction nor that it is a more relevant criterion than the others when it comes to determining the amount of the sanction to be imposed.

GLOVOAPP alleges that the amount of the sanction is disproportionate, especially considering similar sanctions imposed by this Agency, such as:

- PS/0120/2021, with a sanction to the entity MERCADONA, S.A. of €500,000 for infringement of Article 25.1 of the GDPR. In that procedure, there are aggravating circumstances that it considers more relevant than those attributed by the AEPD against Glovo, such as:
- Greater business volume and employees than Glovo (25 billion euros and 90,000 employees);
- Processing of special categories of data (which are not subject to processing in the present case);
- Not conducting a prior consultation with the AEPD despite the existence of an "extremely high and unacceptable risk to the rights and freedoms of customers and employees" (Glovo assessed the processing risks without identifying areas of risk);
- Responsibility attributable to the defendant showing deficiencies and incompatibilities;
- Existence of claims against the defendant (in the case at hand, there are no claims from interested parties or third parties);
- Impact on minors and vulnerable persons (which in no case occurs or can occur in Glovo's systems);

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Furthermore, this same procedure considers the absence of recidivism or reiteration as a mitigating factor, which should also be taken into account in the alleged infringement attributed to Glovo.

GLOVOAPP also cites a procedure with a similar sanction:

- PS/00236/2020, with a sanction imposed on the entity EDP ENERGÍA, S.A.U. of €500,000 for infringement of Article 25 of the GDPR. In this procedure, the following aggravating criteria are noted that do not apply to the present case and are considered of greater relevance than those attributed to Glovo:
- Existence of deficiencies in the information provided to the data subjects (in Glovo's case, access to the data was correctly identified at all times);
- Lack of diligence by EDP ENERGÍA, S.A.U. in complying with the transparency obligations imposed by the GDPR (Glovo has privacy policies and supporting documents that adequately explain the data processing carried out);
- The ongoing nature of the infringement, interpreted by the National Court as "permanent" (it is evidenced in this procedure that Glovo implemented measures proactively and without them being

required by the AEPD);

- High volume of data and processing, as well as data subjects (more than one million supply points, compared to just over 7,000 couriers in Glovo's case);

GLOVOAPP adds that it is surprising that the AEPD imposes an alleged infringement of Article 32 of the GDPR linked to the supposed non-compliance with Article 25 of that regulation, given that in the previously described procedures this was not considered, despite having similar essential characteristics.

For all the above reasons, GLOVOAPP believes that the AEPD is imposing a sanction similar, even slightly higher in amount, to an alleged infringement with similar characteristics and much lesser impact than those described in other procedures related to Article 25 of the GDPR. Therefore, the proposal from the AEPD is seen as a disproportionate or inconsistent sanctioning measure clearly detrimental to Glovo, which may affect not only its reputation in the market but, above all, its economy and ability to continue its normal commercial and operational activities.

In this regard, this Agency wishes to point out that the case of PS/00120/2021 against MERCADONA, S.A. was completely different from the present case.

In PS/00120/2021, the issue was that the company MERCADONA, S.A. was processing personal data related to facial recognition of those individuals accessing its shopping centers.

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In that procedure, what was at stake were "the risks arising from the identification errors of a person who is not prohibited from access by the security measure, intrinsically linked to the default design indicated in Article 25.1 of the GDPR," a completely different issue from the present sanctioning procedure, which does not concern the risks arising from identification errors, but rather that there were users who could access personal data of more delivery personnel than necessary to perform their task.

In the sanctioning procedure followed against MERCADONA, S.A., what was sought to be avoided was that "the inaccuracy is predictable from the very moment of the design of this type of information systems when identifying the convicted person and their confusion with another person" and that this could generate "an unacceptable risk of discrimination and social exclusion," a situation that does not occur in the present case.

Regarding the case PS/00236/2020 against EDP ENERGÍA, S.A.U., this Agency wishes to point out that it was a completely different case from the present procedure.

In PS/00236/2020, the company EDP ENERGÍA, S.A.U. did not have a procedure in place that allowed for the accreditation of the representation of someone contracting on behalf of a third party. This violated what is established by Article 5.1.a of the GDPR: "Personal data shall be: a) processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency'), to the extent that the lawfulness of the processing implies that personal data may only be processed by the data controller when one of the legal bases listed in Article 6 of the GDPR applies, which is not in question in the present case.

Regarding the fact that the aggravating criteria are of greater relevance than those attributed to GLOVOAPP, this Agency reiterates that neither the GDPR nor the LOPDGDD establishes that any of the possible criteria for graduation mentioned in Article 83.2 of the GDPR or Article 76.2 of the LOPDGDD is an "essential" criterion for assessing the amount of the sanction or that it is a more relevant criterion than the others when determining the amount of the sanction to be imposed.

Finally, this Agency wishes to clarify that the existence of deficiencies in the information provided to the data subjects would have been an aggravating factor for the graduation of the infringement of Article 25 of the GDPR in the aforementioned PS/00236/2020, since it was a different infringement, that of Article 13 of the GDPR. This Agency is surprised that GLOVOAPP cites this issue, when it has been established in the present sanctioning procedure that GLOVOAPP has infringed Article 13 of the GDPR by not providing the delivery personnel with complete information regarding the processing of

their data.

And regarding the fact that it has been established in this procedure that GLOVOAPP implemented measures proactively and without them being required by the AEPD, this Agency is again surprised that this argument is put forward, when it has been established in the present procedure that GLOVOAPP has not acted in...

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diligently when implementing appropriate measures to ensure compliance with the principles of the GDPR and to guarantee the rights and freedoms of the data subjects. Finally, it should be noted that complying with the GDPR before this Agency requires it is not acting in a particularly proactive manner, but rather it would simply be fulfilling the requirements of the applicable regulations, which is its obligation as a data controller.

For all the above reasons, this Agency considers that it cannot be understood that these are sanctioning procedures with infringements of characteristics similar to those of the present case. Furthermore, the aforementioned sanctioning procedures have followed a different course than the present case, given that this procedure involves cross-border data processing, in which Article 60 of the GDPR applies, whereby the lead authority is obliged to cooperate with the other interested supervisory authorities, striving to reach a consensus, so that the decisions adopted are by agreement among the different authorities.

Regarding its economic situation, GLOVOAPP claims that it is a recently established Spanish company trying to carve out a niche in the face of growing foreign competition in the sector. It is recognized as a startup with a negative Profit and Loss account result in each fiscal year since its inception. To support this, it provides an excerpt from the independent audit report prepared by the auditor DELOITTE, S.L., as well as the financial statements of GLOVOAPP closed as of December 31, 2022.

The fact that it must pay this sanction immediately could jeopardize Glovo's economic situation (which is already negative at present) and, consequently, its viability.

As can be seen in the Profit and Loss account for both years 2021 and 2022, Glovo had an operating loss in 2021 of less than ***AMOUNT.2 euros, and in 2022 of less than ***AMOUNT.3 euros.

These figures demonstrate (i) the delicate financial situation in which Glovo finds itself and (ii) that its financial continuity largely depends on its reputation and, consequently, on procedures like this one. Moreover, as a result of the recent health crisis caused by the Covid-19 pandemic, the restaurant and hospitality sector has been severely affected due to the closure of restaurants and hospitality businesses, which is the fundamental pillar of food delivery, and this is, in turn, the main business activity on which Glovo provides technological and intermediary services, which led Glovo to lose many business partners and, consequently, revenue.

Additionally, the health crisis also necessitated taking measures to align costs through a temporary employment regulation file (ERTE) that affected 30% of the workforce.

On the other hand, the current international economic and geopolitical crisis is also having a significant negative impact on the company's economy, as Ukraine was one of the strongest markets where the brand was present, and Glovo is

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saw itself obliged to stop all its activities in that country, thus losing a significant percentage of income for months. Furthermore, Glovo also operates in several neighboring and nearby countries to Ukraine and Russia, where the impact of the geopolitical conflict is greatly influencing its economic activity and operations (Moldova, Romania, Poland, Bulgaria, Georgia, Serbia, Armenia, Kazakhstan, and

Kyrgyzstan, among others), and a significant reduction in orders - and consequently, in revenues - is being contemplated due to the aforementioned situation.

Consequently, if this procedure is not archived or, at least, if the sanction contained in the Proposal is not reduced, and therefore the payment of the sanction of 550,000 euros is required, this would cause serious economic and reputational harm to Glovo, affecting its economy and causing a totally irreversible negative and declining economic situation for the company.

In this regard, this Agency wishes to point out that Article 83.4 of the GDPR establishes that:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

It makes no mention of whether it should be considered if the company in question is in a phase of expansion, or if the company had a negative result in its Profit and Loss Account, nor the possible reputational crisis that could result from the imposition of such a sanction, nor if there were external factors that could affect the business of the company in question (such as the Covid-19 pandemic or the war in Ukraine), nor if the company had to face a temporary employment regulation file as a consequence of this.

In this sense, from the information available in Axesor, it has been proven that GLOVOAPP invoiced a total of ***AMOUNT.1 € in 2021, so the proposed fine of 550,000 € does not reach 0.5% of that volume, which would represent a quarter of the maximum possible.

5.- Subsidiary commitments of Glovo in case this Agency does not consider the previous allegations to be lawful

GLOVOAPP argues that it should be taken into account that the measures related to the information on the existence of automated decisions, as well as the carrying out of an impact assessment, should be rendered ineffective, as the hour reservation system based on the Excellence Score has ceased to exist.

In the same vein, access permissions to the information of the couriers were modified through the application of “city group permissions,” thus correcting any potential non-compliance in this regard.

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In light of all the above, this party understands that it has been duly demonstrated that Glovo has acted in good faith at all times, making the utmost effort to comply with data protection regulations with the conviction of being within the law, as this is the requirement of all its investors and governing bodies, and without ever jeopardizing the rights and freedoms of the data subjects.

There is, therefore, no clear “intent” to violate the current regulations, as GLOVOAPP took all necessary and due actions to comply with the regulations and has prudently adjusted its actions to the law.

In this regard, this Agency insists that it does not consider that GLOVOAPP has deliberately infringed data protection regulations, but rather that it has not acted with the due diligence that it should have, given the continuous processing of personal data it was carrying out and the professionalism that the company indicated it had regarding the profound respect for the data protection regulations it claims to uphold.

IV

Transparency of personal data processing

Article 5 of the GDPR “Principles relating to processing” states that:

“1. Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject (“lawfulness, fairness, and transparency”) (...)”

In this sense, Article 13 of the GDPR “Information to be provided when personal data are obtained from the data subject” establishes that:

“1. When personal data relating to a data subject are obtained from that data subject, the controller shall provide the data subject with all the information indicated below at the time when the data are obtained:

(...)

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

(...)

f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

(...)

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.”

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As previously established, Foodinho SRL is the data controller of the personal data of the couriers in Italy, which is why it has the obligation to provide them with the relevant information in this regard. In this case, even if there could be a possible infringement of the GDPR that refers solely to the information provided by Foodinho SRL to the couriers in Italy, this Agency lacks the necessary competence to analyze this situation.

However, this Agency has the necessary competence to analyze whether there exists or has existed a possible infringement regarding the information provided by GLOVOAPP to the couriers in Spain about the processing of their personal data.

In this regard, in the contract between GLOVOAPP23, SL and a courier in Spain, dated February 3, 2020, the following information appeared:

a. the data controller, which is GLOVOAPP23, S.L.,

b. the data processed, indicating that they are the data necessary for the execution of the contract, which may include data related to accidents for the purpose of communicating them to insurance companies,

c. geolocation,

d. the purposes and legal basis of the processing, which are the management of GLOVOAPP's activity, compliance with economic and tax obligations, conducting statistics with aggregated data, and sending questionnaires, surveys, and communications that are of interest to the courier.

e. the mandatory nature of providing the data to carry out the courier's activity,

f. the modality of the processing, where it is indicated that the data will be processed by GLOVOAPP and its collaborators as data processors,

g. international transfers, in the event that GLOVOAPP chooses service providers in countries outside the European Economic Area that comply with the security standards established by the European Commission,

h. recipients, which may include data processors for advice and consultancy in accounting, tax, insurance, legal, and technical activities, and which will also include users of the platform and companies of the GLOVO group and IT service providers, which may be located outside the European Union while respecting data protection regulations,

i. data retention period, which will be the legally established period for legal formulation or defense.

Data related to geolocation will be anonymized after 30 days, except for the collection and delivery points, which will be anonymized after 12 months,

j. description of data protection rights and contact to exercise them through the email address

legal@glovoapp.com.

Additionally, when logging in on the GLOVOAPP courier web application screen, there was a link to the "Privacy Policy for Couriers," accessible at <https://glovoapp.com/es/legal/privacy-couriers/>, which contained an expanded version of the information provided in the aforementioned contract and informed about the data controller and the data processed, along with the retention periods.

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preservation of each type of data based on the legal standard that mandates that retention period.

Article 13 of the GDPR establishes the obligation to inform the data subject about the existence of automated decisions and, at least in such cases, to provide significant information about the logic applied, as well as the importance of the anticipated consequences of such processing for the data subject.

In this case, within the corporate purpose of GLOVOAPP is the management and exploitation of the technological platform, which is a channel of offer involving three parties: end customers, delivery personnel (referred to as "riders"), and local stores.

This platform had a scoring system for the delivery personnel (referred to as "excellence score"), which was formed through a series of variables, such as the number of orders made during peak demand time slots, the rating given to the delivery personnel by customers and vendors, or the number of rejected or reassigned orders, among others.

This "excellence score" system would be used exclusively in cases where, during a specific time slot, more delivery personnel had signed up than were needed, to favor the delivery personnel with a better "excellence score." According to GLOVOAPP's own statements, the "excellence score" would limit the possibility of accessing a specific one-hour time slot, but would not affect the rest of the hours of that day.

That is to say, in the event that more delivery personnel signed up than necessary for a specific time slot, it would be the "excellence score" system that would decide which delivery personnel could work in that slot and which could not.

In clause 7 "Metrics" of the "Privacy Policy for Mandatarios," it was stated that:

"a) Regarding profiles and evaluations:

- No profiles are created nor evaluations of individuals are made.
- Both the user and Glovo evaluate the quality of the service.
- All metrics obtained by Glovo refer to the service.

b) Regarding automated decision-making with legal effects:

- No automated decisions are made.
- All parameters to be considered have been generated manually.
- All parameters and metrics refer to the service and to the execution of the contract.
- No profiles are created.
- Attributes of personality or the non-professional sphere of the MANDATARIO are not taken into account.
- The results depend on prior voluntary actions of the MANDATARIO.
- The results are manually modifiable.
- The results can be corrected in case of an error.
- The MANDATARIO is not prevented from exercising a right.
- The MANDATARIO is not prevented from accessing a good or service.
- The MANDATARIO is not prevented from being part of a contract. (...)"

However, this Agency considers that GLOVOAPP has indeed been carrying out automated individual decisions to order and prioritize the access of delivery personnel to the reservation of a specific time slot, based on the assessment of the "excellence score."

Although the aforementioned "Privacy Policy for Mandatarios" stated that no automated decisions were made and that all parameters to be considered were generated manually, the reality is that the

"excellence score" system was the one making decisions regarding which delivery personnel would work in a specific time slot in case there were more delivery personnel than necessary, and this system made such decisions automatically, without human intervention.

Given that, in such cases, a delivery personnel could end up without work in a specific time slot, it can be concluded that the use of the "excellence score" system produced legal effects on the data subjects and that GLOVOAPP, through the use of the "excellence score" system, via its technological platform, was making, when necessary, automated decisions as mentioned in Article 22 of the GDPR.

None of these aspects were communicated by GLOVOAPP to the delivery personnel; rather, the opposite occurred, as only a generic mention was made in the contract regarding the possibility of being evaluated by end users and store vendors, and in the "Privacy Policy for Mandatarios," it was stated that no automated decisions were made, when it has been established that they indeed were. However, despite what was stated in the contract signed with the delivery personnel and in the privacy policy for mandatarios, it is true that GLOVOAPP provided information during the pre-contractual phase detailing how the application worked, how the "excellence score" was formed, for what it was used, and also provided advice on how to make the most of it. And it is true that Article 13 of the GDPR does not specify in which documents such information must be provided and does not require the provision of information that is already in the possession of the data subjects.

In this case, GLOVOAPP made all this information available to the delivery personnel in a tutorial that was mandatory to work as a delivery personnel, and progress in such a course was monitored, and an evaluation test was also conducted to check the knowledge of the delivery personnel.

However, it remains true that both in the contract and in the privacy policy, GLOVOAPP explicitly stated that no automated decisions were being made, when it was indeed making them.

In conclusion:

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1. GLOVOAPP is responsible for the data processing of couriers located in Spain.
2. According to Article 13.2.f) of the GDPR, the data controller, to ensure fair and transparent data processing, must provide information at the time the data is obtained about "f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic involved, as well as the significance and expected consequences of such processing for the data subject."
3. Article 22 of the GDPR refers to "automated individual decisions" which are those based "solely on automated processing, including profiling, which produces legal effects concerning him or her or similarly significantly affects him or her."
4. The "excellence score" system used by GLOVOAPP automatically assigned a score to couriers called "excellence score" taking into account, among others, the following data:
 - a. the number of orders made during peak demand time slots in the last 28 days,
 - b. feedback from stores in the last 50 orders, which can be positive, negative, or not rated,
 - c. feedback from users in the last 50 orders, which can be positive, negative, or not rated,
 - d. rejected or reassigned orders in the last 50 orders, although, in Spain, reassignment does not penalize,
 - e. order history since the beginning of the collaboration.
5. The excellence score executed the following actions automatically:
 - 1) It selected all couriers registered in a city or operational area of the app;
 - 2) It sorted them according to their Excellence Score; and
 - 3) It sent a notification to each courier informing them that the selection of time slots for certain days of the week was now available, following a descending order based on the previous sorting.
6. Therefore, GLOVOAPP, through the excellence score system, made decisions based solely on automated processing, although subsequently, when a courier filed a complaint, a human could review them.

7. Additionally, the excellence score could automatically and without human intervention limit a courier's ability to access a specific one-hour time slot, which could result in them not being able to work during that particular time slot. The priority with which a courier enters a specific time slot, or not, produces legal effects on the data subject as it directly affects their income.

8. For this reason, it is concluded that GLOVOAPP, through the excellence score system, made decisions based solely on automated processing, as regulated in Article 22 of the GDPR, since they produced legal effects on the couriers.

9. GLOVOAPP should have complied with the requirements of Article 13.2.f) of the GDPR. However, in the contract signed with the couriers and in the privacy policy, GLOVOAPP indicated that no automated decisions were being made. Therefore, in accordance with the evidence available at this time of the sanctioning procedure resolution, it is considered that the known facts constitute an infringement, attributable to GLOVOAPP, for violation of Article 13 of the GDPR.

V

Classification and qualification of the infringement of Article 13 of the GDPR

The aforementioned infringement of Article 13 of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

(...)

b) the rights of data subjects under Articles 12 to 22; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 74 "Minor infringements" of the LOPDGDD indicates:

"1. The remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 shall be considered minor and shall prescribe after one year, particularly the following:

a. The failure to comply with the principle of transparency of information or the right of information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679. (...)"

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Corrective Powers for the Violation of Article 13 of the GDPR

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in section 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers:

(...)

b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

For its part, Recital 148 of the GDPR indicates:

"In the case of a minor infringement, or if the fine that is likely to be imposed would constitute a disproportionate burden for a natural person, a warning may be issued instead of a sanction by means of a fine. Special attention should, however, be paid to the nature, gravity, and duration of the infringement, its intentional character, the measures taken to mitigate the damages suffered, the degree of responsibility or any relevant previous infringements, the manner in which the supervisory

authority became aware of the infringement, compliance with measures ordered against the controller or processor, adherence to codes of conduct, and any other aggravating or mitigating circumstances.” In accordance with the evidence available at this moment in the resolution of the sanctioning procedure, it is considered that the infringement in question is minor for the purposes of Article 83.2 of the GDPR since, in this case, GLOVOAPP provided the data subjects with almost all the information required by the GDPR, except for that required in section 2.f) of Article 13, regarding what the use of the “excellence score” implied, although it did so through the training videos required to become a delivery person, along with the information provided through its blog. This allows for a consideration of diminished culpability in the facts, and it is deemed legally appropriate not to impose a sanction consisting of an administrative fine and to replace it with a warning directed at GLOVOAPP. Therefore, it is appropriate to issue a warning to GLOVOAPP.

VII

Appropriate Technical and Organizational Measures

a) Security of Personal Data

Article 32 “Security of Processing” of the GDPR establishes that:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying risks of probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
 - b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
 - c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
 - d) a process for regularly testing, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.
2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.
3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.
4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless he or she is required to do so by Union or Member State law.”

In this regard, during the on-site inspection in February and March 2020, GLOVOAPP indicated that, although it does not have any security certification, audits had been conducted that included the security of personal data. In this sense, a copy of a letter dated April 30, 2019, was provided with the results of an audit conducted, which included points for improvement regarding privacy and the protection of personal data.

Furthermore, during the aforementioned on-site inspection, it was observed that GLOVOAPP's technological platform used various user profiles with differentiated permissions. These permissions were granted based on the user's dependency on a specific department or sub-department and whether the user was (or was not) in the European Union.

It was verified that all users of Glovo's technological platform who had the “EU User Access” permission activated could access the data of all delivery persons from countries in the European Union. However, they could not access the data of delivery persons located outside the European Union.

It was also verified that users of Glovo's technological platform who did not have the “EU User Access” permission activated could not access the data of delivery persons located in countries of the

European Union.
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On the date of the aforementioned inspection, a modification of the GLOVOAPP platform was underway to establish access profiles by country, referred to as "city group permissions."

On May 18, 2020, Glovo submitted an email to the AEPD with video recordings showing the functionality that allowed the management of access profiles by country and/or city, known as "city group permissions," operating on Glovo's technological platform.

Also on May 18, 2020, an email was received by the AEPD stating that the access criteria to information from various countries by a user had been refined since the implementation of the system called "city group permissions," strictly limiting such access by country; allowing access solely by country and by functions, when such access was required for the performance of specific work tasks and depending on the position, rendering the previously mentioned "EU User Access" system ineffective and replaced by a country-by-country access, rather than EU - non-EU.

In this regard, it has been verified that there was indeed a classification of profiles on the GLOVOAPP technological platform, which allowed access to the personal data of couriers from the European Union or outside the European Union, depending on whether the "EU User Access" permission was activated or not. This allowed users with the activated permission to access the data of couriers from all countries of the European Union. Conversely, users who did not have the "EU User Access" permission activated could not access the data of couriers from the countries of the European Union. Although it is true that this model was replaced by a system with access to courier data according to permissions enabled by countries and/or cities, there is no record of this until May 18, 2020.

In conclusion:

1. During the on-site inspection conducted at GLOVOAPP, it was verified that all users of Glovo's technological platform who had the "EU User Access" permission activated could access the data of all couriers from countries in the European Union.
2. On May 18, 2020, GLOVOAPP informed the AEPD that the "EU User Access" system had been rendered ineffective and that the system called "city group permissions" had been implemented, which strictly limited access by country; allowing access solely by country and by functions, when such access was required for the performance of specific work tasks and depending on the position.
3. Therefore, until May 2020, GLOVOAPP did not have a mechanism established in its systems that limited users' access to data that was not necessary for the performance of their work.

These facts constitute a violation of Article 32 (which stipulates that the data controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk).

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b) Data Protection by Design and by Default

Article 25 "Data Protection by Design and by Default" establishes that:

"1. Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity that the processing poses to the rights and freedoms of natural persons, the data controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing, in order to comply with the requirements of this Regulation and protect the rights of data subjects.

2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data that are necessary for each specific purpose of the processing are processed. This obligation shall apply to the amount of personal data collected, the extent of their processing, the duration of their storage, and their accessibility. Such measures shall ensure in particular that, by default, personal data are not accessible, without the intervention of the data subject, to an indefinite number of natural persons.

3. An approved certification mechanism in accordance with Article 42 may be used as an element to demonstrate compliance with the obligations laid down in paragraphs 1 and 2 of this Article.”

According to Recital 78 of the GDPR:

(78) The protection of the rights and freedoms of natural persons with regard to the processing of personal data requires the adoption of appropriate technical and organizational measures to ensure compliance with the requirements of this Regulation. In order to demonstrate compliance with this Regulation, the data controller must adopt internal policies and implement measures that particularly comply with the principles of data protection by design and by default. Such measures could consist, among others, of minimizing the processing of personal data, pseudonymizing personal data as soon as possible, providing transparency regarding the functions and processing of personal data, allowing data subjects to monitor the processing of data, and enabling the data controller to create and improve security elements. When developing, designing, selecting, and using applications, services, and products that are based on the processing of personal data or that process personal data to fulfill their function, producers of products, services, and applications should be encouraged to take into account the right to data protection when developing and designing these products, services, and applications, and to ensure, with due regard to the state of the art, that data controllers and processors are in a position to fulfill their obligations regarding data protection.

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data. The principles of data protection by design and by default must also be considered in the context of public contracts.

In conclusion:

1. The technological platform of GLOVOAPP in question is a proprietary development of GLOVOAPP, which makes all decisions regarding it, including the configuration of the profile system that allows access to user data on the platform.

2. According to the aforementioned Article 25.1 of the GDPR, GLOVOAPP, taking into account the risks posed by its platform to the rights and freedoms of the couriers, should have adopted the relevant technical and organizational measures on its platform to effectively apply the principles of data protection (such as minimization), both at the time of determining the means of processing and at the time of carrying out such processing, and integrate the necessary safeguards in the processing, in order to comply with the requirements of the GDPR and protect the rights of the data subjects.

3. Likewise, GLOVOAPP should have implemented measures to ensure that, by default, only the personal data necessary for each specific purpose for which they were collected would be processed.

4. The system used by GLOVOAPP for managing access permissions to the couriers' data allowed access to data that was not necessary for the users' work, as it permitted access to data of couriers who were not in the country of the user accessing it, which implies that appropriate measures were not adopted from the design of the processing to comply with the principle of minimization, and also highlights the lack of an adequate risk analysis that would lead to the adoption of measures for compliance with the GDPR and the protection of the rights and freedoms of the couriers.

5. GLOVOAPP also did not establish a model for managing access permissions in such a way that, by default, they were limited to the appropriate geographical scope, ensuring that workers would only process the data of couriers that were necessary.

Therefore, in accordance with the evidence available at this moment in the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to

GLOVOAPP for violation of Article 25 of the GDPR.

VIII

Classification and qualification of the infringement of Articles 25 and 32 of the GDPR

The infringement of Articles 25 and 32 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

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"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall prescribe after two years:

(...)

d) The failure to adopt those technical and organizational measures that are appropriate to effectively apply the principles of data protection by design, as well as the failure to integrate the necessary safeguards in the processing, as required by Article 25 of Regulation (EU) 2016/679.

e) The failure to adopt appropriate technical and organizational measures to ensure that, by default, only the personal data necessary for each specific purpose of the processing will be processed, as required by Article 25.2 of Regulation (EU) 2016/679.

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of the processing, as required by Article 32.1 of Regulation (EU) 2016/679. (...)"

IX

Corrective powers for the infringement of Articles 25 and 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm they have suffered (paragraph a): due to the impact on the rights of

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7073 workers (number of active couriers in Spain during the last 30 days as stated in the Preliminary Actions Report of the investigation that led to the present sanctioning procedure), until the permission system was corrected, at least until May 18, 2020.

- The manner in which the supervisory authority became aware of the infringement (section h): in this case, it was brought to attention through a request from the Italian data protection authority (section h).

- Any other aggravating factor (section k): GLOVOAPP is a large company in its business sector, which must ensure the rights and freedoms of its workers, among others, the fundamental right to the protection of their personal data. In this case, GLOVOAPP has not been diligent in configuring its permission system. In particular, considering that it is not only a large company from which greater professionalism could be demanded, but also an entity accustomed to the processing of personal data. In this regard, the ruling SAN of October 17, 2007 (rec. 63/2006) is very illustrative, which indicates that "...the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the offender does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard."

As mitigating factors:

- The technological application used by GLOVOAPP was modified, implementing the system called "city group permissions" and strictly limiting access to platform profiles by country; allowing access solely and exclusively by country and by functions when such access is required for the performance of specific work tasks and depending on the position, thus rendering the "EU User Access" system ineffective and replacing it with country-by-country access and not EU – non-EU, at least from May 18, 2020 (section b).

It is also considered appropriate to adjust the sanction to be imposed according to the following criteria established in section 3 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

- The link between the infringer's activity and the processing of personal data (section b).

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Articles 32 and 25 of the GDPR, allows for the imposition of a sanction of €550,000 (five hundred fifty thousand euros).

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST:

- TO ISSUE a warning to GLOVOAPP23, S.A., with NIF A66362906, previously GLOVOAPP23, S.L., with NIF B66362906, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

- TO IMPOSE on GLOVOAPP23, S.A., with NIF A66362906, previously GLOVOAPP23, S.L., with NIF B66362906, for the infringement of Articles 25 and 32 of the GDPR, classified under Article 83.4 of the GDPR, a fine of €550,000 (five hundred fifty thousand euros).

SECOND: TO NOTIFY this resolution to GLOVOAPP23, S.A., previously GLOVOAPP23, S.L.

THIRD: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the

following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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